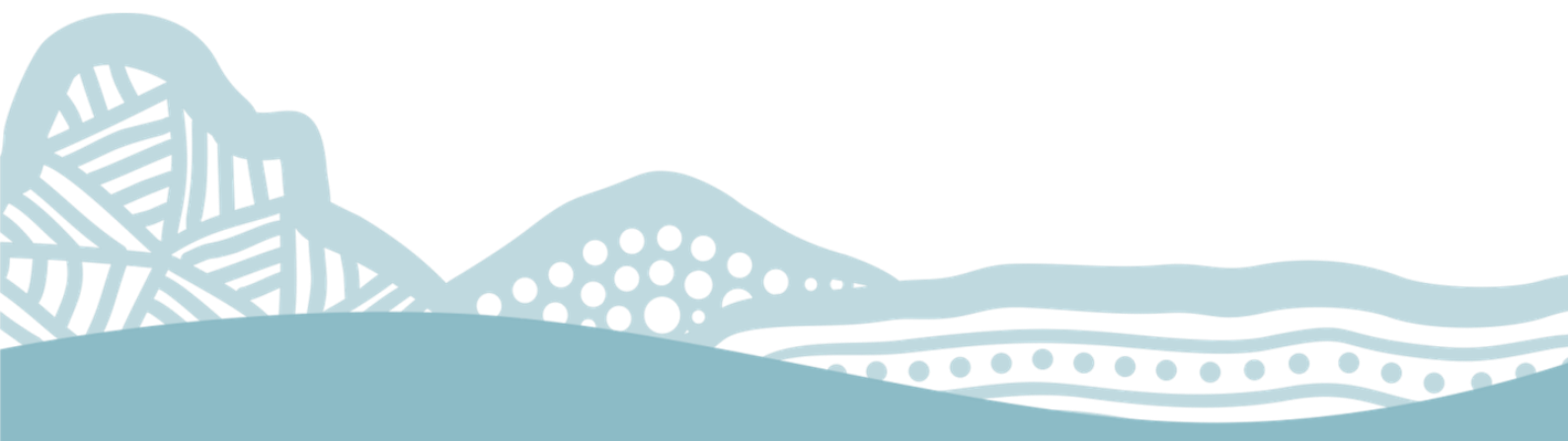


Kyogle Development Control Plan 2014

KYOGLE COUNCIL
GATEWAY TO THE RAINFORESTS

VERSION HISTORY

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7	20-12-2017	LEP Amendment no. 9 provisions	130617/08
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1 INTRODUCTION

1.1 Name of Plan

This Plan may be cited as the Kyogle Development Control Plan 2014.

1.2 Application

The Kyogle Development Control Plan 2014 (the DCP) has been prepared in accordance with Section 3.42 of the *Environmental Planning and Assessment Act 1979* and Part 3 of *Environmental Planning and Assessment Regulation 2000*.

The DCP makes provisions to guide the design of development proposals, the preparation of applications for development consent and the assessment of development applications in the Kyogle Council Local Government Area. Council is required under Section 4.15 of the *Environmental Planning and Assessment Act 1979* to take into consideration the relevant provisions of the DCP in determining development applications on land to which the DCP applies.

Where a type of development or development in a particular Zone is not listed in this DCP, applications will be assessed on a merit basis.

1.3 Commencement

This Plan came into effect on 1 June 2014.

1.4 Relationship to Other Plans

The DCP is to be read in conjunction with the Kyogle Local Environmental Plan 2012 (the LEP). The DCP seeks to give effect to the aims and objectives of the LEP by providing guidelines for development that is permissible with consent under the LEP. Where inconsistent with provisions of the LEP or State Environmental Planning Policies, the LEP or SEPP shall prevail.

This plan repeals the following Development Control Plans:

- DCP No. 1- Subdivision
- DCP No. 2- Development in Rural Areas
- DCP No. 3- Industrial Development
- DCP No. 4- Bed and breakfast Establishments and Farmstays
- DCP No. 5- Kyogle Commercial Area Off-Street Car Parking
- DCP No. 6- Outdoor Advertising
- DCP No. 7- Ecotourism
- DCP No. 9- Public Notification of Development Applications
- DCP No. 10- Management of Contaminated Lands
- DCP No. 11- Exempt Development
- DCP No. 12- Complying Development

1.5 Land to which the Plan applies

This plan applies to land in the Kyogle Council Local Government Area to which the LEP applies.

1.6 Purpose of the Plan

Consistent with Section 3.42 of the *Environmental Planning and Assessment Act 1979* the purpose of this DCP is to make detailed provisions to guide the design of development proposals, the preparation of applications for development consent and the assessment of development applications for all land within the Kyogle Local Government Area in order to;

(a) give effect to the aims of the Kyogle LEP 2012;
(b) facilitate development that is permissible under the Kyogle LEP 2012, and;
(c) achieve the objectives of land zones under the Kyogle LEP 2012.

In accordance with Section 3.43 of the Act this DCP has also been prepared to provide for public advertising and notification of development applications for specified development.

1.7 Structure and Use of the Plan

Chapters

This Development Control Plan is comprised of distinct chapters that each deal with a type of development or development within a particular Zone or Zones.

Aims and Objectives

Each chapter has specific Aims and/or Objectives that it seeks to achieve. The Aims and Objectives are supported by more detailed Development Guidelines which are expressed through Performance Criteria and Acceptable Solutions.

Performance Criteria and Acceptable Solutions

The Performance Criteria are in the left hand column of the Development Guidelines tables. They provide a statement of an intended development outcome that will achieve the Objectives of the chapter.

The Acceptable Solutions are in the right hand column of the Development Guidelines tables. **The Acceptable Solutions generally represent a preferred way of complying with the Performance Criteria however, there are other ways that an application can be shown to meet a Performance Criteria. A proposal that seeks to pursue an alternative solution to a stated Acceptable Solution must provide sufficient information to demonstrate how the corresponding Performance Criterion has been met.** It is the responsibility of the applicant to demonstrate how alternative solutions comply with, or achieve the intent of, the Chapter's Performance Criteria. This may require the submission of additional reports or evidence prepared by suitably qualified persons where applicable. For example, where a site is flood

prone, a report prepared by a hydraulic engineer may be required to show that the development is not subject to an unacceptable risk of flooding.

Similarly, in some cases meeting an Acceptable Solution requires compliance with Australian Standards or Council's Policies or Strategies or the submission of evidence, reports or plans prepared by suitably qualified persons. For example; an on-site waste water management plan prepared by a qualified soil scientist.

A proposal that meets with all Acceptable Solutions will generally be approved, except where particular circumstances of the site or development mean the Acceptable Solutions will not achieve a desirable outcome. A proposal that does not demonstrate achievement of the Performance Criteria or its intent, except in insignificant details, will be refused where it cannot be conditioned to mitigate impacts or it cannot be demonstrated that the development achieves the objectives of the Chapter.

Departures, Variations and Alternative Solutions

This DCP provides guidelines for development that are expressed as preferred outcomes rather than rigid development standards. As such, there are not expected to be many situations where the Development Guidelines should need to be varied. However, where a variation is requested Council may consider varying the Development Guidelines where it can be adequately demonstrated that the Aims and/or Objectives of the relevant Chapter can be wholly achieved by an alternative solution and the proposal is consistent with all LEP aims and Zone Objectives. Applications will generally need to provide a detailed justification for the request and evidence that an equivalent or better outcome will result from the variation in terms of environmental, social, cultural and economic outcomes. This may require the submission of reports or evidence prepared by suitably qualified persons. Where the development standard to be varied relates to a standard in the LEP, the application must address Clause 4.6 Exceptions to development standards of the LEP.

Advisory notes

Advisory notes (shown in italics) are for information or clarification only and are not a requirement of the plan.

1.8 Definitions

The definitions of terms used in this Plan are the same as definitions provided in the Dictionary of the Kyogle LEP 2012. Additional terms may be defined within individual chapters.

NOTE:

Buffers – the numerical buffer distances identified in the Appendices generally refer to the distance between the proposed development and the specified activity/building on an adjoining property not party to the proposed development.

Surrounding Area referred to in Land Use Conflict generally refers to the area outside the development site.

CHAPTER 1 NON-RESIDENTIAL DEVELOPMENT IN RURAL ZONES RU1, RU2, RU3 AND RU4

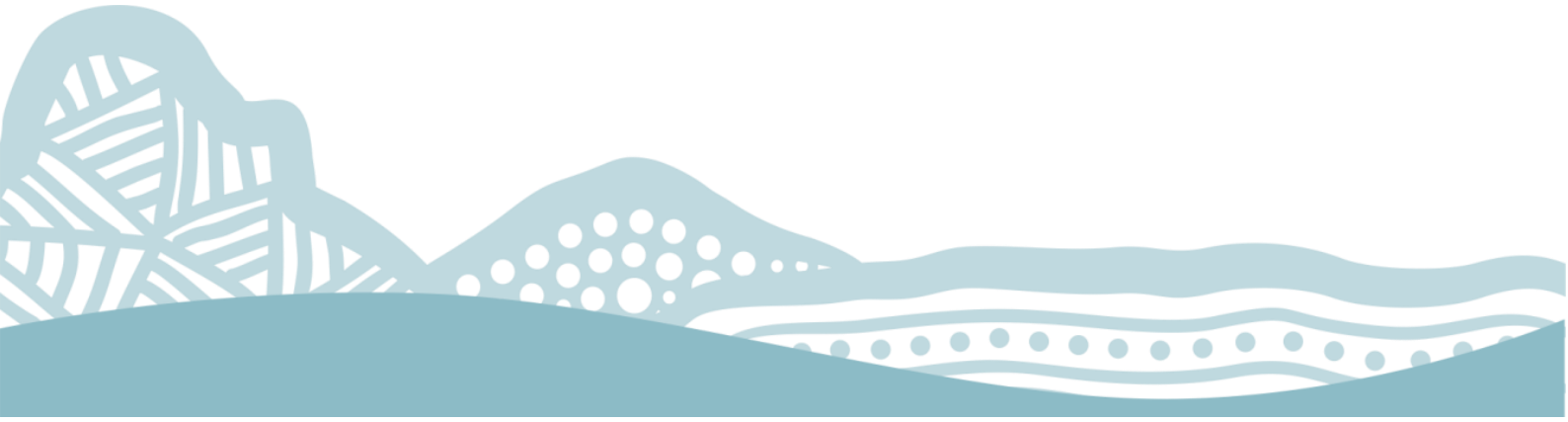


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1 Introduction

1.1 Application

This Chapter applies in preparing and assessing applications for development in rural Zones RU1 Primary Production, RU2 Rural Landscape, RU3 Forestry and RU4 Primary Production Small Lots, excluding residential development, subdivision, forestry, extractive industries and other development where regulated by other chapters of this DCP.

1.2 Aims of Chapter 1

a) To facilitate development in rural areas that is consistent with the objectives of the applicable zone and does not reduce the viability or potential of Regionally Significant Farmland[1] or Class 1, 2 or 3 agricultural land[2].
b) To assist potential developers to select suitable development sites.
c) To provide development guidelines to assist the design of development proposals and preparation of development applications and the assessment of those applications.

[1]*As mapped by the Northern Rivers Farmland Protection Project (Department of Infrastructure, Planning and Natural Resources and Department of Primary Industries), 2005*

[2]*As mapped on Rural Land Capability maps produced by the NSW Department of Land and Water Conservation*

2 Intensive Livestock Agriculture, Rural Industries and Animal Boarding or Training Establishments

2.1 Application

This section applies to development for the purposes of **intensive livestock agriculture, rural industries** and **animal boarding or training establishments** in Zones RU1, RU2, RU3 and RU4 where permitted with consent under the Kyogle LEP 2012. The Kyogle LEP 2012 states that a **rural industry** includes the following activities:

- Agricultural produce industries
- Livestock processing industries (including abattoirs)
- Composting facilities and works (including the production of mushroom substrate)
- Sawmill or log processing works
- Stock and sale yards
- The regular servicing or repairing of plant or equipment used for the purposes of a rural enterprise

2.2 Objectives

a) To facilitate development of intensive livestock agriculture, rural industries and animal boarding or training establishments in appropriate locations.
b) To encourage the development of rural industries that complements the agricultural activities within the Council area.
c) To ensure development does not fragment or significantly reduce the potential or viability of Regionally Significant Farmland[1] or Class 1, 2 or 3 agricultural land[2].
d) To ensure that development is appropriately sited and adequate buffers are provided to sensitive land uses so as to minimise the potential for land use conflict.
e) To ensure the design and operation of development does not create unacceptable impacts on the amenity of surrounding properties.
f) To ensure that development does not adversely impact on biodiversity, endangered ecological communities, fauna corridors or threatened species.
g) To minimise adverse impacts on the character of the rural landscape.
h) To ensure development does not adversely impact on water quality and the ecological and hydrological functions of watercourses, wetlands or water bodies.
i) To ensure that development is adequately serviced and does not create unreasonable demands on public infrastructure.
j) To ensure that development has safe and suitable vehicular access.
k) To ensure preservation of cultural heritage.

[1] *As defined by the Northern Rivers Farmland Protection Project (Department of Infrastructure, Planning and Natural Resources and Department of Primary Industries), 2005*

[2] *As mapped on Rural Land Capability maps produced by the NSW Department of Land and Water Conservation*

2.3 Development Guidelines

Note: the Acceptable Solutions represent one way to meet the Performance Criteria. Applicants that choose not to, or that cannot meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Protection of good quality agricultural land	
P1 Development does not significantly reduce the viability or potential of Regionally Significant Farmland or Class 1, 2 or 3 agricultural land	A1 Development is not sited on land mapped as Regionally Significant Farmland or Class 1, 2 or 3 agricultural land
Land use conflict	
P2 The development is not likely to impact on, or be impacted by, current and likely future land uses in the surrounding area* * *Demonstrating achievement of P2 will generally require submission of a land use conflict risk assessment (LUCRA) prepared in accordance with the Department of Primary Industries 'Living and Working in Rural Areas' guidelines (2007) that demonstrates the development will not result in unacceptable risk of land use conflict*	A2.1 Development achieves relevant buffers identified in Table C1.1 in Appendix C1 A2.2 Development is not proposed on land that adjoins land zoned R1, R3, R5 and RU5 or land that is identified for future residential or urban development through a land release strategy
Design and siting of buildings, structures and operational areas	
P3 Development siting and layout utilises natural grades of the land and minimises cut and fill	A3.1 Buildings, structures and operational areas are not constructed on land with a gradient exceeding 15% A3.2 Cut or fill does not exceed 1.5 metres in height and a total height of 3 metres
P4 The setback of buildings, structures and operational areas from the primary road frontage is consistent with the surrounding area	A4.1 Buildings, structures and operational areas are set back a minimum of 40 metres from the primary road frontage or as per Table C1.1 in Appendix C1 where applicable OR **Where development site has primary frontage to a classified road:** A4.2 Buildings, structures and operational areas are set back a minimum of 50 metres from the road frontage

Performance criteria	Acceptable solution
P5 The setback of buildings, structures and operational areas from side and rear property boundaries does not impact on the amenity of adjoining properties	A5.1 Buildings, structures and operational areas are set back a minimum of 20 metres from side boundary or as per Table C1.1 in Appendix C1 where applicable A5.2 Buildings, structures and operational areas are set back at least 20 metres from rear boundary or as per Table C1.1 in Appendix C1 where applicable OR **Where side or rear boundary fronts a public road:** A5.3 Buildings, structures and operational areas are set back at least 40 metres or as per Table C1.1 in Appendix C1 where applicable
Visual impact	
P6 The development does not adversely impact significant vistas, landscape character or surrounding properties	A6.1 Buildings, structures and operational areas are not located in visually prominent locations such as on ridgelines, hill tops or in prominent locations when viewed from public vantage points or surrounding properties OR A6.2 Landscaping is provided to screen or break up the appearance of the development from surrounding areas and significant public vantage points* * *A landscape concept plan must be provided that demonstrates achievement of A6.2* A6.3 External walls and roofs are clad in non-reflective materials and colours are muted
Environmental impact	
P7 The siting of buildings, structures and operational areas does not adversely impact ecological or hydrological values of watercourses, water bodies or wetlands	A7.1 Buildings, structures and operational areas are set back a minimum of 100 metres from the top of bank of permanent watercourses (Order 3 or greater Stream) or water bodies and 40 metres from the top of bank of an ephemeral watercourse (Order 1 or 2 Stream) A7.2 Buildings, structures and operational areas are set back a minimum of 100 metres from the edge of wetland

Performance criteria	Acceptable solution
P8 Development does not adversely impact on ecological functions or biodiversity values	A8.1 Construction of buildings, structures and operational areas does not require the clearing of native vegetation A8.2 Development is not located within a mapped ecological corridor
Heritage	
P9 Development does not adversely affect the heritage significance of items of environmental heritage or of a heritage conservation area	A9 The development site is not land upon which an item of environmental heritage is situated or land within a heritage conservation area
Landscaping	
P10 The development does not create adverse visual impact on the character of the area	A10.1 A landscape concept plan is submitted with the development application A10.2 Plant species proposed complement or reflect the landscape character of the site and its surroundings A10.3 Plant locations and densities are appropriate to effectively screen or break up the mass of the development
Control of Noise, Odour, Light and Dust	
P11 Operation of the development does not create unacceptable noise impacts on surrounding areas	A11.1 Operation of the development complies with the NSW Industrial Noise Policy A11.2 All stationary noise generating machinery is located within insulated and enclosed buildings A11.3 Deliveries and transport are undertaken only between the hours of 7am to 6pm weekdays and 7am to 1pm Saturdays A11.4 Roads, parking, loading and manoeuvring areas are not within 100 metres of a dwelling on another property
P12 Operation of the development does not create dust that impacts on crop production or the amenity of surrounding areas	A12 Design and operation of the development does not generate dust
P13 Operation of the development does not create unacceptable odour impacts on surrounding areas	A13.1 Animal feed is stored in a dry storage area to prevent fermentation

Performance criteria	Acceptable solution
	AND **Where development is for intensive livestock agriculture:** A13.2 Best practice measures to minimise odour are implemented AND **Where development is for an animal boarding establishment:** A13.3 Development is carried out in accordance with the Code of Practice No. 5- Dogs and Cats in Animal Boarding Establishments prepared by the NSW Department of Primary Industries
P14 The development does not create unacceptable light impacts on surrounding areas	A14.1 Development does not employ external lighting OR A14.2 External lighting is shielded to prevent spillage to surrounding properties
Effluent management	
P15 Design and operation of the development does not adversely impact water quality, create public health risks or impact adjoining land	A15.1 Effluent is treated on site in an approved manner OR A15.2 Effluent is removed from site and disposed of in an approved manner AND **Where development is for intensive livestock agriculture or animal boarding or training establishment:** A15.3 Wastewater generated from the cleaning of animal housing structures, restriction facilities and yard areas is treated to remove pathogens and pollutants prior to being reused on-site for irrigation purposes
Stormwater management	
P16 Development must not have a detrimental impact on water quality or adjoining properties	A16.1 Development does not alter drainage patterns or result in increased stormwater velocities, sediment, pollutant or nutrient loads A16.2 Stormwater is disposed of in a manner that does not interfere with adjoining land uses

Performance criteria	Acceptable solution
	A16.3 Stormwater management infrastructure is designed in accordance with the Northern Rivers Local Government Development & Design and Construction Manuals AND **Where development is for intensive livestock agriculture:** A16.4 Development is carried out in accordance with an erosion and sediment control plan prepared in accordance with the Northern Rivers Local Government Development & Design and Construction Manuals
Transport and access	
P17 The development has vehicular access that is safe and suitable for the intended use	A17.1 The development is connected to a public road that is of appropriate standard to accommodate the nature of traffic generated by the development A17.2 Vehicles can enter and leave the site in a forward direction A17.3 Internal access roads, parking and manoeuvring areas are all weather design and construction A17.4 Access, manoeuvring and parking areas designed and constructed in accordance with the Northern Rivers Local Government Development & Design and Construction Manuals, and Council's Property Access and Addressing Management Plan
Services and infrastructure	
P18 The development makes adequate provision for services without impacting on the amenity of surrounding properties	A18 The development is serviced by reticulated power and telecommunications
P19 The development makes adequate provision for supply of water	A19 The development is self-sufficient for water
Natural hazards	
P20 Buildings, structures and persons on the development site are not exposed to unacceptable risk from flooding, landslip or bushfire	A20.1 Development is not on land that is mapped as bushfire prone land or a landslip hazard area A20.2 The development site is not prone to flooding from inundation or overland flow

Performance criteria	Acceptable solution
Hours of operation (rural industries only)	
P21 Operation of the development does not create unacceptable impacts on surrounding areas	A21 Hours of operation are in accordance with Table C1.2 in Appendix C1

3 Farm Buildings and Rural Sheds

3.1 Application

This section applies to development for the purposes of farm buildings (including sheds) and structures in Zones RU1, RU2, RU3 and RU4 where not developed as part of other development applicable to this Chapter. This Chapter does not apply to rural dwellings; refer to Chapter 3.

3.2 Exempt Development

Certain farm buildings and structures are permitted as Exempt Development (development that does not require development consent, subject to certain requirements). Reference should be made to any relevant State Environmental Planning Policy.

3.3 Objectives

a) To ensure that buildings and structures are designed and constructed to minimise the visual impact on the character of the rural landscape and significant views or settings.
b) To ensure that buildings and structures are designed and sited to minimise cut and fill.
c) To ensure that buildings and structures are designed and sited to minimise impacts on ecological functions and biodiversity values.
d) To ensure that buildings and structures are sited to minimise exposure to unacceptable risk from natural hazards and contaminated land.
e) To ensure that buildings and structures do not adversely impact on ecological or hydrological functions of watercourses, wetlands or water bodies.
f) To ensure that buildings and structures have suitable vehicular access.
g) To ensure the preservation of cultural heritage.

3.4 Development Guidelines

Note: the Acceptable Solutions represent one way to meet the Performance Criteria. Applicants that choose not to, or that cannot, meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Design and siting of buildings and structures	
P1 Design and layout of buildings utilises natural grades of the land and minimises cut and fill	A1.1 Buildings and structures are not erected on slopes in excess of 15% A1.2 Cut or fill does not exceed 1.5 metres in height or a total height of 3 metres

Performance criteria	Acceptable solution
P2 The setback of buildings and structures to the primary road frontage is consistent with the surrounding area	A2.1 Buildings and structures are set back a minimum of 20 metres from the primary road frontage, where the road is not a classified road OR **Where development site has primary frontage to a classified road:** A2.2 Buildings and structures are set back a minimum of 50 metres from the road frontage
P3 The setback of buildings and structures does not impact on the amenity of adjoining properties or the surrounding area	A3.1 Buildings and structures are set back a minimum of 10 metres from side and rear boundaries OR **Where side or rear boundary fronts a public road**: A3.2 Buildings and structures are set back a minimum of 20 metres from boundary
P4 The siting of buildings and structures does not impact on ecological or hydrological values of watercourses and water bodies	A4 Buildings and structures are set back a minimum of 100 metres from the top of bank of permanent or ephemeral watercourses and water bodies
P5 The development does not adversely impact significant vistas, landscape character or surrounding properties	A5.1 Buildings and structures are not located in visually prominent locations such as on ridgelines, hill tops or in prominent locations when viewed from public vantage points OR A5.2 Landscaping is provided to screen or break up the appearance of the development from surrounding areas and significant vantage points* * *A landscape concept plan must be provided that demonstrates achievement of A5.2* AND A5.3 External walls and roofs are clad in non-reflective materials and colours are muted. This includes colourbond materials.
P6 Development does not create unacceptable impact on ecological functions or biodiversity values	A6.1 Siting of buildings and structures does not require the clearing of native vegetation A6.2 Development is not located within a mapped ecological corridor

Performance criteria	Acceptable solution
Stormwater Management	
P7 Development must not have a detrimental impact on adjoining properties	A7.1 Stormwater is disposed of in a manner that does not interfere with adjoining properties A7.2 Stormwater management infrastructure is designed and constructed in accordance with the Northern Rivers Local Government Development & Design and Construction Manuals
Transport and Access	
P8 The development must have vehicular access suitable for the intended use	A8.1 Internal access roads and vehicular access must be all weather design and construction in accordance with the Northern Rivers Local Government Development & Design and Construction Manuals, and Council's Property Access and Addressing Management Plan A8.2 Vehicles are able to enter and leave the site in a forward direction
Natural hazards	
P9 Buildings, structures and persons on the development site are not exposed to unacceptable risk from flooding, landslip or bushfire	A9.1 Where development is on land mapped as bushfire prone land, buildings or structures are not located within 10 metres of a dwelling* A9.2 Development is not located on land mapped as a landslip hazard area A9.3 The development site is not prone to flooding from inundation or overland flow **Where Class 10a structures are located on bushfire prone land and within 10 metres of a residential building, the Class 10a structure must meet bushfire requirements applicable to the residential building*
Heritage	
P10 Development does not adversely affect the heritage significance of items of environmental heritage or of a heritage conservation area	A10 The development site is not land upon which an item of environmental heritage is situated or land within a heritage conservation area

4 Other development

4.1 Application

This section applies to other non-residential development in Zones RU1, RU2, RU3 and RU4 where permitted with consent, including; **camping grounds, caravan parks, charter and tourism boating facilities, helipads, information and education facilities, roadside stalls, community facilities, industrial training facilities, function centres, educational establishments, entertainment facilities, restaurants or cafes, recreation facilities (outdoor), places of public worship, plant nurseries, rural supplies, temporary workers' accommodation, timber yards, veterinary hospitals, crematoria and cellar door premises**, but excluding tourist and visitor accommodation, eco-tourist facilities, forestry or cemeteries.

4.2 Objectives

a) To facilitate development in rural areas that is consistent with the objectives of the applicable zone.
b) To promote development that complements the agricultural nature of the rural area and allows additional economic opportunities.
c) To ensure development does not fragment or reduce the potential and viability of Regionally Significant Farmland[1] or Class 1, 2 or 3 agricultural land[2].
d) To ensure that development does not result in unacceptable harm to the natural environment.
e) To ensure that development does not create unacceptable potential for land use conflict.
f) To ensure development is adequately serviced and does not impose unreasonable demand on public infrastructure.
g) To ensure that infrastructure and persons on development sites are not exposed to unacceptable risk from natural hazards and contaminated land.
h) To ensure that development does not adversely impact the landscape character of rural areas.
i) To ensure the preservation of cultural heritage.
j) To ensure that buildings and structures do not adversely impact on ecological or hydrological functions of watercourses, wetlands or water bodies.
k) To ensure that development has safe and suitable vehicular access.

[1] *As defined by the Northern Rivers Farmland Protection Project (Department of Infrastructure, Planning and Natural Resources and Department of Primary Industries), 2005*

[2] *As mapped on Rural Land Capability maps produced by the NSW Department of Land and Water Conservation*

4.3 Development Guidelines

Note: the Acceptable Solutions in the table below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot, meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Protection of good quality agricultural land	
P1 Development does not significantly reduce the viability or potential of Regionally Significant Farmland or Class 1, 2 or 3 agricultural land	A1 Development is not sited on land mapped as Regionally Significant Farmland or Class 1, 2 or 3 agricultural land
Land use conflict	
P2 The development is not likely to impact on, or be impacted by, current and likely future land uses in the surrounding area* * *Demonstrating achievement of P2 will generally require submission of a land use conflict risk assessment (LUCRA) prepared in accordance with the Department of Primary Industries 'Living and Working in Rural Areas' guidelines (2007)*	A2.1 Development achieves buffers identified in Table C1.1 in Appendix C1
Design and siting of buildings and structures	
P3 Development siting and layout utilises natural grades of the land and minimises cut and fill	A3.1 Buildings, structures and operational areas are not constructed on land with a gradient exceeding 15% A3.2 Cut or fill does not exceed 1.5 metres in height and a total height of 3 metres
P4 The setback of buildings, structures and operational areas to the primary road frontage is consistent with the surrounding area	A4.1 Buildings, structures and operational areas are set back a minimum of 20 metres from the primary road frontage OR **Where development site has primary frontage to a classified road:** A4.2 Buildings, structures and operational areas are set back a minimum of 50 metres from the road frontage
P5 The setback of buildings, structures and operational areas does not impact on the amenity of adjoining properties	A5.1 Buildings and structures are set back a minimum of 10 metres from side boundary A5.2 Buildings and structures are set back at least 10 metres from rear boundary

Performance criteria	Acceptable solution
	OR **Where side or rear boundary is a secondary road:** A5.3 Buildings and structures are set back at least 20 metres
Visual impact	
P6 The development does not adversely impact significant vistas, landscape character or surrounding properties	A6.1 Buildings and structures are not located in visually prominent locations such as on ridgelines, hill tops or in prominent locations when viewed from public vantage points OR A6.2 Landscaping is provided to screen or break up the appearance of the development from surrounding areas and significant vantage points ** A landscape concept plan must be provided that demonstrates achievement of A6.2* AND A6.3 External walls and roofs are clad in non-reflective materials and colours are muted
Environmental impact	
P7 The siting of buildings and structures does not impact on ecological or hydrological values of watercourses, water bodies and wetlands	A7.1 Buildings, structures and operational areas are set back a minimum of 100 metres from the top of bank of permanent watercourses (Order 3 Stream or greater) or water bodies and 40 metres from the top of bank of an ephemeral watercourse (Order 1 or 2 Stream) A7.2 Buildings, structures and operational areas are set back a minimum of 100 metres from the edge of wetland
P8 Development does not create unacceptable impact on ecological functions or biodiversity values	A8.1 Construction of buildings, structures and operational areas does not require the clearing of native vegetation A8.2 Development is not located within a mapped ecological corridor
Protection of amenity of surrounding properties	

Performance criteria	Acceptable solution
P9 Operation of the development does not create unacceptable impacts on the amenity of surrounding areas or agricultural production	A9.1 Hours of operation are in accordance with Table C1.2 in Appendix C1 A9.2 Operation of the development must comply with the NSW Industrial Noise Policy A9.3 Delivery and servicing is undertaken only between the hours of 7am to 6pm weekdays and 7am to 1pm Saturdays A9.4 Design and operation of the facility does not generate emissions of dust, light or odour A9.5 Internal roads, parking, loading and manoeuvring areas are not within 40 metres of a dwelling on an adjoining property
Effluent management	
P10 Design and operation of the development does not adversely impact water quality or create public health risks	A10.1 Effluent is treated on site in an approved manner OR A10.2 Effluent is removed from site and disposed of in an approved manner
Stormwater Management	
P11 Development must not have a detrimental impact on water quality or adjoining properties	A11.1 Development does not alter drainage patterns or result in increased stormwater velocities, sediment, pollutant or nutrient loads A11.2 Stormwater is disposed of in a manner that does not cause nuisance to adjoining properties A11.3 Stormwater management infrastructure is designed in accordance with the Northern Rivers Local Government Development & Design and Construction Manuals
Transport and Access	
P12 The development must have vehicular access suitable for the intended use and vehicular movements must not have a detrimental impact on amenity of adjoining properties	A12.1 The development is connected to a public road that is of appropriate standard to accommodate the nature of traffic generated by the development A12.2 Internal access roads and vehicle manoeuvring and parking areas are all weather design and construction

Performance criteria	Acceptable solution
	A12.3 Vehicles are able to enter and leave the site in a forward direction A12.4 Access, manoeuvring and parking areas are in accordance with the Northern Rivers Local Government Development & Design and Construction Manual
Services and infrastructure	
P13 The development makes adequate provision for services without impacting on the amenity of surrounding properties or drawing unreasonably from watercourses, water bodies or groundwater	A13.1 The development is serviced by reticulated power and telecommunications A13.2 The development has adequate water supply
Natural hazards	
P14 Buildings, structures and persons on the development site are not exposed to unacceptable risk from flooding, landslip or bushfire	A14.1 Development is not proposed on land that is mapped as bushfire prone or a landslip hazard area A14.2 The development site is not prone to flooding from inundation or overland flow
Heritage	
P15 Development does not adversely affect the heritage significance of items of environmental heritage or of a heritage conservation area	A15 The development site is not land upon which an item of environmental heritage is situated or land within a heritage conservation area
Where development is for a roadside stall	
P16 Roadside stalls do not create unsafe road conditions	A16.1 Roadside stalls are not located within the road reserve A16.2 Roadside stalls are accessed via an approved vehicular access
P17 Roadside stalls are small scale and used for the sale of locally produced or grown goods and products	A17.1 The maximum gross floor area of a roadside stall is $8m^2$ A17.2 Roadside stalls are only used to sell goods produced or grown on the property where the stall is located or an adjacent property

Performance criteria	Acceptable solution
P18 Food products are stored and managed in accordance with NSW Food Authority requirements	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P19 Roadside stall signage does not create adverse impacts on rural landscape character or unduly distract motorists	A19.1 No more than 3 signs per premises are utilised A19.2 Signs are located on roadside stall or fence line of subject site

APPENDIX C1

Table C1.1 Recommended minimum buffer distances (in metres) between proposed development and building or activity on adjoining land not associated with proposal

	Residential areas and Urban Development	Rural Dwellings	Education Facilities & Pre-schools	Tourist and Visitor Accommodation	Property Boundary of subject site	Public Roads
Piggeries- Housing and waste storage	1000	500	1000	500	100	100
Piggeries- Waste utilisation area	500	250	250	250	20	20
Feedlots- Yards and waste storage	1000	500	1000	1000	100	100
Feedlots- Waste utilisation area	500	250	250	250	20	20
Poultry farms- Sheds and waste storage	1000	500	1000	500	100	100
Poultry farms- Waste utilisation area	500	250	250	250	20	20
Dairies- Sheds and waste storage	500	250	250	250	100	100
Dairies- Waste utilisation area	500	250	250	250	20	20
Other Intensive Livestock Operations	500	300	500	300	100	100
Extensive Horticulture	300	200	200	200	NAI	BMP
Greenhouse & Controlled Environment Horticulture	200	200	200	200	50	50
Macadamia de-husking	300	300	300	300	50	50
Bananas	150	150	150	150	BMP	BMP
Turf Farms	300	200	200	200	BMP	SSD
Animal boarding or training establishments	500	500	500	500	100	100
Rural Industries	1000	500	1000	500	50	50
Abattoirs	1000	1000	1000	1000	100	100

Source: Department of Primary Industries; Living and Working in Rural Areas (2007)

Table C1.2 Preferred operational or opening hours

Development use or activity	Monday to Friday	Saturday	Sunday and Public Holidays
Function centres, Restaurants and cafes, Cellar door premises, Neighbourhood shops, Educational establishments, Entertainment facilities, Information and education facilities, Place of public worship	7am-10pm	7am-10pm	7am-10pm
Charter and tourism boating facilities, Veterinary hospitals, Plant nurseries, Recreation facilities (outdoor), Rural supplies, Timber yards	7am-6pm	7am-5pm	7am-5pm
Rural industries, Industrial training facilities	7am-6pm	7am-1pm	Not permitted
Crematoria	8am-5pm	8am-4pm	9am-3pm

CHAPTER 2 SUBDIVISION

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1 INTRODUCTION

1.1 Application

This Chapter applies in preparing and assessing applications for subdivision (including boundary adjustments) of land and buildings.

1.2 Aims of Chapter 2

a) To provide comprehensive and clear guidelines for preparing and assessing development applications for subdivision of land in the Kyogle Local Government Area.
b) To facilitate the subdivision of land that achieves the applicable zone objectives and is appropriate for its intended use.
c) To promote the development of well-designed subdivisions that respond appropriately to their site and surroundings and meet community expectations.

2 SUBDIVISION IN RURAL AREAS

2.1 Application

This section applies to subdivision of land in Zones RU1 Primary Production, RU2 Rural Landscape, RU3 Forestry, W1 Natural Waterways and W2 Recreational Waterways. In designing subdivisions and preparing development applications reference should also be made to the relevant provisions of the Kyogle LEP 2012, including; Clause 2.6, Clause 4.1, Clause 4.1AA, Clause 4.2, Clause 4.2B and the Lot Size Maps.

2.2 Exempt Development

Certain subdivision (including minor boundary adjustments) is permitted as Exempt Development (development that does not require development consent, subject to certain requirements). Reference should be made to any relevant State Environmental Planning Policy.

2.3 Objectives

a) To facilitate the subdivision of land that achieves the applicable zone objectives.
b) To provide for the subdivision of rural land to respond to changing needs of agriculture and facilitate additional rural settlement in appropriate locations.
c) To ensure that subdivision of rural land preserves agricultural viability and potential and avoids fragmentation of Regionally Significant Farmland[1] or Class 1, 2 or 3 agricultural land[2].
d) To ensure that new lots are suitable to accommodate a dwelling.
e) To ensure subdivision for rural settlement achieves adequate buffers to agricultural activities and does not create the potential for land use conflict.
f) To ensure that future residents, visitors and workers are not exposed to unacceptable risk from natural hazards and contaminated land.
g) To ensure the protection and preservation of natural resources, biological diversity, water courses, wetlands, significant native vegetation, habitat and corridors
h) To ensure the preservation of cultural heritage.
i) To protect the character of the rural landscape.
j) To ensure rural subdivisions are provided with appropriate services and infrastructure that are efficient, cost-effective and minimise ongoing maintenance costs.

[1]*As defined by the Northern Rivers Farmland Protection Project (Department of Infrastructure, Planning and Natural Resources and Department of Primary Industries), 2005*

[2]*As mapped on Rural Land Capability maps produced by the NSW Department of Land and Water Conservation*

2.4 Development Guidelines

Note: the Acceptable Solutions in the tables below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

2.4.1 Subdivision Design

Performance criteria	Acceptable solution
Lot size	
P1 The size of lots facilitates achievement of the objectives of the Zone	A1 Lots are at least the minimum size shown on the Lot Size Maps in the LEP
Lot shape, dimensions and road frontage	
P2 The dimensions and shape of lots are suitable to achieve buffers and facilitate practical agricultural use of the land	A2.1 Lots have a conventional rectangular, rhomboidal or trapezoidal shape without acute internal angles A2.2 The frontage to depth ratio of lots does not exceed 1: 4 A2.3 Lot size and shape permits building envelopes to achieve recommended buffers in Table C2.1 in Appendix C2 A2.4 Lots are at least 200 metres wide at the narrowest point
P3 Lots allow convenient vehicular access and have the ability to be serviced	A3.1 Lots have at least 200 metres of contiguous frontage to a constructed public road OR A3.2 Access via a right of carriageway is only utilised where it is not possible or practical to provide road frontage, and the right of carriageway is designed in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manual.
Rear/ hatchet/ battle axe lots	
P4 Rear lots are suitable size and shape to facilitate agricultural use and siting of a dwelling	A4.1 The area of rear lots (not including the area of the access handle) is at least the minimum lot size shown on the minimum lot size maps in the LEP A4.2 The width to depth ratio does not exceed 1: 4 (excluding access handle)

Performance criteria	Acceptable solution
	A4.3 Lot size and shape permits building envelopes to achieve recommended buffers in Table C2.1 in Appendix C2 A4.4 The access handle is a minimum 7 metres wide and designed in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manual
Site features and constraints	
P5 The subdivision layout responds appropriately to the topography and natural features of the site and its surrounds and facilitates sustainable land management practices including; • Use of natural boundaries • Protection of natural habitat and vegetation • Revegetation and tree planting • Protection of watercourses and water quality • Avoiding the need to utilise steep land • Control of weeds and feral animals • Retention of significant character trees	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P6 Subdivision layout facilitates practical agricultural use of the land	A6.1 Lot layout does not reduce access to usable land for stock and machinery A6.2 Lot layout does not require the construction of new farm roads, access tracks and fences across watercourses, vegetated land or steep land A6.3 Lot boundaries facilitate practical construction and maintenance of fences where required A6.4 Subdivision layout allows stock to access water, sheltered areas and flood free land A6.5 Lots have areas suitable for the siting of agricultural buildings and infrastructure A6.6 Lot layout has regard to the agricultural class of the land

Performance criteria	Acceptable solution
Heritage	
P7 The development is designed with appropriate regard for preservation of cultural heritage	A7 Subdivision and likely future development does not alter the setting, context or views of items of environmental heritage or of a heritage conservation area
Siting of dwellings (not applicable to lots created for primary production under Clause 4.2 of the LEP)	
P8 Each proposed lot is suitable to enable dwellings to be safely and practically sited, serviced and accessed	A8.1 Location of building envelopes allows construction of access to the dwelling in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manual A8.2 Location of building envelopes does not require construction of future driveways over watercourses of Order 3 Stream or greater A8.3 Location of building envelopes does not require clearing of native vegetation to construct a future driveway A8.4 Building envelopes provide good residential amenity, solar access and sufficient useable land around the dwelling A8.5 Building envelopes are not located on land with a gradient exceeding 20%
P9 Lots are suitable for on-site management of effluent that does not create public health impacts or adversely impact quality of surface and ground waters	A9.1 Effluent disposal areas can be located on land with a gradient not exceeding 20% A9.2 Lots have a suitable soil type to permit on site treatment and disposal of effluent A9.3 Effluent disposal areas can be sited at least 100m from Order 3 (or greater) Stream and 40m from Order 1 or 2 Stream A9.4 Lots have an area of at least 2000m2
Movement networks	
P10 The development site is accessed via public roads that have adequate capacity to safely and efficiently service the development and other existing demand	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

Performance criteria	Acceptable solution
P11 The development has a safe, logical and efficient connection to a regional road or urban or village area	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P12 The road network provides opportunities for public transport	A12 Network routes and connections facilitate public transport
Rural landscape character	
P13 Subdivision does not impact adversely on significant views or landscape character	A13.1 Subdivision does not require construction of new roads on prominent ridgelines, hilltops or in other prominent locations within public vantage points A13.2 Layout of lots and roads is consistent with the existing pattern of subdivision A13.3 Building envelopes are not located on prominent ridgelines or hilltops or in highly visible locations
Resource protection	
P14 Subdivision does not reduce the productive potential of Regionally Significant Farmland or Class 1, 2 or 3 agricultural land* **An agricultural land capability and suitability assessment prepared by a suitably qualified person is submitted that demonstrates achievement of P14*	A14 Development does not subdivide contiguous areas of Regionally Significant Farmland or Class 1, 2 or 3 agricultural land
P15 Subdivision does not reduce the agricultural viability or potential of the subject site or adjoining land* **An agricultural land capability and suitability assessment prepared by a suitably qualified person is submitted that demonstrates achievement of P15*	A15.1 Building envelopes achieve minimum buffers as identified in Table C2.1 in Appendix C2 A15.2 Building envelopes are not located where they will sterilise productive land A15.3 Subdivision maintains paddocks in workable sizes A15.4 Lot layout maintains access to stock watering points and handling yards, flood refuges and shelter belts
P16 Subdivision does not sterilise potential mineral and extractive industry resources	A16 The subdivision is not located on land or adjacent to land mapped on the Significant Resource Map of the LEP as an identified or potential mineral and extractive industry resource

Performance criteria	Acceptable solution
P17 Subdivision location and layout will not adversely impact recognised water resources	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

2.4.2 Managing impacts from surrounding land uses

Performance criteria	Acceptable solution
Where development site is located within 400 metres of rail corridor	
P18 Future residents will not be subject to unacceptable impacts from rail noise or vibration and noise attenuation measures are not required to be provided through future house design and construction* * *A noise impact assessment (or other report as appropriate) will generally be required to demonstrate achievement of P18*	A18.1 Subdivision does not create lots where future dwellings are required to be sited within 60 metres of a rail corridor
Where development site is located within 1500 metres of hazardous, intrusive, offensive or noxious activities or land uses (including intensive agriculture, landfills, quarries, sawmills)	
P19 Residents will not be subject to impacts from surrounding land uses* * *A noise impact assessment (or other report as appropriate) will generally be required to demonstrate achievement of P19*	A19.1 Building envelopes achieve relevant buffers identified in Table C2.1 in Appendix C2
Buffers to agricultural activities	
P20 Residential development is not likely to impact on, or be impacted by, current and likely future land uses in the surrounding area* * *Achievement of P20 will generally need to be demonstrated through submission of a land use conflict risk assessment (LUCRA) prepared in accordance with the Department of Primary Industries 'Living and Working in Rural Areas' guidelines (2007)*	A20.1 Building envelopes achieve relevant buffers identified in Table C2.1 in Appendix C2
P21 Landscaping is used to buffer residential uses from surrounding land uses where required	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

Protection of Watercourses and Ecological Features

Performance criteria	Acceptable solution
Protection of watercourses	
P22 Design and layout of lots and roads does not create adverse impacts on ecological or hydrological values of watercourses and water bodies	A22.1 Subdivision layout minimises lot boundaries crossing watercourses A22.2 Subdivision layout avoids requirement for roads to cross watercourses A22.3 Natural drainage regimes are retained
P23 The location of future dwellings, buildings and structures is not likely to impact adversely on watercourses, water bodies or wetlands	A23.1 Building envelopes are set back a minimum of 100 metres from the top of bank of permanent watercourses (Order 3 Stream or greater) or water bodies and 40 metres from the top of bank of an Order 1 or 2 Stream A23.2 Building envelopes are set back a minimum of 100 metres from the edge of wetland
Protection of biological diversity, habitat and ecological values	
P24 Layout of lots and roads does not create unacceptable impact on ecological functions or biodiversity values	A24.1 Creation of building envelopes or creation of Asset Protection Zones does not require the clearing of native vegetation A24.2 Building envelopes and infrastructure are not located within a mapped ecological corridor A24.3 Building envelopes are sited to avoid clearing of extensive areas of native vegetation to achieve required bushfire Asset Protection Zones
P25 Subdivision layout facilitates protection of areas of significant habitat and ecological value	A25 Development site does not support endangered or threatened species or ecological communities as defined by the *Threatened Species Conservation Act 1995*
P26 Subdivision maintains or improves the ecological integrity, values and resilience of the site and its surrounds	A26 Development proposes environmental rehabilitation and enhancement activities where relevant, such as; • weed management including; Weeds of National Significance, declared noxious weeds and identified local environmental weeds

Performance criteria	Acceptable solution
	• mechanisms to protect and enhance Threatened or Endangered Species and Ecological Communities • protection, restoration, rehabilitation and stabilisation of riparian areas • protection, restoration, rehabilitation and re-establishment of corridors between significant habitat areas
Where development site is Core Koala Habitat (as defined by *State Environmental Planning Policy 44- Koala Habitat Protection*)	
P27 Development is consistent with the provisions of *State Environmental Planning Policy 44- Koala Habitat Protection*	A27 A Koala Plan of Management is prepared for the site which demonstrates koala habitat will be protected in accordance with the requirements of *State Environmental Planning Policy 44- Koala Habitat Protection*

2.4.3 Natural Hazards and Contaminated Land

Performance criteria	Acceptable solution
Bushfire	
P28 Buildings, residents, visitors and firefighters are not exposed to unacceptable risk from bushfire hazard	A28.1 The development site does not include land that is mapped as bushfire prone land OR **Where development site includes land that is mapped as bushfire prone land:** A28.2 The subdivision complies with the relevant provisions of the Rural Fire Service publication 'Planning for Bushfire Protection' 2006 or any superseding guideline
Flood	
P29 Future buildings, structures and persons on the development site are not exposed to unacceptable risk from flooding	A29.1 Building envelopes are not located on land prone to flooding from inundation or overland flow OR **Where a building envelope is proposed on land that is mapped as or known to be prone to flooding:** A29.2 A report is submitted by a suitably qualified person that demonstrates a future dwelling can

Performance criteria	Acceptable solution
	practically achieve a floor level of at least the level of a 100 year ARI flood event plus 0.5 metres freeboard
Geotechnical stability	
P30 Future dwellings, buildings, structures and persons on the development site are not exposed to unacceptable risk from landslip or mass movement	A30.1 Building envelopes are not located on land that displays evidence of landslip or mass movement OR A30.2 A report is submitted by suitably qualified engineer that demonstrates all lots are geotechnically stable and suitable to accommodate dwellings
Contaminated land	
P31 Future residents and visitors will not be exposed to unacceptable risk from contamination	A31.1 Development site is not listed or mapped as contaminated land AND A31.2 Development is not on a site upon which activities that may cause contamination have, or are likely to have been, carried out OR A31.3 A report prepared by a suitably qualified person is submitted that demonstrates future residents and visitors will not be exposed to unacceptable risk from land contamination
P32 Future residents and visitors are not exposed to unacceptable risk from contamination from cattle dips	A32 Building envelopes are not located within 200 metres of a cattle dip (whether active, inactive or decommissioned)

2.4.4 Servicing and Infrastructure

Performance criteria	Acceptable solution
Water supply	
P33 Future dwellings can achieve adequate supply of potable water without drawing unreasonably from natural watercourses, water bodies or groundwater	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

Performance criteria	Acceptable solution
Electricity supply	
P34 All lots have access to reliable, cost effective power supply and are physically and legally able to be connected to the reticulated electricity network* **Achievement of P34 requires submission of:* • *Cost-benefit analysis that shows it is more cost effective to provide and operate stand-alone power than reticulated electrical power over a 30 year timeframe* • *Evidence that reticulated power can be provided in future if required, including; proposed route and easements where required*	A34 Provision is made for the connection of each lot to the reticulated electricity network to the satisfaction of Essential Energy
Telecommunications	
P35 Future dwellings can access constant, reliable telecommunications	A35 Provision is made for the connection of each lot to the fixed line telecommunications network to the satisfaction of Telstra and the NBN Co where applicable

2.4.5 Site access and road design

Performance criteria	Acceptable solution
Road design	
P36 New roads are of a suitable design and standard to meet demand generated by the development and likely future development and to protect significant site features	A36.1 Road design is in accordance with standards in the Northern Rivers Local Government Development & Design and Construction Manuals, and Council's Property Access and Addressing Management Plan A36.2 Road reserve width is increased where required to allow protection of significant native vegetation or watercourses, environmental restoration, visibility at intersections and property access points, future widening or other special requirements
P37 Road design provides a safe and efficient carriageway whilst minimising earthworks and avoiding unnecessary impacts on topography and landscape	A37.1 Roads are designed to minimise the volume and height of cut and fill A37.2 Road design avoids impacts on distinctive landmarks and topographical features such as ridgelines, hilltops and rock outcrops

Performance criteria	Acceptable solution
P38 Road design provides safe and efficient carriageway that does not impact unreasonably on the ecological or hydrological functions of watercourses and wetlands	A38.1 New roads do not cross watercourses and wetlands A38.2 New road reserves are set back a minimum of 40 metres from the top of bank of permanent watercourses (Order 3 Stream or greater), wetlands and water bodies A38.3 Where road drainage discharges directly to watercourses, drainage incorporates stormwater retention or velocity reducing devices A38.4 Road design and drainage system will not increase the likelihood of erosion and sedimentation
P39 Road design provides safe and efficient carriageway/routes of travel that does not impact unreasonably on significant vegetation or ecological values or resources	A39 Location and design of new roads does not require clearing of significant, iconic or distinctive character trees or stands of vegetation or habitat and corridors
P40 Road design facilitates public and school transport services	A40 The width of road reserve and formation is sufficient to allow bus movement, turnaround, set down and pick up, including school buses
Site access (where lots are accessed from an existing road)	
P41 All lots have suitable and safe vehicular access	A41 Site access is in accordance with the Northern Rivers Local Government Development & Design and Construction Manual and Council's Property Access and Addressing Management Plan

2.4.6 Additional guidelines for creation of lots for primary production under Clause 4.2 of the LEP

Performance criteria	Acceptable solution
Layout and usability of primary production lot	
P42 The primary production lot is suitable for agricultural purposes	A42.1 The primary production lot has an area of flood free land suitable to site agricultural infrastructure and livestock A42.2 The primary production lot will not create additional water access rights A42.3 The lot shape and dimensions are suitable for the intended agricultural use

Performance criteria	Acceptable solution
Use and suitability of residual lot	
P43 The residual lot is suitable to accommodate a dwelling that will not create potential for land use conflict	A43.1 The residual lot meets the minimum lot size as shown on the Lot Size Maps AND **Where residual lot supports an existing dwelling:** A43.2 Dwelling location complies with the provisions of this section OR **Where residual lot does not have an existing dwelling:** A43.3 A building envelope is identified that complies with the provisions of this section

2.4.7 Additional guidelines for boundary adjustments

Performance criteria	Acceptable solution
P44 Boundary adjustments do not create an illegal situation or result in increased risk from natural hazards	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P45 Boundary adjustment results in an improved circumstance in regard to agricultural use of the land, land management or buffering to intrusive land uses	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

3 Subdivision in rural residential areas

3.1 Application

This section applies to subdivision of land in Zones RU4 Primary Production Small Lots and R5 Large Lot Residential. In designing subdivisions and preparing development applications reference should also be made to the relevant provisions of the Kyogle LEP 2012, including; Clause 2.6, Clause 4.1, Clause 4.1AA, Clause 4.2, Clause 4.2B and the Lot Size Maps.

3.2 Exempt Development

Certain subdivisions (including boundary adjustments) may be permitted as Exempt Development (development that does not require development consent, subject to certain requirements). Reference should be made to any relevant State Environmental Planning Policy.

3.3 Objectives

a) To facilitate subdivision of land that achieves the applicable zone objectives.
b) To ensure subdivision of land in the 'Twelve Preferred Areas' meet the provisions and objectives of the Structure Plan[1].
c) To provide for the subdivision of rural land (small lots) to respond to changing agricultural circumstances and to facilitate additional rural settlement in appropriate locations.
d) To ensure that subdivision of rural residential land preserves agricultural viability and potential and avoids fragmentation of Regionally Significant Farmland[2] and Class 1, 2 or 3 agricultural land[3].
e) To ensure subdivision for rural residential purposes achieves adequate buffers to agricultural activities and does not create the potential for land use conflict.
f) To ensure that subdivision design responds appropriately to site features and constraints.
g) To ensure that future residents, visitors and workers are not exposed to unacceptable risk from natural hazards and contaminated land.
h) To ensure the protection and preservation of natural resources, biological diversity, water courses, water bodies, wetlands, significant native vegetation, habitat and corridors.
i) To encourage subdivision design that has a permeable network of streets that maximise opportunities for walking and cycling.
j) To ensure the preservation of cultural heritage.
k) To protect the character of the rural landscape.

[1]*Kyogle Structure Plan for Twelve Preferred Areas, Version C December 2007*

[2]*As defined by the Northern Rivers Farmland Protection Project (Department of Infrastructure, Planning and Natural Resources and Department of Primary Industries), 2005*

[3]*As mapped on Rural Land Capability maps produced by the NSW Department of Land and Water Conservation*

3.4 Development guidelines for the Twelve Preferred Areas

The 'Twelve Preferred Areas' are twelve areas in the following locations that were rezoned as Non-Urban 1C through Kyogle Local Environmental Plan No. 19:

- Bonalbo
- Cawongla
- Cawongla (Oxbow Road)
- Geneva
- Homeleigh
- Mallanganee
- Mummulgum
- Runnymede Road
- Old Bonalbo
- Tabulam
- Wiangaree
- Woodenbong

Development guidelines for subdivision of land in these areas are provided within the Kyogle Structure Plan for Twelve Preferred Areas.

3.5 Development guidelines for all other land in Zones RU4 and R5

3.5.1 Subdivision Design

Note: the Acceptable Solutions in the tables below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot, meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Lot size	
P1 The size of lots facilitates achievement of the objectives of the Zone	A1 Lots are at least the minimum size shown on the Lot Size Maps in the LEP
Lot shape, orientation and dimensions	
P2 The dimensions and shape of lots are suitable to achieve good residential amenity and rural residential use of the property and access via a right of carriageway is only utilised where it is not possible or practical to provide road frontage	A2.1 The frontage to depth ratio of lots does not exceed 1:2.5 A2.2 Lots are at least 25 metres wide at road frontage and/or mid-point of long axis A2.3 All lots have frontage to a public road

Performance criteria	Acceptable solution
P3 Orientation of lots facilitates good residential amenity	A3 Lot layout avoids lots that are entirely located on south or west facing slopes
Rear lots (hatchet/battleaxe lots)	
P4 Rear lots are suitable for siting of buildings and access handles permit vehicular access and provision of services	A4.1 The area of rear lots (not including the area of the access handle) is at least the minimum lot size shown on the minimum lot size maps in the LEP A4.2 Rear lots have an access handle of minimum 7 metres width designed in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manuals
Site features and constraints	
P5 The subdivision layout responds appropriately to the topography and natural features of the site and its surrounds	A5.1 No lots consist entirely of land with a slope exceeding 15% A5.2 Lot size is increased as slope increases A5.3 Lot size and layout facilitates retention of significant vegetation
Siting of dwellings	
P6 Each proposed lot is suitable to enable dwellings to be safely and practically sited, serviced and accessed	A6.1 Location of building envelopes allows construction of access to the dwelling in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manuals A6.2 Location of building envelopes does not require construction of future driveways over watercourses of Order 3 Stream or greater A6.3 Location of building envelopes does not require clearing of native vegetation to construct a future driveway A6.4 Building envelopes allow good residential amenity, solar access and sufficient useable land for future dwellings A6.5 Building envelopes are not located on land with a gradient exceeding 20%

Performance criteria	Acceptable solution
Movement networks	
P7 Public roads servicing the development have adequate capacity and capability to safely and efficiently service the development and other existing users	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P8 The development is provided with a safe, logical and efficient connection to a regional road or urban centre	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P9 The movement network does not compromise development (and transport networks) of adjoining land	A9 The movement network facilitates future extension of roads into adjoining properties that are zoned for increased development density
P10 The development provides an efficient and permeable movement network that allows people to move efficiently around and through the subdivision	A10.1 Development does not include cul-de-sacs, except where they provide access to lots that adjoin a property that is not zoned to permit increased density A10.2 Pedestrian and cyclist network provides direct connections to adjoining or nearby schools, activity centres, community facilities, retail nodes and open space A10.3 Network routes and connections allow efficient routes for public transport (including school buses)

3.5.2 Managing Impacts from Surrounding Land Uses

Performance criteria	Acceptable solution
Where development site is within 400 metres of rail corridor	
P11 Future residents will not be subject to impacts from rail noise or vibration and noise attenuation measures are not required to be provided through future house design and construction * *A noise impact assessment (or other report as appropriate) will generally be required to demonstrate achievement of P11*	A11.1 Subdivision does not create lots where future dwellings are required to be sited within 60 metres of a rail corridor
Where development site is within 1500 metres of hazardous, intrusive, offensive or noxious activities or land uses (including industrial activities, landfills, quarries, sawmills)	

Performance criteria	Acceptable solution
P12 Future residents will not be subject to impacts from surrounding land uses* * *A noise impact assessment (or other report as appropriate) will generally be required to demonstrate achievement of P12*	A12.1 Building envelopes achieve buffers or setbacks identified in Table C2.1 in Appendix C2
Buffers to agricultural activities	
P13 The development is not likely to impact on, or be impacted by, current and likely future land uses in the surrounding rural area* * *Achievement of P13 will generally need to be demonstrated through submission of a land use conflict risk assessment (LUCRA) prepared in accordance with the Department of Primary Industries 'Living and Working in Rural Areas' guidelines (2007)*	A13.1 Building envelopes achieve relevant buffers identified in Table C2.1 in Appendix C2

3.5.3 Protection of Watercourses and Ecological Features

Performance criteria	Acceptable solution
Protection of watercourses	
P14 Design and layout of lots and roads does not create adverse impacts on ecological or hydrological values of watercourses and water bodies	A14.1 Subdivision layout seeks to retain watercourses in single lots and avoids lot boundaries crossing watercourses A14.2 Subdivision layout avoids requirement for roads to cross watercourses A14.3 Natural drainage regimes are retained
P15 The likely location of future dwellings, buildings and structures is not likely to impact adversely on watercourses, water bodies or wetlands	A15.1 Building envelopes are set back a minimum of 100 metres from the top of bank of permanent watercourses (Order 3 Stream or greater) or water bodies and 40 metres from the top of bank of an Order 1 or 2 Stream

Performance criteria	Acceptable solution
	A15.2 Building envelopes are set back a minimum of 100 metres from the edge of wetland
Protection of biological diversity, habitat and ecological values	
P16 Layout of lots, roads and building envelopes does not create unacceptable impact on ecological functions or biodiversity values	A16.1 Establishment of building envelopes or Asset Protection Zones does not require the clearing of native vegetation A16.2 Building envelopes and infrastructure are not located within a mapped ecological corridor A16.3 Development site does not support endangered or threatened species or ecological communities as defined by the *Threatened Species Conservation Act 1995*
P17 Subdivision layout facilitates protection of areas of significant habitat and ecological value	A17 Contiguous areas of native vegetation are retained in single lots
P18 Subdivision improves the ecological integrity, values and resilience of the site and its surrounds	A18 Development proposes environmental rehabilitation and enhancement activities where relevant, such as; • weed management including; Weeds of National Significance, declared noxious weeds and local environmental weeds • mechanisms to protect and enhance Threatened or Endangered Species and Ecological Communities • protection, restoration, rehabilitation and stabilisation of riparian areas • protection, restoration, rehabilitation and re-establishment of corridors between significant habitat areas
Where development site is Core Koala Habitat (as defined by *State Environmental Planning Policy 44- Koala Habitat Protection*)	
P19 Development is consistent with the provisions of *State Environmental Planning Policy 44- Koala Habitat Protection*	A19 A Koala Plan of Management is prepared for the site which demonstrates koala habitat will be protected in accordance with the requirements of *State Environmental Planning Policy 44- Koala Habitat Protection*

3.5.4 Natural Hazards and Contaminated Land

Performance criteria	Acceptable solution
Bushfire	
P20 Buildings, residents, visitors and firefighters are not exposed to unacceptable risk from bushfire hazard	A20.1 The development site does not include land that is mapped as bushfire prone land OR **Where development site includes land that is mapped as bushfire prone land:** A20.2 The subdivision complies with the relevant provisions of the Rural Fire Service publication 'Planning for Bushfire Protection' 2006 or any superseding guideline
Flood	
P21 Future buildings, structures and persons on the development site are not exposed to unacceptable risk from flooding	A21.1 Building envelopes are not located on land prone to flooding from inundation or overland flow OR **Where a building envelope is proposed on land that is mapped as or known to be prone to flooding:** A21.2 A report is submitted by a suitably qualified person that demonstrates a future dwelling can practically achieve a floor level of at least the level of a 100 year ARI flood event plus 0.5 metres freeboard
Geotechnical stability	
P22 Future dwellings, buildings, structures and persons on the development site are not exposed to unacceptable risk from landslip or mass movement	A22.1 Building envelopes are not located on land that displays evidence of landslip or mass movement OR A22.2 A report is submitted by suitably qualified engineer that demonstrates all lots are geotechnically stable and suitable to accommodate dwellings
Contaminated land	
P23 Future residents and visitors will not be exposed to unacceptable risk from contamination	A23.1 Development site is not listed or mapped as contaminated land AND A23.2 Development is not on a site upon which activities that may cause contamination have, or are likely to have been, carried out

Performance criteria	Acceptable solution
	OR A23.3 A report prepared by a suitably qualified person is submitted that demonstrates future residents and visitors will not be exposed to unacceptable risk from land contamination
P24 Future residents and visitors are not exposed to unacceptable risk from contamination from cattle dips	A24 Building envelopes are not located within 200 metres of a cattle dip (whether active, inactive or decommissioned)

3.5.5 Servicing and Infrastructure

Performance criteria	Acceptable solution
Sewerage (where development site is in an area serviced by reticulated sewerage or where connection is available at reasonable cost)	
P25 Development makes suitable provision for collection, treatment and disposal of effluent	A25 The development is serviced by the reticulated sewerage system in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manual
Effluent management (where development site is not in an area serviced by reticulated sewerage or where connection is not available at reasonable cost)	
P26 The development is suitable for on-site management of effluent that does not create public health impacts or adversely impact quality of surface and ground waters	A26.1 Effluent disposal areas are able to be located on land with a slope not exceeding 15% AND A26.2 Lots have a suitable soil type to permit on site treatment and disposal of effluent AND A26.3 Lots allow effluent disposal areas to be sited at least 100m from Order 3 (or greater) Stream and 40m from Order 1 or 2 Stream AND A26.4 Lots are at least 2000m^2 in area OR A26.5 Development utilises a package on-site sewage management system that meets relevant requirements

Performance criteria	Acceptable solution
Water supply	
P27 The development makes suitable arrangements for the supply of potable water to each lot without drawing unreasonably from watercourses, water bodies or groundwater	**Where development site is in a serviced area or where connection is available at reasonable cost:** A27.1 Each lot is serviced by the reticulated water supply network in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manuals OR **Where connection to reticulated water supply is not available:** A27.2 Each lot is self-sufficient for water
Stormwater Management	
P28 Appropriate provisions are made for the collection and management of stormwater	**Where development site is in a serviced area:** A28.1 Stormwater is discharged to the stormwater drainage network and is designed and constructed in accordance with the Northern Rivers Local Government Development & Design and Construction Manual OR **Where development site is not in a serviced area:** A28.2 Stormwater is effectively managed on site and does not contribute to flooding or nuisance on adjoining properties
P29 Subdivision design and stormwater management does not contribute to increased stormwater velocity, erosion and sedimentation or pollutant and nutrient loads for receiving waters	A29.1 The design of the subdivision and civil infrastructure minimises stormwater concentration and run-off A29.2 Subdivision design incorporates stormwater retention structures or areas on the subject site A29.3 Subdivision and civil design is in accordance with standards in the Northern Rivers Local Government Development & Design and Construction Manual
Solid Waste Management	
P30 Future residents will have convenient access to a waste management facility	A30 Development is in or adjacent to a current domestic waste collection service area

Performance criteria	Acceptable solution
Electricity supply	
P31 All lots have access to reliable, cost effective power supply and are physically and legally able to be connected to the reticulated electricity network* **Achievement of P34 requires submission of:* • *Cost-benefit analysis that shows it is more cost effective to provide and operate stand-alone power than reticulated electrical power over a 30 year timeframe* • *Evidence that reticulated power can be provided in future if required, including; proposed route and easements where required*	A31 Provision is made for the connection of each lot to the reticulated electricity network to the satisfaction of Essential Energy
Telecommunications	
P32 The dwelling must make suitable arrangements for the supply of constant, reliable telecommunications	A32 Provision is made for the connection of each lot to the fixed line telecommunications network to the satisfaction of Telstra and the NBN Co where applicable

3.5.6 Site access and road design

Performance criteria	Acceptable solution
Road design	
P33 New roads are of a suitable design and standard to meet demand generated by the development and likely future development	A33.1 Roads standards are in accordance with standards in the Northern Rivers Local Government Development & Design and Construction Manuals A33.2 Road construction is in accordance with standards in the Northern Rivers Local Government Development & Design and Construction Manuals A33.3 Road reserve width is increased where required to allow protection of significant native vegetation or watercourses, environmental restoration, visibility at intersections and property access points, future widening or other special requirements
P34 Road design minimises earthworks and impacts on topography and landscape	A34.1 Roads are designed to minimise the amount and height of cut and fill

Performance criteria	Acceptable solution
	A34.2 Road design avoids impacts on distinctive landmarks and topographical features such as ridgelines, hilltops, rock outcrops
P35 Design of roads minimises impacts on the ecological or hydrological functions of watercourses and wetlands	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P36 Road design does not impact unreasonably on the ecological values or resources of the site	A36 Road alignment and design avoids the need to clear existing significant, iconic or distinctive trees or stands of vegetation
P37 Road design does not significantly alter natural drainage regimes or groundwater profiles and does not create nuisance through disposal of stormwater	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P38 Road design facilitates public and school transport services	A38.1 The width of road reserve and formation is sufficient to allow for bus movement, turnaround, set down and pick up, including school buses A38.2 Where site is on a bus route bus stop widenings are provided in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manuals
P39 Road design facilitates walking and cycling	A39 The width of road reserve and carriageway is sufficient to allow is sufficient to provide opportunities for walking and cycling
P40 Development provides suitable opportunities for walking and cycling	A40 Paths are provided in accordance with the Northern Rivers Local Government Development & Design and Construction Manuals
P41 Where site is in or adjacent to an area serviced by a domestic waste collection service, road design permits servicing by waste collection vehicles	A41 Road design is in accordance with Northern Rivers Local Government Development & Design and Construction Manuals
P42 Street lighting is provided where appropriate	P42 Street lighting is provided at each intersection created by the subdivision
Site access (where lots are accessed from an existing road)	
P43 All lots have safe and suitable vehicular access	A43 Site access is in accordance with the Northern Rivers Local Government Development & Design and

Performance criteria	Acceptable solution
	Construction Manual and Council's Property Access and Addressing Management Plan
Landscaping of road reserves	
P44 Landscaping of road reserves responds to the site and its locality and contributes to attractive, safe and comfortable streets	A44.1 Landscaping of road reserves achieves: • Shaded and attractive streets • Retention of significant existing vegetation • Safe sight lines for pedestrians, cyclists and motorists • Unrestricted pedestrian access A44.2 A landscape concept plan is submitted that identifies planting locations, species and indicative planting methods
P45 Road and services design makes allowance for installation of street trees	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P46 Street trees do not compromise safety or interfere with provision or maintenance of services and utilities	A46 Location and species of street trees takes into account underground and overhead services and sight lines

4 Residential subdivision in urban and village areas

4.1 Application

This section applies to subdivision of land in Zones R1 General Residential, R3 Medium Density Residential, B2 Local Centre, B4 Mixed Use, RU5 Village and RE2 Private Recreation for the purposes of residential development. In designing subdivisions and preparing development applications reference should also be made to the relevant provision of the Kyogle LEP 2012, including; Clause 2.6, Clause 4.1 and the Lot Size Maps.

4.2 Exempt and Complying Development

Certain subdivision (including minor boundary adjustments) is permitted as Exempt Development (development that does not require development consent, subject to certain requirements). Reference should be made to any relevant State Environmental Planning Policy.

Certain strata subdivision of buildings is permitted as Complying Development (minor development which does not require development consent, but can be certified by Council or a private certifier). Reference should be made to any relevant State Environmental Planning Policy.

4.3 Objectives

a) To facilitate the subdivision of land that achieves the applicable zone objectives.
b) To ensure subdivisions are integrated with existing urban areas.
c) To ensure that subdivision design is responsive to its site and surroundings.
d) To ensure that lots created for residential purposes will allow the siting and construction of dwellings with good residential amenity that integrate with the surrounding urban environment.
e) To ensure subdivision makes efficient use of infrastructure and minimises life cycle costs.
f) To ensure that future residents, visitors and workers are not exposed to unacceptable risk from natural hazards or contaminated land.
g) To encourage subdivision design that has a permeable network of streets that permit efficient movement of vehicles and that maximise opportunities for walking and cycling.
h) To ensure the protection and preservation of natural resources, biological diversity, watercourses, wetlands, significant native vegetation, habitat and corridors.
i) To protect cultural heritage.

4.4 Structure planning

4.4.1 Application

This part applies to subdivisions that will, or have the potential to, result in more than 10 new lots. Applications for subdivisions of this scale must demonstrate how the development is consistent with

the desired pattern of development, how it links with existing urban form, including the transport network, and how the development will be delivered including supporting infrastructure. Structure planning is the preferred to way to design subdivisions of this scale to ensure they are responsive to their site and surroundings and will result in high quality urban outcomes. Where the development site is part of an urban release area for which a development control plan has been drafted, this part will not apply.

4.4.2 Desired outcomes for development subject to structure plan requirements

A structure plan or master plan is submitted that provides for all of the following:

1. A staging plan for the timely and efficient release of development sites that makes provision for necessary infrastructure and delivery sequencing.
2. A pattern of development that is consistent with the desired pattern of development and that responds to site features and constraints including slope, topography, natural hazards, significant existing vegetation, watercourses and cultural heritage.
3. An overall transport movement hierarchy showing the major circulation routes and connections to achieve an efficient and safe movement system for private vehicles, public transport, pedestrians and cyclists.
4. A pattern of streets and paths that maximises permeability and opportunities for walking and cycling within the development and to facilitate access to adjoining urban areas.
5. Development design that facilitates protection of riparian areas and remnant vegetation and enhances their resilience and integrity through weed control and revegetation measures.
6. An overall landscape strategy for the development including planting theme, street trees, treatment of visually prominent locations and open space.
7. A network of passive and active open space that facilitates high standards of recreation and residential amenity.
8. Measures to protect watercourses including stormwater and water quality management controls.
9. Identification of sites for appropriate neighbourhood commercial and retail uses and community facilities
10. An assessment of the need for additional community facilities and provisions to deliver these facilities.

4.5 Development guidelines

Note: the Acceptable Solutions in the tables below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot, meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

4.5.1 Subdivision Design

Performance criteria	Acceptable solution
Size and design of lots (where 500m^2 minimum lot size applies)	
P1 The size of lots facilitates achievement of the objectives of the Zone	A1 Lots are at least the minimum size shown on the Lot Size Maps in the LEP
P2 A range of lot sizes are proposed to provide housing choice	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P3 The dimensions and shape of lots are suitable to achieve good residential amenity, permit vehicular access and manoeuvring and do not unduly constrain house design and siting options	A3.1 The frontage to depth ratio of lots does not exceed 1:4 A3.2 Lots have a minimum road frontage of 15 metres and a minimum width at the mid-point of 15 metres A3.3 Lots can accommodate a building envelope of 200m^2 A3.4 All lots have frontage to a public road
P4 Rear lots are suitable for siting of buildings and access handles permit vehicular access and provision of services	A4.1 Rear lots have a minimum site area of 600m^2 excluding the area of the access handle A4.2 Rear lot access handles have a minimum width of 5 metres and a minimum carriage way width of 3 metres A4.3 No more than two lots are serviced by an access handle
Size and design of small lots (where no minimum lot size applies)	
P5 The size of lots facilitates achievement of the objectives of the Zone	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P6 The dimensions and shape of lots are suitable to; • achieve good residential amenity;	A6.1 Lots have a minimum width[1] of 6 metres [1]Lot width is measured from the mid-point of the longest boundary to the mid-point of the opposite longest boundary

Performance criteria	Acceptable solution
• protect the amenity of adjoining residential land or dwellings; • facilitate provision of services and infrastructure; • facilitate practical siting of a dwelling and; • achieve practical access to a future dwelling.	A6.2 All lots (excluding rear lots) will permit the siting of a dwelling that complies with the provisions of Table C11.1 in Appendix C11 of Chapter 11 of this DCP[2]. A6.3 All rear lots will permit the siting of a dwelling that complies with the provisions of Table C11.2 in Appendix C11 of Chapter 11 of this DCP[2]. [2]Achievement of A6.2 or 6.3 will generally need to be demonstrated through submission of a site plan showing conceptual building envelopes that comply with the provisions of Chapter 11.
P7 All lots can be lawfully and practically accessed and serviced	A7.1 All lots have frontage to a public road A7.2 Rear lot access handles have a minimum width of 5 metres and a minimum carriageway width of 3 metres OR A7.3 Where rear lots share an access handle that access handle has a minimum width of 5 metres and a minimum carriageway width of 3 metres and all lots have benefit of a reciprocal right of carriageway over the handle
Site features and constraints	
P6 The subdivision layout responds appropriately to the topography and natural features of the site and its surrounds	A6.1 Building envelopes are not sited on land with a gradient exceeding 20% A6.2 Lot size is increased in response to slope A6.3 Existing vegetation of significance is retained
Where development involves the subdivision of land on which an item of environmental heritage is situated or land that is within a heritage conservation area	
P7 Subdivision does not adversely impact on the heritage significance of items of environmental heritage or the heritage conservation area	**Where site features an item of environmental heritage:** A7.1 Subdivision and likely future development does not alter the setting or views of the heritage item or heritage conservation area **Where site is within a heritage conservation area:** A7.2 Subdivision is consistent with the historical pattern of subdivision

Performance criteria	Acceptable solution
Where development involves the subdivision of land that adjoins a heritage item	
P8 Subdivision does not adversely impact on the heritage significance of items of environmental heritage	A8 Subdivision and likely future development does not alter the setting or views of the heritage item or site
Movement networks	
P9 Public roads servicing the development have adequate capacity and capability to safely and efficiently service the development and other existing demand	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P10 The development is provided with a safe, logical and efficient connection to a regional road or urban centre	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P11 The movement network does not compromise development (and transport networks) of adjoining land	A11 The movement network facilitates future extension of roads into adjoining properties that are zoned for increased development density
P12 The development provides a permeable street network that facilitates safe, efficient and convenient movement by public transport, walking and cycling	A12.1 Development does not include cul-de-sacs, except where they provide access to lots that adjoin a property that is not zoned to permit increased density A12.2 Pedestrian and cyclist network provides direct connections to adjoining or nearby schools, activity centres, community facilities, retail nodes and open space A12.3 Network routes and connections allow efficient routes for public transport (including school buses)

4.5.2 Managing Impacts from surrounding land uses

Performance criteria	Acceptable solution
Where development site is located within 60 metres of rail corridor	
P13 Future residents will not be subject to impacts from rail noise or vibration and does not require noise attenuation measures to be provided through future house design and construction*	A13.1 Subdivision does not create lots where future dwellings are required to be sited within 60 metres of a rail corridor

Performance criteria	Acceptable solution
* *A noise impact assessment (or other report as appropriate) is generally required to demonstrate achievement of P13*	
Where development site is located within 500 metres of hazardous, intrusive, offensive or noxious activities or land uses (including industrial activities, landfills, quarries, sawmills)	
P14 Future residents will not be subject to impacts from surrounding land uses* * *A noise impact assessment (or other report as appropriate) is generally required to demonstrate achievement of P14*	A14.1 Building envelopes achieve buffers or setbacks identified in Table C2.1 in Appendix C2
Buffers to agricultural activities	
P15 The development is not likely to impact on, or be impacted by, current and likely future land uses in the surrounding rural area* * *Achievement of P15 will generally need to be demonstrated through submission of a land use conflict risk assessment (LUCRA) prepared in accordance with the Department of Primary Industries 'Living and Working in Rural Areas' guidelines (2007)*	A15.1 Building envelopes achieve relevant buffers identified in Table C2.1 in Appendix C2

4.5.3 Protection of Watercourses and Ecological Values

Performance criteria	Acceptable solution
Protection of watercourses	
P16 Design and layout of lots, roads, drainage and open space network protects the ecological and hydrological values of watercourses, water bodies and wetlands	A16.1 Subdivision layout avoids residential lot boundaries crossing watercourses A16.2 Subdivision layout avoids or minimises requirement for driveways to cross watercourses A16.3 Watercourses that are classified Order 3 Streams and above are placed in public ownership and included in road or drainage reserve

Performance criteria	Acceptable solution
	A16.4 Roads and infrastructure (except crossing structures) are set back a minimum of 40 metres from the top of bank of watercourses A16.5 Roads and infrastructure are set back a minimum of 100 metres from the edge of wetland
Protection of ecological values	
P17 Subdivision layout retains and does not isolate or fragment areas of significant habitat and ecological value	A17 The development site does not support endangered or threatened species or ecological communities as defined by the *Threatened Species Conservation Act 1995*
P18 Layout of lots and roads does not create unacceptable impact on ecological functions or biodiversity values	A18.1 Creation of building envelopes or bushfire Asset Protection Zones does not require the clearing of native vegetation A18.2 Construction of roads and provision of services and infrastructure does not require clearing of native vegetation

4.5.4 Hazard and Risk

Performance criteria	Acceptable solution
Flood	
P19 Development complies with the provisions of Clause 6.2 of the LEP	A19.1 The development site is not prone to flooding from inundation or overland flow OR **Where development is proposed on flood prone land:** A19.2 A report is submitted by a suitably qualified person that demonstrates the level of proposed lots is at least the level of a 100 year ARI flood event OR **Where development is proposed on a lot within the Flood Planning Area shown on the LEP Flood Planning Map:** A19.3 The development complies with the provisions of the Development Control Plan in the Kyogle Council Floodplain Risk Management Plan 2009

Performance criteria	Acceptable solution
Bushfire	
P20 Buildings, residents, visitors and firefighters are not exposed to unacceptable risk from bushfire	A20.1 Development does not include land that is mapped as bushfire prone land OR A20.2 Lot layout and location of roads and building envelopes comply with the relevant provisions of the Rural Fire Service publication 'Planning for Bushfire Protection' 2006 or any superseding guideline
Geotechnical stability	
P22 Future dwellings, buildings, structures and persons on the development site are not exposed to unacceptable risk from landslip or mass movement	A22.1 Building envelopes are not located on land that displays evidence of landslip or mass movement OR A22.2 A report is submitted by suitably qualified engineer that demonstrates all lots are geotechnically stable and suitable to accommodate dwellings
Contaminated land	
P23 Future residents and visitors will not be exposed to unacceptable risk from contamination	A23.1 Development site is not listed or mapped as contaminated land AND A23.2 Development is not on a site upon which activities that may cause contamination have, or are likely to have been, carried out OR A23.3 A report prepared by a suitably qualified person is submitted that demonstrates future residents and visitors will not be exposed to unacceptable risk from land contamination

4.5.5 Servicing and Infrastructure

Performance criteria	Acceptable solution
Sewerage	
P23 Development makes suitable provision for collection, treatment and disposal of effluent	**Where development site is in an area serviced by reticulated sewerage or where connection is available at reasonable cost:**

Performance criteria	Acceptable solution
	A23 The development is serviced by the reticulated sewerage system in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manuals
Electricity supply	
P24 All lots have access to reliable, cost effective power supply and are physically and legally able to be connected to the reticulated electricity network* **Achievement of P24 requires submission of:* • *Cost-benefit analysis that shows it is more cost effective to provide and operate stand-alone power than reticulated electrical power over a 30 year timeframe* • *Evidence that reticulated power can be provided in future if required, including; proposed route and easements where required*	A24.1 Provision is made for the connection of each lot to the reticulated electricity network to the satisfaction of Essential Energy A24.2 In any new streets the electrical reticulation is to be underground with pad mounted substations located within the road reserve
Telecommunications	
P25 The development must make suitable arrangements for the supply of constant, reliable telecommunications to each lot	A25 Provision is made for the connection of each lot to the fixed line telecommunications network to the satisfaction of Telstra and the NBN Co where applicable
Water supply	
P26 The development makes suitable arrangements for the supply of potable water to each lot without drawing unreasonably from watercourses, water bodies or groundwater	**Where development site is in an area serviced by reticulated water or where connection is available at reasonable cost:** A26 Each lot is connected to the reticulated water supply network in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manuals
Stormwater Management	
P27 Appropriate provisions are made for the collection and management of stormwater on site that does not contribute to flooding or nuisance on adjoining properties	**Where development site is in an area serviced by a stormwater drainage network:** A27 Stormwater is discharged to the stormwater drainage network in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manuals
P28 Subdivision design and stormwater management does not contribute to increased	A28.1 Subdivision design incorporates stormwater retention structures or areas on the subject site

Performance criteria	Acceptable solution
erosion and sedimentation or pollutant and nutrient loads in receiving waters	A28.2 The design of the subdivision and civil infrastructure minimises stormwater concentration and run-off A28.3 Subdivision and civil design is in accordance with standards in the Northern Rivers Local Government Development & Design and Construction Manuals
Solid Waste Management	
P29 All lots are capable of being serviced by a domestic waste collection service	A29 Development is in or adjacent to a current domestic waste collection service area

4.5.6 Site access and road design

Performance criteria	Acceptable solution
Road design	
P30 New roads are of a suitable design and standard to meet demand generated by the development and likely future development	A30.1 Roads standards meet the requirements of the Northern Rivers Local Government Development & Design and Construction Manuals A30.2 Road construction is in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manual A30.3 Road reserve width is increased where required to allow protection of significant native vegetation or watercourses, environmental restoration, visibility at intersections and property access points, future widening or other special requirements
P31 Road design minimises earthworks and impacts on topography and landscape	A31.1 Roads are designed to minimise the amount and height of cut and fill A31.2 Road design avoids impacts on distinctive landmarks and topographical features such as ridgelines, hilltops, rock outcrops
P32 Design of roads minimises impacts on the ecological or hydrological functions of watercourses and wetlands	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

Performance criteria	Acceptable solution
P33 Road design does not impact unreasonably on the ecological values or resources of the site	A33 Roads alignment and design avoids the need to clear existing significant, iconic or distinctive trees or stands of vegetation
P34 Road design permits servicing by domestic waste collection vehicles	A34 Road design is in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manuals
P35 Adequate street lighting is provided to service the development	P35 Street lighting is provided at each intersection created by the subdivision and at a distance no less than 100m apart throughout the subdivision
Site access (where lots are accessed from an existing road)	
P36 All lots have safe and suitable vehicular access	A36 Site access is in accordance with the Northern Rivers Local Government Development & Design and Construction Manual and Council's Property Access and Addressing Management Plan
Transport Mode Choice	
P37 Road design facilitates public and school transport services	A37.1 The width of road reserve and formation is sufficient to allow for bus movement, turnaround, set down and pick up, in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manuals A37.2 Where site is on a bus route bus stop widenings are provided in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manual
P38 Road and path design facilitates opportunities for walking and cycling	A38.1 The width of road reserve and formation is sufficient to allow is sufficient to provide opportunities and infrastructure for walking and cycling A38.2 Pedestrian and cycle paths and lanes are provided in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manual
Landscaping of road reserves	
P39 Landscaping of road reserves responds to its site and locality and contributes to attractive, safe and comfortable streets	A39.1 Landscaping of road reserves achieves: • Shaded and attractive streets • Retention of significant existing vegetation

Performance criteria	Acceptable solution
	• Safe sight lines for pedestrians, cyclists and motorists • Unrestricted pedestrian access A39.2 A landscape concept plan is submitted that identifies planting locations, species and indicative planting methods
P40 Road and services design makes allowance for installation of street trees	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P41 Street trees do not compromise safety or interfere with provision or maintenance of services and utilities	A41 Location and species of street trees takes into account underground and overhead services and sight lines

4.5.7 Design and provision of open space

Development must make a contribution to provision of public open space either through dedication and embellishment in accordance with the following section or through monetary contribution as required by a s94 developer contributions plan.

Performance criteria	Acceptable solution
Provision of public open space	
P42 Future residents have convenient access to open space and facilities that provide good opportunities for recreation, exercise and social interaction	A42 The development provides public open space in accordance with Table C2.2 in Appendix C2
P43 Open space is suitably embellished and provides residents with an appropriate level of service	A43 Open space is embellished in accordance with Table C2.2 in Appendix C2
P44 Sites nominated for public open space are suitable for use as a park	A44.1 At least 90% of the park area is flood free A44.2 Open space does not function primarily as a drainage channel or stormwater retention area A44.3 Park does not include land with a gradient exceeding 10% (excluding watercourses)

Performance criteria	Acceptable solution
P45 Public open space has a high level of accessibility	A45.1 Open space is located on a cycle and pedestrian path network A45.2 Open space has frontage to a collector street and at least one other street A45.3 Open space is located centrally in the development
Design of public open space	
P46 Public open space has a high level of public surveillance	A46 A minimum 50% of the perimeter of open space is public road
P47 Landscape design is appropriate for the site and intended park function	A47.1 Landscaping of public open space: • achieves a coherent planting theme • retains existing vegetation of significance • protects and rehabilitates watercourses and wetlands • utilises a mix of trees, shrubs and groundcover planting of appropriate subtropical species • seeks to achieve shade cover of at least 25% of the area of the park A47.2 A landscape concept plan is submitted that identifies planting locations, species and indicative planting methods
P48 Parks are designed to have low maintenance requirements	A48.1 Planting scheme employs species that have low maintenance requirements A48.2 Planting scheme utilises shade trees and understorey planting to minimise areas of grass and opportunities for weed growth A48.3 Extensive areas of lawn are restricted to open play or activity areas A48.4 Watercourses and steep banks are planted with suitable species at adequate densities to achieve 100% vegetation cover to minimise erosion, weed growth and maintenance requirements
P49 Park design minimises opportunities for crime	A49 Park design incorporates Crime Prevention Through Environmental Design (CPTED) principles

4.5.8 Additional guidelines for boundary adjustments

Performance criteria	Acceptable solution
P50 The adjustment of a boundary or boundaries must: • not result in the creation of additional lots • be consistent with the subdivision pattern of the local area • be an improvement on the existing situation • not create an unlawful situation in terms of use of the land or existing buildings • not result in lots less than the minimum lot size	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

4.5.9 Additional guidelines for strata or community title subdivision

Performance criteria	Acceptable solution
P51 Subdivision of buildings (new and existing) does not result in an unlawful situation or structure that does not meet building, fire or health regulations	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P52 Individual units, dwellings and lots can function independently in terms of services, open space, vehicular access and parking and fire safety and evacuation	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

5 Subdivision for Commercial, Special use, Industrial and other non-residential purposes in urban and village areas

5.1 Application

This section applies to subdivision of land for the purposes of commercial, industrial, special use and other non-residential development. In designing subdivisions and preparing development applications reference should also be made to the relevant provision of the Kyogle LEP 2012, including; Clause 2.6, Clause 4.1 and the Lot Size Maps.

5.2 Exempt and Complying Development

Certain subdivision (including minor boundary adjustments) is permitted as Exempt Development (development that does not require development consent, subject to certain requirements). Reference should be made to any relevant State Environmental Planning Policy.

Certain strata subdivision of buildings is permitted as Complying Development (minor development which does not require development consent, but can be certified by Council or a private certifier). Reference should be made to any relevant State Environmental Planning Policy.

5.3 Objectives

a) To facilitate the subdivision of land that achieves the applicable zone objectives.
b) To provide for the subdivision of land to meet requirements of industry, commerce and special purposes.
c) To ensure that subdivision of land is responsive to its context and surroundings.
d) To ensure subdivision makes efficient use of infrastructure and minimises life cycle costs.
e) To ensure that future persons on the development site are not exposed to hazard and risk from bushfire, landslip, contaminated land or flooding.
f) To encourage subdivision design that has a permeable structure of streets that permits efficient transport movement including walking and cycling.
g) To ensure the protection and preservation of natural resources, biological diversity, water courses, wetlands, significant vegetation, habitat and corridors.
h) To ensure the protection of cultural heritage.

5.4 Development Guidelines

Note: the Acceptable Solutions in the tables below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot, meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

5.4.1 Subdivision Design

Performance criteria	Acceptable solution
Lot size	
P1 The size of lots facilitates achievement of the objectives of the Zone	A1.1 Lots are at least the minimum size shown on the Lot Size Maps in the LEP OR **Where no minimum lot size is given:** A1.2 Lot size is suitable to permit likely future development and land use including; siting and construction of buildings, provision of services and infrastructure, vehicular access, parking, landscaping and external operational areas
Lot shape and dimensions	
P2 Lots have sufficient area and dimensions to allow provision of services and infrastructure, siting of buildings and vehicular access, parking and manoeuvring	A2.1 Lots have a minimum road frontage of: • 25 metres for industrial land • 15 metres all other A2.2 The frontage to depth ratio of lots does not exceed 1:3 A2.3 Lots have a minimum average width of 30 metres A2.4 Lot shape and dimensions do not require vehicles to reverse onto public roads
Rear lots (hatchet/ battle axe lots)	
P3 Rear lots are only provided where no other options exist and lots have suitable area, dimensions and access handles to permit: • construction of buildings • parking, manoeuvring, storage and operational areas • vehicular access • provision of services	A3.1 Subdivision does not create rear lots

Performance criteria	Acceptable solution
Site features and constraints	
P4 The subdivision layout responds appropriately to the topography and natural features of the site and its surrounds	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Where development involves the subdivision of land on which an item of environmental heritage is situated	
P5 Subdivision does not adversely impact on the heritage significance of items of environmental heritage or the heritage conservation area	A5 Subdivision (and likely anticipated future development) does not alter the setting or views of the heritage item
Where development involves the subdivision of land that is within a heritage conservation area	
P6 Subdivision does not adversely impact the heritage significance of the heritage conservation area	A6 Subdivision is consistent with the historical pattern of subdivision and does not alter the setting or views of the conservation area
Where development involves the subdivision of land that adjoins a heritage item	
P7 Subdivision does not adversely impact on the heritage significance of items of environmental heritage	A7 Subdivision (and likely anticipated future development) does not alter the setting or view of the heritage item or site
Movement networks	
P8 Public roads servicing the development have adequate capacity and capability to safely and efficiently service the development and other existing service demand	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P9 The development is provided with a safe, logical and efficient connection to a regional road or urban centre	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P10 Access via a right of carriageway is only utilised where it is not possible or practical to provide road frontage	A10 All lots have frontage to a public road
P11 The movement network does not compromise development (and transport networks) of adjoining land	A11 The movement network facilitates future extension of roads into adjoining properties that are zoned for increased development density
P12 The development provides a permeable street network that facilitates safe, efficient and convenient movement by public transport, walking and cycling	A12.1 Development does not include cul-de-sacs, except where they provide access to lots that adjoin a property that is not zoned to permit increased density A12.2 Pedestrian and cyclist network provides direct connections to adjoining or nearby schools, activity

Performance criteria	Acceptable solution
	centres, community facilities, retail nodes and open space A12.3 Network routes and connections allow efficient routes for public transport (including school buses)

5.4.2 Buffers to surrounding land uses

Performance criteria	Acceptable solution
Where development site adjoins sensitive receivers (residential, aged care, educational establishment, hospital)	
P13 Future development is unlikely to impact adjoining sensitive land uses	A13 Subdivision provides a minimum 50 metre landscaped buffer between industrial land and adjoining sensitive receivers* **A landscape concept plan is submitted that details buffer planting scheme*
Where development site adjoins a rail corridor	
P14 Future development will be compatible with rail operations	A14.1 Subdivision does not create lots where future buildings cannot achieve required setbacks from rail corridor A14.2 Railway noise and vibration can be attenuated through future building design and construction

5.4.3 Protection of Watercourses and Ecological Values

Performance criteria	Acceptable solution
Protection of watercourses	
P15 Design and layout of lots, roads, drainage and open space network protects natural drainage patterns and the ecological or hydrological values of watercourses, water bodies and wetlands	A15.1 Subdivision layout avoids or minimises requirement for driveways to cross watercourses A15.2 Watercourses that are classified Order 3 Streams and above are placed in public ownership and included in road or drainage reserve

Performance criteria	Acceptable solution
	A15.3 Roads and infrastructure (except for required crossings) are set back a minimum of 40 metres from the top of bank of watercourses A15.4 Roads and infrastructure are set back a minimum of 100 metres from the edge of wetland
Protection of ecological values	
P16 Subdivision layout retains and does not isolate or fragment areas of significant habitat and ecological value	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P17 Location of infrastructure and roads does not create unacceptable impact on ecological functions or biodiversity values	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

5.4.4 Hazard and Risk

Performance criteria	Acceptable solution
Flood	
P18 Development complies with the provisions of Clause 6.2 of the LEP	A18.1 The development site is not prone to flooding from inundation or overland flow OR **Where development is proposed on flood prone land:** A18.2 A report is submitted by a suitably qualified person that demonstrates the level of proposed lots is at least the level of a 100 year ARI flood event OR **Where development is proposed on a lot within the Flood Planning Area shown on the LEP Flood Planning Map:** A18.3 The development complies with the provisions of the Development Control Plan in the Kyogle Council Floodplain Risk Management Plan 2009
Bushfire	
P19 Buildings, residents, visitors and fire fighters are not exposed to unacceptable risk from bushfire	A19.1 Development does not include land that is mapped as bushfire prone land

Performance criteria	Acceptable solution
	OR A19.2 Lot layout and location of roads and building envelopes comply with the relevant provisions of the Rural Fire Service publication 'Planning for Bushfire Protection' 2006 or any superseding guideline
Geotechnical stability	
P20 Future dwellings, buildings, structures and persons on the development site are not exposed to unacceptable risk from landslip or mass movement	A20.1 Building envelopes are not located on land that displays evidence of landslip or mass movement OR A20.2 A report is submitted by suitably qualified engineer that demonstrates all lots are geotechnically stable and suitable to accommodate dwellings
Contaminated land	
P21 Future persons on the development site will not be exposed to unacceptable risk from contamination	A21.1 Development site is not listed or mapped as contaminated land AND A21.2 Development is not on a site upon which activities that may cause contamination have, or are likely to have been, carried out OR A21.3 A report prepared by a suitably qualified person is submitted that demonstrates future residents and visitors will not be exposed to unacceptable risk from land contamination

5.4.5 Servicing and Infrastructure

Performance criteria	Acceptable solution
Sewerage	
P22 Development makes suitable provision for collection, treatment and disposal of effluent	**Where development site is in an area serviced by reticulated sewerage or where connection is available at reasonable cost:** A22 The development is serviced by the reticulated sewerage system in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manual

Performance criteria	Acceptable solution
Electricity supply	
P23 All lots have access to reliable, cost effective power supply and are physically and legally able to be connected to the reticulated electricity network* **Achievement of P23 requires submission of:* • *Cost-benefit analysis that shows it is more cost effective to provide and operate stand-alone power than reticulated electrical power over a 30 year timeframe* • *Evidence that reticulated power can be provided in future if required, including; proposed route and easements where required*	A23.1 Provision is made for the connection of each lot to the reticulated electricity network to the satisfaction of Essential Energy A23.2 In any new streets the electrical reticulation is to be underground with pad mounted substations within the road reserve
Telecommunications	
P24 The development must make suitable arrangements for the supply of constant, reliable telecommunications to each lot	A24 Provision is made for the connection of each lot to the fixed line telecommunications network to the satisfaction of Telstra and the NBN Co where applicable
Water supply	
P25 The development makes suitable arrangements for the supply of potable water to each lot without drawing unreasonably from watercourses, water bodies and groundwater	**Where development site is in an area serviced by reticulated water or where connection is available at reasonable cost:** A25 Each lot is serviced by the reticulated water supply network in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manuals
Stormwater Management	
P26 Appropriate provisions are made for the collection and management of stormwater	**Where development site is in a serviced area:** A26.1 Stormwater is discharged to the stormwater drainage network in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manuals OR **Where development site is not in a serviced area:** A26.2 Stormwater is effectively managed on site and does not contribute to flooding or nuisance on adjoining properties
P27 Subdivision design and stormwater management does not contribute to increased erosion, sedimentation or pollutant and nutrient loads on receiving waters	A27.1 Subdivision design incorporates stormwater retention structures or areas on the subject site

Performance criteria	Acceptable solution
	A27.2 Subdivision design includes gross pollutant traps and litter racks or screens where required A27.3 The design of the subdivision and civil infrastructure minimises stormwater concentration and run-off A27.4 Subdivision and civil design is in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manuals
Solid Waste Management	
P28 All lots are capable of being serviced by a waste collection service	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

5.4.6 Site access and road design

Performance criteria	Acceptable solution
Road design	
P29 New roads are of a suitable design and standard to meet demand generated by the development and likely future development	A29.1 Roads standards are in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manual A29.2 Road construction is in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manual A29.3 Road reserve width is increased where required to allow protection of significant native vegetation or watercourses, environmental restoration, visibility at intersections and property access points, future widening or other special requirements
P30 Road design minimises earthworks and impacts on topography and landscape	A30.1 Roads are designed to minimise the amount and height of cut and fill A30.2 Road design avoids impacts on distinctive landmarks and topographical features such as ridgelines, hilltops, rock outcrops

Performance criteria	Acceptable solution
P31 Design of roads minimises impacts on the ecological or hydrological functions of watercourses and wetlands	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P32 Road design does not impact unreasonably on the ecological values or resources of the site	A32 Road alignment and design avoids the need to clear significant, iconic or distinctive trees or stands of vegetation
P33 Road design permits servicing by domestic waste collection vehicles	A33 Road design is in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manual
Site access (where lots are accessed from an existing road)	
P34 All lots have safe and suitable vehicular access	A34 Site access is in accordance with the Northern Rivers Local Government Development & Design and Construction Manual and Council's Property Access and Addressing Management Plan
Transport Mode Choice	
P35 Road design facilitates public transport services	A35.1 The width of road reserve and formation is sufficient to allow for bus movement, turnaround, set down and pick up A35.2 Where site is on a bus route bus stop widenings are provided in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manual
P36 Road and path design facilitates opportunities for walking and cycling	A36.1 The width of road reserve and formation is sufficient to allow is sufficient to provide opportunities and infrastructure for walking and cycling A36.2 Pedestrian and cycle paths and lanes are provided in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manual
Landscaping of road reserves	
P37 Landscaping of road reserves responds to its locality and contributes to safe, attractive and comfortable streets	A37.1 Landscaping of road reserves achieves: • Shaded and attractive streets • Retention of significant existing vegetation • Safe sight lines for pedestrians, cyclists and motorists • Unrestricted pedestrian access

Performance criteria	Acceptable solution
	A37.2 A landscape concept plan is submitted that identifies planting locations, species and indicative planting methods
P38 Road and services design makes allowance for installation of street trees	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P39 Street trees do not compromise safety or interfere with provision or maintenance of services and utilities	A39 Location and species of street trees takes into account underground and overhead services and sight lines

5.4.7 Additional guidelines for boundary adjustments

Performance criteria	Acceptable solution
P40 The adjustment of a boundary or boundaries must: • not result in the creation of additional lots • be consistent with subdivision pattern of the local area • be an improvement on the existing situation • not create a situation where, as a result of the subdivision the use/s and/or building/s become unlawful • not result in lots less than the minimum lot size	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

5.4.8 Additional guidelines for strata title subdivision

Performance criteria	Acceptable solution
P41 Subdivision of new and existing buildings does not result in an unlawful situation or structure that does not meet building, fire, health regulations	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P42 Individual units, dwellings and lots can function independently in terms of services, open space, vehicular access and parking and fire safety and evacuation	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

APPENDIX C2

Table C2.1 Acceptable minimum buffer distances between dwellings and other land uses on adjoining or surrounding land not associated with proposal

Existing land use	Acceptable minimum distance to dwelling (metres)
Grazing of stock	50
Livestock Yards	200
Cropping, horticulture, cultivation	200
Piggeries- Housing and waste storage	500
Piggeries- Waste utilisation area	250
Feedlots- Yards and waste storage	500
Feedlots- Waste utilisation area	250
Poultry Farms- Sheds and waste storage	500
Poultry Farms- Waste utilisation area	250
Dairies- Sheds and waste storage	250
Dairies- Waste utilisation area	250
Other Intensive Livestock Operations	300
Intensive Horticulture	200
Greenhouse & Controlled Environment Horticulture	200
Macadamia De-husking	300
Bananas	150
Turf Farms	200
Animal boarding and training establishments	500
Rural Industries	500
Abattoirs	1000
Extractive Industries that does not involve blasting	500
Extractive Industry that involves blasting	1000
Waste disposal facility (landfill)	1000
Waste transfer facility	300
Sewage treatment works	400

Source: Department of Primary Industries; Living and Working in Rural Areas (2007)

Table C2.2 Provision of public open space

Requirements	Local park	District park
Development threshold for provision	40 additional residential lots (whether staged or not)	120 additional residential lots (whether staged or not)
Minimum area (excluding area utilised for drainage or stormwater management)	2,000m^2	20,000m^2
Minimum dimensions	40 metres	80 metres
Access via	Local access road	Collector road
Extent of road frontage (all road types)	Minimum 50% of perimeter	Minimum 50% of perimeter
Desirable site features	• Generally level or gently sloping • On a pedestrian or cycle path network • Existing suitable, mature trees	• Generally level or gently sloping • Views or vantage point • Can incorporate watercourses or environmental features • On a pedestrian or cycle path network • Adjacent or opposite community facility or activity centre
Embellishments	• Seating • Shade trees • Bollards to prevent vehicular access • Play equipment and soft fall • Bins	• Seating • Shelters including seating, tables and lights • Shade trees • BBQs • Play equipment and soft fall • Paths • Bollards to prevent vehicular access • Bubblers/taps • Bins • Toilets • Exercise equipment

CHAPTER 3 DWELLING HOUSES, RURAL WORKER'S DWELLINGS AND SECONDARY DWELLINGS

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6 INTRODUCTION

6.1 Application

This Chapter applies in preparing and assessing applications for development of **dwelling houses**, **rural worker's dwellings**, **secondary dwellings**, extensions and additions to existing dwelling houses, ancillary development and outbuildings in any zone where the development is permitted with consent under the Kyogle Local Environmental Plan 2012.

Additions and extensions to existing dwellings include detached buildings that are part of the existing dwelling, such as studios. Development ancillary to a dwelling house includes driveways, parking areas, retaining walls, pools, landscaping, stand-alone power systems of domestic scale and tennis courts. Outbuildings are buildings that are associated with a residential use including sheds, garages, carports, gazebos and greenhouses.

This Chapter does not apply to applications for Attached dwellings, Dual occupancies, Mixed use development, Multi dwelling housing, Residential Flat buildings, Semi-detached dwellings, Seniors housing, Shop-top housing, Group homes or Hostels.

6.2 Aims of Chapter 3

a) To provide development guidelines to assist the design of development proposals and preparation of development applications and the assessment of those applications.
b) To facilitate the development of dwelling houses, rural worker's dwellings, secondary dwellings and ancillary development that is consistent with the applicable zone objectives.
c) To facilitate the development of well-designed buildings that are adaptable, comfortable, efficient in their use of energy and water and are responsive to their site and surroundings.

2 DWELLING HOUSES AND RURAL WORKER'S DWELLINGS IN ZONES RU1, RU2 AND RU4

2.1 Application

This section applies to development for the purposes of **dwelling houses** and **rural worker's dwellings** in Zones RU1, RU2 and RU4. This section also applies to extensions and additions to dwellings (including studios) and ancillary buildings and structures.

A studio is considered to be an addition to or an extension of an existing dwelling and is therefore considered part of the existing dwelling. It is intended to be a small scale building or room that is to be used for recreational, creative or artistic pursuits that cannot be undertaken in the main dwelling. A studio cannot function as a separate self-contained dwelling and cannot therefore be habitable. A building is considered to be habitable if it contains a kitchen and bathroom. A building that is self-contained and separate from the main dwelling is considered to be an additional dwelling.

Where the development guidelines below list 'additional' guidelines for certain development types, these guidelines apply in addition to the general guidelines for dwelling houses.

2.2 Exempt and Complying Development

Certain development ancillary to dwellings (including driveways, garages, carports and garden sheds) is permitted as Exempt Development (development that does not require development consent, subject to certain requirements). Reference should be made to any relevant State Environmental Planning Policy.

Certain dwelling houses and ancillary development are permitted as Complying Development (minor development which does not require development consent, but can be certified by Council or a private certifier). Reference should be made to any relevant State Environmental Planning Policy.

2.3 Objectives

a) To ensure that dwelling houses and rural worker's dwellings are appropriately buffered from surrounding land uses and are not subject to amenity impacts.
b) To ensure that dwelling houses and rural worker's dwellings are designed and sited to minimise the visual impact on the character of the rural landscape and significant views or settings.
c) To ensure that buildings and structures are designed and sited to minimise cut and fill.
d) To ensure that buildings and structures are designed and sited to minimise impacts on ecological functions and biodiversity values.
e) To ensure that dwelling houses and rural worker's dwellings are sited to avoid unacceptable risk from natural hazards and contaminated land.

f) To ensure that buildings and structures do not adversely impact on the ecological or hydrological functions of watercourses, water bodies and wetlands.
g) To ensure that dwelling houses and rural worker's dwellings have suitable vehicular access.
h) To ensure that dwelling houses and rural worker's dwellings are appropriately serviced.
i) To allow the development of detached dwelling additions where these are small scale, in proximity of the main dwelling and intended for use by occupants of the main dwelling.
j) To encourage the development of well-designed dwellings that are adaptable, comfortable and maximise water and energy efficiency.

2.4 Development Guidelines

Note: the Acceptable Solutions in the table below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot meet, an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Design and siting of buildings and structures	
P1 Site layout and building design seeks to utilise natural grades of the land and minimises cut and fill	A1.1 Buildings and structures are not located on land with a gradient that exceeds 20% A1.2 Cut or fill does not exceed 1 metre in height and a total height of 2 metres
P2 The setback of buildings and structures from the primary road frontage is consistent with the surrounding area	A2.1 Buildings and structures are set back a minimum of 20 metres from the front boundary OR **Where site has frontage to a classified road:** A2.2 Buildings and structures are set back from front boundary a minimum of: • Where in Zones RU1 or RU2:- 50 metres • Where in Zone RU4:- 30 metres
P3 The setback of buildings and structures from side and rear property boundaries does not impact on the amenity of adjoining properties	A3.1 Buildings and structures are set back a minimum of 10 metres from side boundary A3.2 Buildings and structures are set back at least 10 metres from rear boundary OR **Where side or rear boundary is a secondary road:** A3.3 Buildings and structures are set back at least 20 metres from property boundary

Performance criteria	Acceptable solution
Visual impact	
P4 Buildings and structures do not impact adversely on significant views or rural and/or natural landscape character and do not reflect light on surrounding properties	A4.1 Buildings and structures are not located on prominent ridgelines or hilltops or in prominent locations when viewed from significant public vantage points **OR** A4.2 Landscaping is used to screen views of the development from significant vantage points A4.3 External walls and roofs are clad in non-reflective materials and colours are muted
Environmental impact	
P5 The siting of buildings and structures does not impact on ecological or hydrological values of watercourses, water bodies and wetlands	A5.1 Buildings and structures are set back a minimum of 100 metres from the top of bank of permanent watercourses (Order 3 Stream or greater) or water bodies and 40 metres from the top of bank of an Order 1 or 2 Stream A5.2 Buildings and structures are set back a minimum of 100 metres from the edge of wetland
P6 Development does not create unacceptable impact on ecological functions or biodiversity values	A6.1 Siting of buildings, structures and driveways does not require the clearing of native vegetation A6.2 Buildings and structures are not located within a mapped ecological corridor
Effluent management	
P7 The development makes suitable provision for management of effluent that does not create public health impacts or adversely impact quality of surface and ground waters	A7.1 The lot contains land with gradient <20% suitable to accommodate effluent disposal fields A7.2 The soil type is suitable for on-site treatment of effluent A7.2 The development is serviced by an on-site sewage management system that meets the requirements of the Kyogle Council On-site Sewage Management Strategy
Water supply	
P8 The development must make suitable provision for supply of potable water without	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

Performance criteria	Acceptable solution
drawing unreasonably from natural watercourses, water bodies or groundwater	
Stormwater management	
P9 Stormwater does not create a nuisance for adjoining properties	A9 Stormwater is managed on the development site and does not contribute to flooding on adjoining properties
Electricity supply	
P10 The development must make adequate provision for electrical power without impacting on the amenity of surrounding properties through emission of noise, fumes, light or glare through on-site power generation	A10 The dwelling is connected to the reticulated electricity network
Telecommunications	
P11 The dwelling must make suitable arrangements for the supply of constant, reliable telecommunications	A11 The development is connected to the fixed line telecommunications network
Solid waste disposal	
P12 The development must make satisfactory arrangements for the storage and removal of solid waste	A12 Solid waste is disposed of at an approved facility and is not buried or burnt on site
Transport and Access	
P13 The development must have suitable vehicular access	A13.1 Vehicles are able to enter and leave the site in a forward direction A13.2 The development site has access to a constructed public road A13.3 Site access, internal driveways, manoeuvring and parking areas are designed and constructed in accordance with the Northern Rivers Local Government Development & Design and Construction Manual and Council's Property Access and Addressing Management Plan
Land use conflict avoidance	
P14 Dwelling houses and rural worker's dwellings are not located where they are likely to be impacted by surrounding land uses	A14 Development achieves buffers specified in Table C3.1 in Appendix C3

Performance criteria	Acceptable solution
Natural hazards	
P15 Dwelling houses, rural worker's dwellings, residents, visitors and firefighters are not exposed to unacceptable risk from bushfire	A15.1 Development is not on land that is mapped as bushfire prone land OR A15.2 The dwelling is assessed as having a Bushfire Attack Level (BAL) no greater than BAL 29 and complies with the requirements of the Rural Fire Service publication 'Planning for Bushfire Protection' 2006 or any superseding guideline and Australian Standard AS3959 OR A15.3 A report prepared by a Certified Bushfire Practitioner is provided that demonstrates the dwelling can achieve the requirements of the Rural Fire Service publication 'Planning for Bushfire Protection' 2006 or any superseding guideline
P16 Buildings, structures and persons on the development site should not be exposed to unacceptable risk from flooding	A16.1 The location of the dwelling house or rural worker's dwelling is not prone to flooding from inundation or overland flow OR Where a dwelling house or rural worker's dwelling is proposed on land that is mapped as or known to be prone to flooding: A16.2 A report is submitted by a suitably qualified person that demonstrates the floor level of the development achieves a height of at least the level of a 100 year ARI flood event plus 0.5 metres freeboard
P17 Buildings, structures and persons on the development site should not be exposed to unacceptable risk from landslip or mass movement	A17.1 The development site does not display evidence of landslip or mass movement OR A17.2 A report prepared by a suitably qualified engineer is submitted that demonstrates the site is geotechnically stable and suitable to accommodate a dwelling
Contaminated land	
P18 Residents and visitors are not exposed to unacceptable risk from contamination	A18.1 Development is not on a site that is listed as contaminated

Performance criteria	Acceptable solution
	AND A18.2 Development is not located within 200 metres of a cattle dip **OR** A18.3 A report prepared by a suitably qualified person is submitted that demonstrates the site is suitable to accommodate a residential use
Building orientation and energy efficiency	
P19 Building design and orientation facilitates passive lighting, heating and cooling	A19.1 Living areas* are orientated to the north or east A19.2 Window and door placement allows internal solar access between April and August and limits internal solar access between September and March A19.3 Eaves are minimum of 450 mm deep A19.4 Internal building layout and location of windows facilitate internal passage of cooling easterly and southerly breezes **Living areas are considered to be kitchen, lounge room, living room or dining room*
Additional guidelines for rural worker's dwellings	
P20 A rural worker's dwelling is in reasonable proximity to the main dwelling or agricultural workplace	A20 A rural worker's dwelling is located within 200 metres of the main dwelling
P21 Vehicular access is suitable to service two dwellings and does not create safety issues on a public road	A21 A rural worker's dwelling and the main dwelling are accessed via the same driveway and vehicular access point to a public road
P22 The rural worker's dwelling is adequately serviced	A22.1 A rural worker's dwelling has its own on-site sewage management system A22.2 A rural worker's dwelling has its own power and telecommunications connections A22.3 A rural worker's dwelling is self sufficient for potable water

Performance criteria	Acceptable solution
Additional guidelines for detached additions and extensions (including studios)	
P23 The building functions as an extension to the dwelling and is not used for separate habitation	A23.1 Kitchen and laundry facilities are only located in the main building A23.2 Additions or extensions do not contain ablution facilities other than a toilet and hand basin A23.3 Additions or extensions are not capable of independent habitation
P24 The addition or extension is small scale, is in proximity of the dwelling and does not create unreasonable environmental impact	A24.1 The floor area of additions or extensions does not exceed 60m^2 including decks or verandahs A24.2 The building does not contain internal partitions other than those necessary for ablution facilities or required for the use of the building A24.3 Additions or extensions are not located further than 50 metres from the outside wall of the dwelling A24.4 Construction of additions or extensions does not require construction of an additional vehicular property access A24.5 An additional on-site sewage management system is provided if required A24.5 Construction of buildings does not require clearing of vegetation

3 Secondary dwellings in Zones RU1, RU2 and RU4

3.1 Application

This section applies to development for the purposes of **secondary dwellings** and ancillary structures, such as garages and carports, in Zones RU1, RU2 and RU4. A secondary dwelling is defined in the Kyogle LEP 2012 as;

'*a self-contained dwelling that:*

a) Is established in conjunction with another dwelling (the principal dwelling), and
b) Is on the same lot of land as the principal dwelling, and
c) Is located within, or is attached to, or is separate from, the principal dwelling.'

3.2 Objectives

a) To ensure that secondary dwellings are located in proximity to the principal dwelling.
b) To ensure that secondary dwellings are appropriately buffered from surrounding land uses and are not subject to adverse amenity impacts.
c) To ensure that secondary dwellings are designed and sited to avoid impact on the character of the rural landscape and significant views or settings.
d) To ensure that secondary dwellings are designed and sited to minimise earthworks.
e) To ensure that secondary dwellings are designed and sited to minimise impacts on ecological functions and biodiversity values.
f) To ensure that secondary dwellings are sited to avoid unacceptable risk from natural hazards and contaminated land.
g) To ensure that secondary dwellings do not adversely impact on the ecological or hydrological functions of watercourses, water bodies and wetlands.
h) To ensure that secondary dwellings have suitable vehicular access and are appropriately serviced.
i) To encourage the development of well-designed dwellings that are adaptable, comfortable and maximise water and energy efficiency.
j) To ensure the preservation of cultural heritage.

3.3 Development Guidelines

Note: the Acceptable Solutions in the table below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot, meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Minimum lot size	
P1 The lot is of appropriate size and dimensions to accommodate a principal and secondary dwelling including effluent disposal areas	A1 The lot has an area of at least 1ha
Relationship with principal dwelling	
P2 Secondary dwellings are smaller scale than the principal dwelling	A2 Total floor area of secondary dwellings including decks and verandas (but excluding any area used for parking) does not exceed 60m^2 or 60% of the total floor area of the principal dwelling, whichever is the greater
P3 Secondary dwellings are located within reasonable proximity of the principal dwelling and will not: • adversely impact on the agricultural potential or viability of the subject land • increase the potential for land use conflict • impact adversely on environmental values or watercourses	A3 Secondary dwellings are located within 100 metres of the principal dwelling
Design and siting of buildings and structures	
P4 Site layout and building design seeks to utilise natural grades of the land and minimises cut and fill	A4.1 Secondary dwellings are not located on land with a gradient that exceeds 20% A4.2 Cut or fill does not exceed 1 metre in height and a total height of 2 metres
P5 The setback of secondary dwellings from the primary road frontage is consistent with the surrounding area	A5.1 Secondary dwellings are set back a minimum of 20 metres from the front boundary OR **Where site has frontage to a classified road:** A5.2 Secondary dwellings are set back from front boundary a minimum of: • Where in Zones RU1 or RU2:- 50 metres • Where in Zone RU4:- 30 metres

Performance criteria	Acceptable solution
P6 The setback of secondary dwellings from side and rear property boundaries does not impact on the amenity of adjoining properties	A6.1 Secondary dwellings are set back a minimum of 10 metres from side boundary A6.2 Secondary dwellings are set back at least 10 metres from rear boundary OR **Where side or rear boundary is a secondary road:** A6.3 Secondary dwellings are set back at least 20 metres from property boundary
Visual impact	
P7 Secondary dwellings do not impact adversely on significant views or rural and/or natural landscape character and do not reflect light on surrounding properties	A7.1 Secondary dwellings are not located on prominent ridgelines or hilltops or in prominent locations when viewed from significant public vantage points A7.2 External walls and roofs are clad in non-reflective materials and colours are muted
Environmental impact	
P8 The siting of secondary dwellings does not impact on ecological or hydrological values of watercourses, water bodies and wetlands	A8.1 Secondary dwellings are set back a minimum of 100 metres from the top of bank of permanent watercourses (Order 3 Stream or greater) or water bodies and 40 metres from the top of bank of an Order 1 or 2 Stream A8.2 Secondary dwellings are set back a minimum of 100 metres from the edge of wetland
P9 Development does not create unacceptable impact on ecological functions or biodiversity values	A9.1 Siting of secondary dwellings and driveways does not require the clearing of native vegetation A9.2 Secondary dwellings are not located within a mapped ecological corridor
Effluent management	
P10 Secondary dwellings make suitable provision for management of effluent that does not create public health impacts or adversely impact quality of surface and ground waters	A10 Secondary dwellings are serviced by an independent on-site sewage management system that meets the requirements of the Kyogle Council On-site Sewage Management Strategy
Water supply	

Performance criteria	Acceptable solution
P11 Secondary dwellings make suitable provision for supply of potable water without drawing unreasonably from natural watercourses, water bodies or groundwater	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Stormwater management	
P12 Stormwater is managed on the development site and does not contribute to flooding on adjoining properties	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Electricity supply	
P13 Secondary dwellings make adequate provision for electrical power without impacting on the amenity of surrounding properties through emission of noise, fumes, light or glare through on-site power generation	A13 Secondary dwellings are connected to the reticulated electricity network
Telecommunications	
P14 The dwelling must make suitable arrangements for the supply of constant, reliable telecommunications	A14 Secondary dwellings are connected to the fixed line telecommunications network
Site access	
P15 Vehicular access is suitable to service the secondary dwelling and does not create safety issues on a public road	A15 Secondary and principal dwellings utilise the same vehicular access point and driveway
Land use conflict avoidance	
P16 Secondary dwellings are not located where they are likely to be impacted by surrounding land uses	A16 Secondary dwellings achieve buffers specified in Table C3.1 in Appendix C3
Natural hazards	
P17 Secondary dwellings, residents, visitors and firefighters are not exposed to unacceptable risk from bushfire* **Achievement of P17 will generally need to be demonstrated through submission of a report prepared by a Certified Bushfire Practitioner that demonstrates the dwelling can achieve the requirements of the Rural Fire Service publication 'Planning for Bushfire Protection' 2006 or any superseding guideline*	A17.1 Secondary dwellings are not sited on land that is mapped as bushfire prone land OR A17.2 The dwelling is assessed as having a Bushfire Attack Level (BAL) no greater than BAL 29 and complies with the requirements of the Rural Fire Service publication 'Planning for Bushfire Protection' 2006 or any superseding guideline and Australian Standard AS3959

Performance criteria	Acceptable solution
P18 Buildings, structures and persons on the development site should not be exposed to unacceptable risk from flooding	A18.1 Secondary dwellings are not sited on land prone to flooding from inundation or overland flow OR **Where a secondary dwellings is proposed on land that is mapped as or known to be prone to flooding:** A18.2 A report is submitted by a suitably qualified person that demonstrates the floor level of the development achieves a height of at least the level of a 100 year ARI flood event plus 0.5 metres freeboard
P19 Buildings, structures and persons on the development site should not be exposed to unacceptable risk from landslip or mass movement	A19.1 The development site does not display evidence of landslip or mass movement OR A19.2 A report prepared by a suitably qualified engineer is submitted that demonstrates the site is geotechnically stable and suitable to accommodate a dwelling
Contaminated land	
P20 Residents and visitors are not exposed to unacceptable risk from contamination	A20.1 Development is not on a site that is listed as contaminated AND A20.2 Secondary dwellings are not located within 200 metres of a cattle dip OR A20.3 A report prepared by a suitably qualified person is submitted that demonstrates the site is suitable to accommodate a residential use
Building orientation and energy efficiency	
P21 Building design and orientation facilitates passive lighting, heating and cooling	A21.1 Living areas* are orientated to the north or east A21.2 Window and door placement allows internal solar access between April and August and limits internal solar access between September and March A21.3 Eaves are minimum of 450 mm deep A21.4 Internal building layout and location of windows facilitate internal passage of cooling easterly and southerly breezes

Performance criteria	Acceptable solution
	**Living areas are considered to be kitchen, lounge room, living room or dining room*
Where located on the site of a heritage item	
P22 Secondary dwellings do not detract from the heritage significance of the heritage item or site	A22 The secondary dwelling is located at the rear of a heritage building and is not visible from a road or public place
Additional guidelines where secondary dwelling is created within part of existing dwelling	
P23 Principal and secondary dwellings are compatible and comply with the provisions of the Building Code of Australia for fire separation and noise attenuation	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Additional guidelines where secondary dwelling is an attached extension	
P24 Principal and secondary dwellings are compatible and comply with the provisions of the Building Code of Australia for fire separation and noise attenuation	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

4 Dwelling houses in Zones R1, R3, R5, RE2 and RU5

4.1 Application

This section applies to development for the purposes of **dwelling houses** in Zones R1, R3, R5, RE2 and RU5. This section also applies to extensions and additions to dwellings (including studios) and ancillary buildings and structures.

A studio is considered to be an addition to or an extension of an existing dwelling and is therefore considered to be a part of the existing dwelling. It is intended to be a small scale building or room that is to be used for recreational, creative or artistic pursuits that cannot be undertaken in the main dwelling. A studio cannot function as a separate self-contained dwelling and cannot therefore be habitable. A building is considered to be habitable if it contains a kitchen and bathroom. A building that is self-contained and separate from the main dwelling is considered to be an additional dwelling.

4.2 Exempt and Complying Development

Certain development ancillary to dwellings (eg. driveways, carports, garden sheds) may be permitted as Exempt Development (development that does not require development consent, subject to certain requirements). Reference should be made to any relevant State Environmental Planning Policy.

Certain dwelling houses, secondary dwellings, additions and ancillary development may be permitted as Complying Development (minor development which does not require development consent, but can be certified by Council or a private certifier). Reference should be made to any relevant State Environmental Planning Policy.

4.3 Objectives

a) To facilitate the development of dwelling houses and ancillary development that are designed and constructed to complement the character of their surroundings.
b) To ensure that buildings and structures are designed and sited to minimise cut and fill.
c) To ensure that development does not impact the amenity of surrounding residential development.
d) To ensure that buildings and structures are designed and sited to minimise impacts on ecological functions and biodiversity values.
e) To ensure that dwelling houses and ancillary development are sited to avoid exposure to unacceptable risk from natural hazards and contaminated land.
f) To ensure that development does not adversely impact on the ecological or hydrological functions of watercourses and water bodies.
g) To ensure that dwelling houses have appropriate vehicular access and are appropriately serviced.
h) To allow the development of detached dwelling additions or extensions where these are small scale, in proximity of the main dwelling and intended for use by occupants of the main dwelling.
i) To encourage the development of well-designed dwellings that are adaptable, comfortable and maximise water and energy efficiency.

4.4 Development Guidelines

Note: the Acceptable Solutions in the table below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot, meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Minimum lot size and dimensions	
P1 The allotment is sufficient size and dimensions to accommodate a dwelling house, car parking, open space and where required, on-site sewage management	**Where development site is in an area serviced by reticulated sewerage:** A1.1 The development site has an area of at least 450m^2 and an average width of at least 12 metres OR **Where development site is not in an area serviced by reticulated sewerage:** A1.2 The development site has an area of at least 2000m^2 and an average width of at least 15 metres
Height of buildings and structures	
P2 The height of buildings and ancillary structures is consistent with houses in the surrounding area and does not create overshadowing or a loss of privacy of adjoining residential properties	A2 Height of buildings and ancillary structures does not exceed maximum height shown on the Height of Buildings Map
Front boundary setback	
P3 Dwelling houses and ancillary structures have sufficient setback from the front boundary to maintain the character and building line of the street and to allow sufficient area for private open space, car parking and landscaping	A3.1 Setback of buildings and ancillary structures to the front boundary is in accordance with Table C3.2 in Appendix C3. OR Where site fronts a classified road: A3.2 Front boundary setback is at least: • Where in Zone R1, R3 or RU5:- 9 metres • Where in RE2 or R5 (and lot has an area of at least 4000m2):- 15 metres
Side boundary setback	
P4 Side boundary setback is sufficient to maintain privacy, residential amenity and solar access of adjoining properties, permit access for maintenance and meet Building Code of Australia requirements	**In Zones R1, R3 and RU5 and where outer wall or structure adjacent side boundary is <4.5m high:** A4.1 Buildings and ancillary structures are set back from the side boundary a minimum 0.9 metres to wall and 0.45 metres to outer edge of eave or gutter

Performance criteria	Acceptable solution
	OR **In Zones R1, R3 and RU5 and where outer wall or structure adjacent side boundary is >4.5m high:** A4.2 Buildings and ancillary structures are set back from the side boundary a minimum 1.5 metres (to wall) plus 0.5 metres for every additional 2 metres in wall/structure height OR **In Zones RE2 and R5:** A4.3 Buildings and ancillary structures are set back from the side boundary a minimum of 5 metres
Rear boundary setback	
P5 Rear boundary setback is sufficient to allow for the maintenance of privacy, residential amenity and solar access of adjoining properties	**In Zones R1, R3 and RU5:** A5.1 Rear boundary setback is a minimum of 6 metres OR **In Zones R1, R3 or RU5 and where development site has rear boundary frontage to a laneway, road or public reserve:** A5.2 Rear boundary setback is a minimum of 4 metres to house and 1 metre to garage or carport OR **In Zones RE2 and R5:** A5.3 Buildings and ancillary structures are set back from the rear boundary a minimum of 15 metres
Corner allotments	
P6 Setbacks of buildings and ancillary structures on corner allotments are suitable to ensure safety for pedestrians and vehicles, to maintain the character and building line of the streets and allow for the maintenance of privacy, residential amenity and solar access of adjoining properties	A6.1 The narrow street frontage is treated as the primary street frontage A6.2 Setback of buildings and ancillary structures to the primary street frontage is in accordance with Table C3.2 Appendix C3 OR **Where site fronts a classified road:** A6.3 Front boundary setback is at least: • Where in Zone R1, R3 or RU5:- 9 metres

Performance criteria	Acceptable solution
	• Where in RE2 or R5 (and lot has an area of at least 4000m2):- 15 metres AND A6.4 Setback of buildings and ancillary structures to the secondary road frontage is at least 4 metres in Zones R1, R3 and RU5 and at least 10 metres in Zones RE2 and R5 A6.5 Setback of buildings and ancillary structures to side boundaries* is 2 metres in Zones R1, R3 and RU5 and 5 metres in Zones RE2 and R5 A6.6 Vehicular access points are not closer than 6 metres from the intersection **Corner allotments are not considered to have a rear boundary*
Building orientation and energy efficiency	
P7 Building design and orientation facilitates passive lighting, heating and cooling	A7.1 Living areas* are orientated to the north or east A7.2 Window and door placement allows internal solar access between April and August and limits internal solar access between September and March A7.3 Eaves are minimum of 450 mm deep A7.4 Internal building layout and location of windows facilitate internal passage of cooling easterly and southerly breezes **Living areas are considered to be kitchen, lounge room, living room or dining room*
Streetscape	
P8 Houses address the street and allow for passive surveillance	A8.1 The front door is visible from the street A8.2 At least one living area* has a window that faces the street A8.3 Solid front fencing higher than 1.2 metres is not used (except where required for noise attenuation where development site fronts a classified road)

Performance criteria	Acceptable solution
	**Living areas are considered to be kitchen, lounge room, living room or dining room*
P9 The front façade is not dominated by car accommodation	A9.1 Car accommodation is set back at least 1 metre behind the front building façade A9.2 Car accommodation does not exceed 50% of the width of the house
Where located on the site of a heritage item	
P10 Development does not adversely impact views or the setting of the heritage item	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Where adjoining the site of a heritage item	
P11 Development does not adversely impact views or the setting of the heritage item	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Where located in a heritage conservation area	
P12 Development complements the scale, form and character of existing development in the conservation area	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Site slope and earthworks	
P13 Development siting and layout utilises natural grades of the land and minimises cut and fill	A13 Buildings, structures and vehicular parking and manoeuvring areas are not located on land with a gradient exceeding 20%
P14 Cut and fill structures (including retaining walls) are structurally sound and do not impact on the amenity or geotechnical stability of adjoining properties	A14.1 Cut batters are a maximum 1 metre in height and no closer than 0.9 metres to property boundary A14.2 Fill batters are a maximum of 0.6 metres in height and no closer than 0.4 metres to property boundary A14.3 Retaining walls higher than 0.6 metres are designed and certified by an appropriately qualified engineer
Natural hazards	
P15 Dwelling houses, residents, visitors and fire fighters are not exposed to unacceptable risk from bushfire	A15.1 The dwelling house is not on land that is mapped as bushfire prone land OR A15.2 The house is assessed as having a Bushfire Attack Level (BAL) no greater than BAL 29 and complies with the requirements of the Rural Fire Service publication

Performance criteria	Acceptable solution
	'Planning for Bushfire Protection' 2006 or any superseding guideline and Australian Standard AS3959 OR A15.3 A report prepared by a Certified Bushfire Practitioner is provided that demonstrates the dwelling can achieve the requirements of the Rural Fire Service publication 'Planning for Bushfire Protection' 2006 or any superseding guideline
P16 Buildings, structures and persons on the development site are not exposed to unacceptable risk from flooding	A16.1 The development site is not prone to flooding from inundation or overland flow OR Where development is proposed on flood prone land: A16.2 a report is submitted by a suitably qualified person that demonstrates the floor level of the development achieves a height of at least the level of a 100 year ARI flood plus 0.5 metres OR Where development is proposed on a lot within the Flood Planning Area shown on the Flood Planning Map in the LEP: A16.3 The development complies with the provisions of the Development Control Plan in the Kyogle Council Floodplain Risk Management Plan 2009
P17 Buildings, structures and persons on the development site should not be exposed to unacceptable risk from landslip or mass movement	A17.1 The development site is not prone to landslip or mass movement OR A17.2 A report prepared by a suitably qualified person is submitted that demonstrates the site is geotechnically stable and suitable to accommodate a dwelling
Contaminated land	
P18 Residents and visitors are not exposed to unacceptable risk from contamination	A18.1 Development is not on a site that is listed as contaminated AND A18.2 Development is not located within 200 metres of a cattle dip OR

Performance criteria	Acceptable solution
	A18.3 A report prepared by a suitably qualified person is submitted that demonstrates the site is suitable to accommodate a residential use
Environmental protection	
P19 Development does not create unacceptable impact on ecological functions or biodiversity values	A19.1 Siting of buildings and structures does not require the clearing of native vegetation A19.2 Buildings and structures are not located within a mapped ecological corridor
Protection of watercourses	
P20 The siting of buildings and structures does not impact on ecological or hydrological values of watercourses and water bodies	A20 Buildings and structures are set back a minimum of 100 metres from the top of bank of permanent watercourses (Order 3 Stream or greater) or water bodies and 40 metres from the top of bank of an ephemeral watercourse (Order 1 or 2 Stream)
Vehicular access and parking	
P21 Vehicular access for dwellings must allow vehicles to enter and leave the site in a forward gear and allow all weather access by two wheel drive vehicle	A21.1 The development site has access to a constructed public road A21.2 Vehicles are able to enter and leave the site in a forward direction A21.3 Site access, internal driveways, manoeuvring and parking areas are designed and constructed in accordance with the requirements of the Northern Rivers Local Government Development & Design and Construction Manuals and Council's Property Access and Addressing Management Plan
P22 The development makes suitable arrangements for vehicles to be parked on site	A22 Parking is provided on site for at least one car
Servicing and infrastructure	
P23 The development makes suitable provision for management of effluent that does not create public health impacts or adversely impact the quality of surface and ground waters	**Where development site is in an area serviced by reticulated sewerage:** A23.1 The dwelling is connected to the reticulated sewer system OR **Where connection to reticulated sewer is not available:**

Performance criteria	Acceptable solution
	A23.2 An effluent management system is provided that meets the requirements of the Kyogle On-site Sewage Management Strategy
P24 The development must make suitable provision for supply of potable water	**Where development site is in an area serviced by reticulated water:** A24.1 The dwelling is connected to the reticulated water supply system OR **Where connection to reticulated water supply is not available:** A24.2 The dwelling is self-sufficient for water
P25 Stormwater generated by the development does not cause nuisance to, or flooding of, adjoining properties	**Where development site is in an area serviced by a stormwater drainage network:** A25.1 Stormwater is discharged to the stormwater drainage network and does not cause nuisance to adjoining properties OR **Where development site is not in a serviced area:** A25.2 Stormwater is effectively managed on site and does not contribute to flooding or nuisance on adjoining properties
P26 The development must make adequate provision for electrical power without impacting on the amenity of surrounding properties through emissions of noise, fumes, light or glare through generation of on-site power	A26 The dwelling is connected to the reticulated electricity network
P27 The dwelling must make suitable arrangements for the supply of constant, reliable telecommunications	A27 The dwelling is connected to the fixed line telecommunications network
P28 The development makes satisfactory arrangements for the storage and removal of rubbish	A28 The dwelling is serviced by a domestic waste collection service
Additional guidelines for relocated and transportable houses	
P29 Relocated and transportable houses are structurally sound and complement existing development in the street	A29.1 Relocated and transportable houses are certified by a suitably qualified engineer that they are structurally stable

Performance criteria	Acceptable solution
	A29.2 Relocated and transportable houses complement the character of development existing in the street
Additional guidelines for detached additions or extensions (including studios)	
P30 Detached extensions or additions function as an extension to the dwelling and are not used for separate habitation	A30.1 Kitchen and laundry facilities are only located in the main building A30.2 Detached additions or extensions do not contain ablution facilities other than a toilet and hand basin A30.3 Detached extensions or additions are not capable of habitation
P31 The building is small scale and in proximity of the dwelling	A31.1 The total floor area of additions and extensions (including decks and verandas) does not exceed 40m^2 A31.2 The building does not contain internal partitions other than those necessary for ablution facilities or required for the use of the studio A31.3 The building is located no further than 20 metres from an outside wall of the main part of the dwelling
Additional guidelines for ancillary development	
P32 Sheds and detached garages are of domestic scale and do not impact on the visual amenity or residential character of the area	A32 The total floor area of all sheds and detached garages on the development site does not exceed 80m^2
P33 Photovoltaic solar power systems do not create unreasonable visual impact	A33.1 Photovoltaic solar panels are located on the roof of an existing building A33.2 Solar photovoltaic panels do not extend more than 1.5 metres above the existing roofline

5 SECONDARY DWELLINGS IN ZONES R1, R3, R5 AND RU5

5.1 Application

This section applies to development for the purposes of **secondary dwellings** and ancillary structures in Zones R1, R3, R5 and RU5. A secondary dwelling is defined in the Kyogle LEP 2012 as;

'*a self-contained dwelling that:*

a) Is established in conjunction with another dwelling (the principal dwelling), and
b) Is on the same lot of land as the principal dwelling, and
c) Is located within, or is attached to, or is separate from, the principal dwelling.'

5.2 Complying Development

Certain secondary dwellings are permitted as Complying Development (minor development which does not require development consent, but can be certified by Council or a private certifier). Reference should be made to any relevant State Environmental Planning Policy.

5.3 Objectives

a) To ensure that secondary dwellings are compatible with surrounding development and do not impact the amenity of surrounding residential development.
b) To ensure that secondary dwellings make suitable provision for vehicular access and parking.
c) To ensure that secondary dwellings provide a satisfactory living environment including the provision of private open space.
d) To ensure that secondary dwellings are adequately serviced.
e) To ensure the preservation of cultural heritage.

5.4 Development Guidelines

Note: the Acceptable Solutions in the table below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot, meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Minimum lot size and dimensions	
P1 The lot is of appropriate size and dimensions to accommodate a principal and secondary dwelling	**Where development site is serviced by reticulated sewerage:** A1.1 The lot has an area of at least 450m^2 and a minimum average width of 12 metres OR **Where development site is not serviced by reticulated sewerage:** A1.2 The lot has an area of at least 5000m^2
Development footprint	
P2 Secondary dwellings are smaller scale than the main dwelling and do not constitute overdevelopment of the site	A2 Total floor area of secondary dwellings including decks and verandas (but excluding any area used for parking) does not exceed 60m^2 or 60% of the total floor area of the principal dwelling, whichever is the greater
P3 The total development footprint allows for sufficient private open space and does not impact on amenity of adjoining properties or result in overdevelopment of the site	A3 The total site coverage of all dwellings, structures and outbuildings does not exceed: • Where lot size <900m^2= 40% • Where lot size 901-1500m^2= 30% • Where lot size >1500m^2= 25%
Height of buildings and structures	
P4 The height of buildings is consistent with the surrounding area and does not create overshadowing or a loss of privacy of adjoining residential properties	A4 Building height does not exceed maximum height shown on the Height of Buildings Map
Front boundary setback	
P5 Secondary dwellings do not alter the building line of the street and allow sufficient area for private open space, car parking and landscaping	A5 Secondary dwellings are located behind the building line of the principal dwelling

Performance criteria	Acceptable solution
Side boundary setback	
P6 Secondary dwellings have sufficient side boundary setback to maintain privacy and solar access of adjoining properties, permit access for maintenance and meet Building Code of Australia requirements	**In Zones R1, R3 and RU5 and where outer wall or structure adjacent side boundary is <4.5m high:** A6.1 Buildings and ancillary structures associated with a secondary dwelling are set back from the side boundary a minimum 0.9 metres to wall and 0.45 metres to outer edge of eave or gutter OR **In Zones R1, R3 and RU5 and where outer wall or structure adjacent side boundary is >4.5m high:** A6.2 Buildings and ancillary structures associated with a secondary dwelling are set back from the side boundary a minimum 1.5 metres (to wall) plus 0.5 metres for every additional 2 metres in wall/structure height OR **In Zones RE2 and R5:** A6.3 Buildings and ancillary structures associated with a secondary dwelling are set back from the side boundary a minimum of 5 metres
Rear boundary setback	
P7 Rear boundary setback of secondary dwellings is sufficient to allow for the maintenance of privacy, residential amenity and solar access of adjoining properties	**In Zones R1, R3 and RU5:** A7.1 Rear boundary setback is a minimum of 3 metres OR **In Zones R1, R3 or RU5 and where development site has rear boundary frontage to a laneway, road or public reserve:** A7.2 Rear boundary setback is a minimum of 4 metres to house and 1 metre to garage or carport OR **In Zones RE2 and R5:** A7.3 Buildings and ancillary structures are set back from the rear boundary a minimum of 10 metres
Corner allotments	
P8 Secondary dwellings on corner allotments have sufficient setback from the secondary street frontage to ensure pedestrian and	A6.2 Setback of buildings and ancillary structures to the primary street frontage is in accordance with Table C3.2 Appendix C3

Performance criteria	Acceptable solution
vehicular visibility, to maintain the character and building line of the street	OR **Where site fronts a classified road:** A6.3 Front boundary setback is at least: • Where in Zone R1, R3 or RU5:- 9 metres • Where in RE2 or R5 (and lot has an area of at least 4000m2):- 15 metres AND A6.4 Setback of buildings and ancillary structures to the secondary road frontage is at least 4 metres in Zones R1, R3 and RU5 and at least 10 metres in Zones RE2 and R5 A6.5 Setback of buildings and ancillary structures to side boundaries** is 2 metres in Zones R1, R3 and RU5 and 5 metres in Zones RE2 and R5 A6.6 Vehicular access points are not closer than 6 metres from the intersection **The primary street frontage of corner allotments is considered to be the narrow frontage* ***Corner allotments are not considered to have a rear boundary*
Protection of privacy of adjoining properties	
P9 Secondary dwellings do not impact on the privacy of adjoining residential properties	**Where secondary dwelling has windows of habitable rooms or outdoor living areas* within 3 metres of an adjoining residential lot:** A9.1 Windows and outdoor living areas have privacy screens that prevent overlooking or loss of privacy A9.2 Privacy screens have no opening more than 30mm and not more than 30% of the total area of the screen is open A9.3 Privacy screens are provided between 1.2 metres and 1.8 metres above floor level **Outdoor living areas means a patio, deck, veranda, balcony, pergola or terrace*

Performance criteria	Acceptable solution
Landscaping and open space	
P10 Landscaping provides a pleasant living environment and assists to soften the built form of the development and maintain privacy	A10.1 At least 20% of the development site consists of garden beds planted with trees, shrubs and groundcovers at a minimum density of one per 2 square metres A10.2 Garden beds are a minimum 2 metres wide A10.3 At least 50% of the landscaped area is located behind the building line of the primary road frontage A10.4 A landscape concept plan is provided that demonstrates achievement of A10.1-A10.3
P11 Principal and secondary dwellings have access to adequate private open space	A11.1 Secondary dwellings have a minimum of $10m^2$ of private open space with a minimum dimension of 3 metres and a maximum gradient of 1 in 20 A11.2 Private open space is accessible from a kitchen, dining or lounge room A11.3 At least $10m^2$ of private open space receives solar access between April and September
P12 Principal and secondary dwellings have access to space for drying laundry	A12.1 Secondary dwellings have an outdoor laundry drying area that receives solar access at all times of the year
Site access and parking	
P13 The entrance to secondary dwellings is evident at the road frontage of the site	A13 The secondary dwelling is connected to a road frontage by a pedestrian path
P14 Vehicular access for the secondary dwelling does not create unsafe conditions for vehicles or pedestrians	A14 Vehicular access to the main and secondary dwellings is via a single vehicular access
P15 Principal and secondary dwellings do not create unreasonable demand for on-street parking	A15 A minimum of two car parking spaces are provided on the lot
Servicing and infrastructure	
P16 Secondary dwellings are adequately serviced and do not impact on the amenity of surrounding properties through emissions of	A16.1 The secondary dwelling is connected to reticulated mains power

Performance criteria	Acceptable solution
noise, fumes or glare through generation of on-site power	A16.2 The secondary dwelling is connected to the fixed line telecommunications network A16.3 The secondary dwelling is connected to the reticulated water supply network A16.4 The secondary dwelling is connected to the reticulated sewerage network where in a serviced area or an approved On-site Sewage Management System where in an unserviced area A16.5 The secondary dwelling is connected to the stormwater drainage network
Where located on the site of a heritage item	
P17 Secondary dwellings do not detract from the heritage significance of the heritage item or site	A17 The secondary dwelling is single storey and not visible from a road or public place
Where on a site adjoining an item of environmental heritage or in a heritage conservation area	
P18 Secondary dwellings do not detract from the heritage significance of the heritage item or heritage conservation area	A18.1 Development is of a similar scale and form to adjoining development A18.2 Buildings and structures within 6 metres of the side boundary are no higher than 4.5 metres
Additional guidelines where secondary dwelling is created within part of existing dwelling	
P19 Principal and secondary dwellings are compatible and comply with the provisions of the Building Code of Australia for fire separation and noise attenuation	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Additional guidelines where secondary dwelling is an attached extension	
P20 Principal and secondary dwellings are compatible and comply with the provisions of the Building Code of Australia for fire separation and noise attenuation	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

APPENDIX C3

Table C3.1 Recommended minimum buffer distances between dwellings and other land uses on adjoining or surrounding land not associated with proposal

Existing land use	Distance to dwellings (metres)
Piggeries- Housing and waste storage	500
Piggeries- Waste utilisation area	250
Feedlots- Yards and waste storage	500
Feedlots- Waste utilisation area	250
Poultry Farms- Sheds and waste storage	500
Poultry Farms- Waste utilisation area	250
Dairies- Sheds and waste storage	250
Dairies- Waste utilisation area	250
Other Intensive Livestock Operations	300
Cropping and Horticulture	200
Greenhouse & Controlled Environment Horticulture	200
Macadamia De-husking	300
Bananas	150
Turf Farms	200
Animal boarding and training establishments	500
Rural Industries	500
Abattoirs	1000
Extractive Industries that does not involve blasting	500
Extractive Industry that involves blasting	1000
Waste disposal facility	1000
Grazing of stock, cattle yards	50

Source: Department of Primary Industries; Living and Working in Rural Areas (2007)

Table C3.2 Minimum front boundary setback for dwellings and ancillary structures

Situation	Minimum front boundary setback
Where there are adjoining houses within 40 metres and fronting the same street	4.5 metres or the average of the setback of adjoining houses, whichever is the lesser
Where no adjoining houses within 40 metres	• 4.5 metres where lot has an area of at least 300m^2 but less than 900m^2 OR • 5.5m where the lot has an area of greater than 900m^2
Where in Zones RE2 and R5	10 metres or the average of the setback of existing adjoining houses, whichever is the lesser
Garage, carport* or car parking space **A carport is defined as a roofed structure for the accommodation of a single vehicle with no more than two sides enclosed and no less than 1/3 of its perimeter unenclosed*	• 5.5 metres where dwelling house has a setback of less than 4.5 metres OR • 1 metre behind front building line of house where the dwelling has a setback of more than 4.5 metres

CHAPTER 4 SIGNAGE

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1 INTRODUCTION

1.1 Application

This chapter applies in preparing and assessing applications for signage in any zone where permitted with consent under the Kyogle Local Environmental Plan 2012 (Kyogle LEP 2012). The Kyogle LEP 2012 states that signage comprises three components; **building identification signs**, **business identification signs** and **advertising structures**, and provides the following definitions;

> ***Advertising structure*** *means a structure used or to be used principally for the display of an advertisement.*
>
> ***Building identification sign*** *means a sign that identifies or names a building and that may include the name of a building, the street name and number of a building, and a logo or other symbol but does not include general advertising of products, goods or services.*
>
> ***Business identification sign*** *means a sign:*
>
> *a) That indicates:*
>
> *i) The name of the person or business, and*
>
> *ii) The nature of the business carried on by the person at the premises or place at which the sign is displayed, and*
>
> *b) That may include the address of the premises or place and a logo or other symbol that identifies the business,*
>
> *but that does not contain any advertising relating to a person who does not carry on business at the premises or place.*

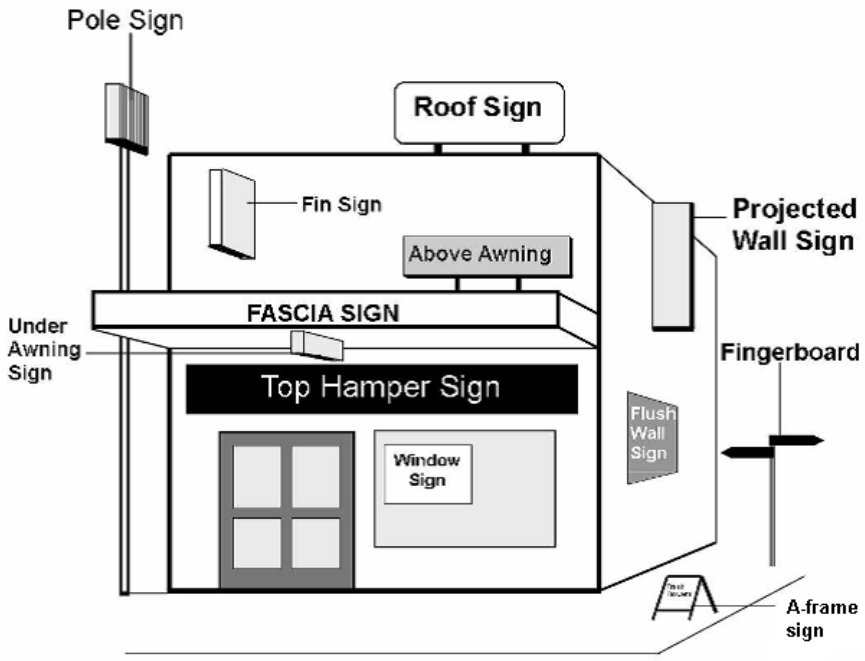


Figure C4.1 Signage types

1.2 Exempt Development

Certain signage is permitted as Exempt Development (development that does not require development consent, subject to certain requirements). Reference should be made to Schedule 2 of the Kyogle LEP 2012 and any relevant State Environmental Planning Policy.

1.3 Aims of Chapter 4

a) To provide guidelines to assist the design of signage, the preparation of development applications for signage and the assessment of those applications.

1.4 Objectives of Chapter 4

a) To facilitate development of signage as required to provide identification of businesses, buildings, events, facilities, destinations and attractions.
b) To ensure signage is compatible with the desired amenity and character of its surroundings.
c) To ensure signage does not create undesirable visual impact on its setting or host premises, in particular; rural areas, heritage items and heritage conservation areas.
d) To ensure signage does not create unsafe conditions in regard to the use of buildings or movement of traffic and pedestrians.
e) To ensure signage provides effective communication in suitable locations and is of high quality design and construction.

2 DEVELOPMENT GUIDELINES

Note: the Acceptable Solutions in the table below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Design and appearance	
P1 The appearance, size, location, height and character of signage is appropriate for its purpose, is compatible with its surroundings and does not create undesirable impacts on amenity or visual character	A1 Signs meet requirements in Table C4.1 in Appendix C4
P2 Signs do not restrict access or visibility or create obstructions or unsafe conditions	A2.1 Signs do not restrict or obstruct access or visibility for vehicles, pedestrians or cyclists A2.2 Signs do not restrict or obstruct emergency evacuation routes A2.3 Signs do not cover, windows, doors or ventilation inlets or outlets A2.4 Signs do not unduly distract motorists
P3 Supporting structural elements are not visually obtrusive	A3 Structural elements provide required structural support while minimising bulk and size of signage structure
Where located on the site of a heritage item or within a heritage conservation area	
P4 Signage does not impact adversely on the heritage significance of heritage items or the heritage conservation area	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Additional guidelines for illuminated, iridescent and reflective signs	
P5 Illuminated, iridescent and reflective signs do not: • create undesirable visual impact • create impacts on amenity of surrounding properties • distract motorists or create safety issues	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

Performance criteria	Acceptable solution
Additional guidelines for flashing, intermittently illuminated or moving signs Note: these signs are not encouraged and will only be considered in exceptional circumstances and where satisfying the following criteria	
P6 Flashing, intermittently illuminated or moving signs do not: • create undesirable visual impact • create impacts on amenity of surrounding properties • do not distract motorists or create safety issues	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Additional guidelines for signs in rural areas	
P7 Signs do not impact negatively on rural landscape character	A7.1 Signs are not affixed to trees or power poles A7.2 Signs are located at the entrance to the premises or property A7.3 Signs are affixed to the front boundary fence or gate A7.4 Freestanding signs are not utilised
Additional guidelines for signs on (or on land fronting) classified roads	
P8 Signage complies with the provisions of the *Transport Corridor Outdoor Advertising and Signage Guidelines 2007*	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

APPENDIX C4

Table C4.1 Signage requirements

Sign Type	Definition	Requirements
Awning Sign- above awning	Sign attached to upper side of an awning	• Maximum area 1.5m^2 • Does not project beyond the awning or above the parapet or ridge line of roof • Maximum height above awning 0.9m
Awning Sign- under awning	Sign attached to the underside of an awning	• Maximum area 1.5m^2 • Minimum 2.6m clearance to ground • Must not project beyond awning line
A-frame signs (sandwich board)	Portable sign generally comprising two faces for placement on footpath or road verge outside premises	• Maximum area of each face 1.2m x 0.7m • Only utilised during business hours • No more than 1 sign per premises • Approval of road authority required where located in road reserve
Blade Sign	Freestanding sign founded in ground and with a vertical dimension exceeding the horizontal	• Maximum area 6m^2 • Maximum height 4m • Minimum front boundary setback 3m
Fascia Sign	Sign attached to the fascia or return of an awning	• No maximum size • Does not project above, below or beyond the fascia
Fingerboard	Sign mounted to post or other structure that provides locational information and is generally orientated toward the destination	• Maximum area 0.2m^2 • Minimum 2.6m clearance to ground
Fin Sign	Sign erected on or above the canopy of a building	• Maximum area 2m^2 • Does not project higher than roof or ridge line of building
Pole or Pylon Sign	Sign erected on a pole/s or pylon/s independent of any building or other structure	• Maximum height 5m above ground • Minimum 2.6m clearance to ground • Maximum area 8m^2 • Minimum front boundary setback 4m
Roof Sign	Sign erected on or above the roof or parapet of a building	• Maximum area 8m^2 • Does not project higher than peak height of roof

Sign Type	Definition	Requirements
Top Hamper Sign	Sign attached to the transom of a doorway or display window of a building	• Does not extend below the head of the doorway or window to which it is attached • Does not exceed width of building
Panel Sign	Sign that is free standing or mounted to fence, gate or other ancillary structure	• Maximum area: ▪ on land in a rural zone- 2m^2 ▪ on land in RU5- 1.5m^2 ▪ on land in residential zone- 0.75m^2 ▪ on land in business zone- 2m^2 ▪ on land in industrial zone- 4m^2 ▪ on land in recreation zone- 2m^2 • Minimum front boundary setback (where not attached to boundary fence or gate) 2m
Wall Sign- Flush	Sign painted or applied to wall of building or structure	• Maximum size 6m^2
Wall Sign- Projecting	Sign attached to the wall of building	• Maximum area 2m^2 • Maximum height 5m • Minimum 2.6m clearance to ground • Does not project more than 1m from wall or within 0.6m of vertical projection of kerb or road line
Window Sign	Painted or applied to the window of a building	• Does not cover more than 30% of the window or 8m^2, whichever is the lesser

CHAPTER 5 NON-RESIDENTIAL DEVELOPMENT IN ZONE RU5 VILLAGE

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1 INTRODUCTION

1.1 Application

This Chapter applies in preparing and assessing applications for non-residential development within Zone RU5 Village. This Chapter also applies to development that includes a minor or subordinate residential component, for example a caretaker's dwelling. This Chapter does not apply to development of dwellings or secondary dwellings in Zone RU5; Chapter 3 of the DCP provides guidelines for development of dwellings and secondary dwellings. This Chapter does not apply to development of other residential development in Zone RU5. This Chapter does not apply to development of signage in Zone RU5; Chapter 4 of the DCP provides guidelines for development of signage.

The Kyogle Council area features a number of villages each with its own character. The surrounding landscape, built environment, streetscape and land use of each village contributes to the sense of place and overall amenity. The development guidelines contained in this Chapter aim to facilitate development within the villages that preserves and supports the desirable characteristics of each village.

Council recognises that new commercial and industrial development has the potential to impact upon the existing character and amenity of the villages. Development applications must therefore demonstrate that the proposed development will positively contribute to the amenity of the locality. Sensitive building and development design is an important way to protect existing amenity and to achieve integration with existing development and streetscape.

1.2 Aims of Chapter 5

a) To provide development guidelines to assist the design of development proposals and preparation of development applications for non-residential development within Zone RU5 Village and the assessment of those applications.
b) To facilitate development that preserves and supports the unique and desirable characteristics of the villages and is consistent with the Zone objectives.

1.3 Objectives of Chapter 5

a) To encourage development that responds appropriately to surrounding development in terms of its scale, character and nature and intensity of use.
b) To ensure that new or expanded development is adequately serviced and that suitable provision is made for access, car parking and landscaping.
c) To promote development in appropriate locations that reflects the pattern of existing development and contributes to the vitality and viability of the existing core commercial areas.

d) To preserve the character of the villages by protecting heritage items and ensuring that development within heritage conservation areas or within the vicinity of a listed heritage item are designed having regard to the heritage significance of the locality or item.
e) To ensure the amenity of existing development and residential properties is not adversely affected by new development.

2 DEVELOPMENT GUIDELINES

Note: the Acceptable Solutions in the table below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot, meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Design of Buildings and structures	
P1 The height of buildings and structures is consistent with the surrounding area and does not create visual impact	A1 Building height does not exceed maximum height shown on Height of Buildings Map
P2 Bulk and scale of buildings is consistent with surrounding development and reflects or enhances the architectural character of the village	No Acceptable Solution is prescribed: demonstrate how the proposal achieves the Performance Criteria
P3 Form and design of buildings is compatible with surrounding development and reflects or enhances the architectural character of the village	No Acceptable Solution is prescribed: demonstrate how the proposal achieves the Performance Criteria
P4 Building materials reflect or complement the existing character of the village	No Acceptable Solution is prescribed: demonstrate how the proposal achieves the Performance Criteria
Boundary setbacks	
P5 The front boundary setback of buildings and structures is consistent with existing buildings in the street	A5.1 Buildings and structures must be set back a minimum of 6 metres from the front boundary or where adjoining buildings have a lesser setback; the average of adjoining buildings OR A5.2 Where other commercial buildings fronting the same street have a zero setback, new development may be located on the front boundary subject to compliance with building and access requirements

Performance criteria	Acceptable solution
	OR **Where site fronts a classified road:** A5.3 Front boundary setback is at least 9 metres, except where A5.2 applies
P6 The side boundary setback of buildings and structures is consistent with surrounding development and does not impact on the amenity of surrounding development	**Where development site has a side boundary to a residential area:** A6.1 Buildings and structures are set back a minimum of 2 metres from side boundaries OR **Where development site does not have a side boundary to a residential area:** A6.2 Buildings and structures are set back a minimum of 1.5 metres from side boundaries OR A6.3 Where other commercial buildings fronting the same street have a zero setback, new development may be located on the side boundary subject to compliance with building and access requirements
P7 The rear boundary setback of buildings and structures is consistent with surrounding development and does not impact on the amenity of surrounding development	**Where development site has a rear boundary to a residential area:** A7.1 Buildings and structures are set back a minimum of 6 metres from rear boundaries OR **Where development has a rear boundary to a laneway or commercial development:** A7.2 Buildings and structures are set back a minimum of 3 metres from boundary A7.3 Uncovered car parks are set back a minimum of 1.5 metres from boundary and landscape planting is provided between car park and boundary
Corner allotments	
P8 Building setbacks on corner allotments permit safe conditions for pedestrians and vehicles, maintain the character and building line of the streets and do not impact on the amenity of adjoining properties	A8.1 Building setback to the primary street frontage* is as per A5.1, A5.2 or A5.3 A8.2 Setback of buildings and structures to secondary frontage is a minimum of 3 metres or at least the setback of existing adjoining buildings, whichever is the lesser

Performance criteria	Acceptable solution
	OR A8.3 Where other commercial buildings fronting the same street have a lesser setback, new development may have the same setback subject to compliance with building and access requirements A8.4 Buildings and structures are set back a minimum of 2 metres from side boundaries A8.5 Vehicular access points are not closer than 6 metres from the intersection * *The narrow street frontage is the primary street frontage*
Public realm, streetscape and pedestrian environment	
P9 Development maintains or restores the pattern of awnings in the village and provides appropriate protection for pedestrians and customers from sun and rain	A9 Development provides an awning over the footpath where fronting a street that features development with existing awnings
P10 Development addresses the street and makes a positive contribution to public realm	A10 The building entrance, shop front or customer service area face the street
P11 Development facilitates good pedestrian movement and accessibility and does not compromise the existing footpath width or function	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P12 Development minimises opportunities for crime	A12 Development incorporates 'Crime Prevention Through Environmental Design' (CPTED) principles
Development that includes a secondary residential component	
P13 Residential and non-residential uses of a site are compatible and buildings meet Building Code of Australia requirements	A13.1 The development site does not include industrial uses A13.2 The front entrance to the dwelling or dwellings is visible from the street frontage A13.3 The residential component is not the primary use of the site A13.4 The development complies with the provisions of the Building Code of Australia concerning fire separation and noise attenuation

Performance criteria	Acceptable solution
Garages, Carports and Outbuildings	
P14 Garages, sheds and carports are not visually intrusive and do not dominate the streetscape	A14.1 Garages, carports and outbuildings are not located in front of the line of the main building A14.2 The design of garages, carports and outbuildings is complementary of the design of the principal building
Landscaping and Vegetation	
P15 Development has a positive appearance and surrounding properties are buffered from impacts of the development, including; amenity, vehicular movements, appearance of buildings, operational areas and car parking	A15.1 Where development includes off street car parking and/or outdoor operational areas a 1.5 m wide landscape buffer is provided on side and rear boundaries A15.2 A landscape concept plan is submitted demonstrating achievement of buffer
P16 Development does not detract from the amenity or character of the site or neighbourhood through impacts on existing mature vegetation of significance	A16 Existing mature vegetation of significance is retained
Natural Hazards	
P17 Buildings, structures and persons on the development site are not exposed to unacceptable risk from flooding, landslip or bushfire	A17 Development is not on a site that is bushfire, flood or landslip prone
Servicing and Infrastructure	
P18 Development makes suitable provision for collection, management and treatment of effluent	**Where development is in a sewered area:** A18.1 Development is connected to the reticulated sewerage system OR **Where development is not in a sewered area:** A18.2 The development is able to be serviced by an on-site sewage management system in accordance with Council's On-site Sewage Management Strategy
P19 Development makes suitable provisions for management and disposal of liquid trade waste	A19 Where development generates liquid trade waste that waste is disposed of in accordance with Kyogle Council Liquid Trade Waste Policy
P20 The development is adequately serviced by power and telecommunications without	A20 The development is serviced by reticulated power and telecommunications

Performance criteria	Acceptable solution
impacting on surrounding properties by way of emissions of noise, odour, fumes or light	
P21 The development has adequate water supply	**Where development is in an area serviced by reticulated water:** A21.1 Development is connected to the reticulated water system OR **Where development is not in an area serviced by reticulated water:** A21.2 The development is self-sufficient for water supply
P22 Appropriate provisions are made for the collection and management of stormwater that does not contribute to flooding or impacts on surrounding properties	**Where development is in an area with a piped stormwater drainage network:** A22.1 Stormwater is collected and discharged to the stormwater drainage network OR **Where development is not in an area with a piped stormwater drainage network:** A22.2 Stormwater is effectively managed on site and does not contribute to flooding or nuisance on adjoining properties
P23 Solid waste collection and disposal system is appropriate to manage the waste generated by the development	A23.1 The development is serviced by a commercial waste collection service A23.2 Waste disposal systems and storage areas comply with the requirements of the Kyogle Council Construction Site Waste Minimisation and Management Policy
P24 Waste storage, collection or disposal areas do not create impacts on adjoining properties	A24.1 External waste storage facilities are located so as to be not visible from public places and adjoining properties or are screened from view A24.2 Waste storage does not create odour impacts
Protection of Amenity	
P25 Development does not result in adverse impacts on the residential amenity of the	A25.1 Operation of the development complies with the NSW Industrial Noise Policy where applicable

Performance criteria	Acceptable solution
locality by reason of emission of noise, odour, dust, fumes or light	A25.2 Development does not create undesirable odours A25.3 Development does not utilise external lighting outside of operational/opening hours A25.4 External lighting is shielded to prevent light spill over surrounding development
P26 Potentially intrusive activities* do not impact on the amenity of surrounding properties** ** Includes, but is not limited to; Light industries, Rural industries, Service stations, Transport depots, Truck depots, Freight transport facilities, Warehouse or distributions centres, Vehicle repair stations, Vehicle body repair workshops* *** Must be demonstrated through submission of a noise impact assessment or other*	A26.1 Potentially intrusive activities* are not located on a site that adjoins a residential use or other sensitive uses including, but not limited to; hospitals, education facilities, child care centres and seniors housing A26.2 Air compressors and other stationary noise generating plant are located in an enclosed structure
P27 Where development is located on a site that adjoins potentially intrusive activities*, the development will not be subject to unacceptable amenity impacts** ** Includes, but is not limited to; Light industries, Rural industries, Service stations, Transport depots, Truck depots, Freight transport facilities, Warehouse or distributions centres, Vehicle repair stations, Vehicle body repair workshops* *** Must be demonstrated through submission of a noise impact assessment or other*	A27 Development does not adjoin land where potentially intrusive activities* are carried out
Hours of Operation	
P28 Hours of operation of the development do not create unacceptable impact on amenity of surrounding properties	A28 Hours of operation are in accordance with Table C5.1 in Appendix C5
Access and Parking	
P29 The development makes suitable provisions for vehicular and pedestrian access that is safe and does not create traffic impacts	A29.1 Vehicles are able to enter and leave the site in a forward direction

Performance criteria	Acceptable solution
	A29.2 The development site has access to a constructed public road A29.3 Site access, internal driveways, manoeuvring and parking areas are in accordance with the Northern Rivers Local Government Development & Design and Construction Manuals, and Council's Property Access and Addressing Management Plan A29.4 Access for people with disabilities is provided in accordance with the provisions of AS 1428.1
P30 The development does not create unreasonable demand for on-street parking or adverse impacts on adjoining properties	A30 Car parking for employees and customers is provided on site in accordance with Chapter 8 Off street car parking where sufficient space is available
P31 Car parking does not detract from the streetscape or alter the existing building line	A31 Parking is provided at the rear of the premises
Where located on the site of a heritage item	
P32 Development does not adversely impact views or the setting of the heritage item	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Where adjoining a site of a heritage item	
P33 Development does not adversely impact views or the setting of the heritage item	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Where located in a heritage conservation area	
P34 Development complements the scale, form and character of existing development in the conservation area	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

APPENDIX C5

Table C5.1 Preferred operational or opening hours

Development use or activity	Monday to Friday	Saturday	Sunday and Public Holidays
Retail, Food and drink premises (excluding licensed premises)	6am-8pm	7am-8pm	7am-8pm
Office, Medical Centre	7am-8pm	8am-8pm	8am-8pm
Light industry	7am-6pm	7am-6pm	7am-6pm
Depot, Freight transport facility, Transport depot, Truck depot, Warehouse and distribution centre	7am-6pm	7am-1pm	Not permitted
Service station	6am-8pm	6am-8pm	6am-8pm
Vehicle repair station, Vehicle body repair workshop	7am-6pm	7am-1pm	Not permitted
Rural industries	7am-6pm	7am-1pm	Not permitted

CHAPTER 6 PUBLIC NOTIFICATION OF DEVELOPMENT APPLICATIONS

Public notification requirements for development applications are specified in Council's Community Participation Plan.

CHAPTER 7 DEVELOPMENT IN ZONES IN1 GENERAL INDUSTRIAL AND IN2 LIGHT INDUSTRIAL

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1 INTRODUCTION

1.1 Application

This Chapter applies in preparing and assessing applications for development that is permitted with consent under the Kyogle Local Environmental Plan 2012 (Kyogle LEP 2012) in Zones IN1 General Industrial and IN2 Light Industrial. For subdivision of land and buildings within Zones IN1 and IN2 refer to Chapter 2 Subdivision.

1.2 Exempt and Complying Development

Certain industrial development (eg. change of use of premises from light industry to another light industry) is permitted as Exempt Development (development that does not require development consent, subject to certain requirements). Reference should be made to any relevant State Environmental Planning Policy.

Certain industrial development (eg. new industrial sheds or additions) is permitted as Complying Development (minor development which does not require development consent, but can be certified by Council or a private certifier). Reference should be made to Schedule 3 of the Kyogle LEP 2012 and any relevant State Environmental Planning Policy.

1.3 Aims of Chapter 7

a) To provide development guidelines to assist the design of development proposals and preparation of development applications for development within Zones IN1 and IN2 and the assessment of those applications.
b) To facilitate the establishment of industrial development and other compatible development within Zones IN1 and IN2 that achieves the Zone objectives.

1.4 Objectives of Chapter 7

a) To achieve a high standard of visual amenity of industrial and urban areas through high quality building design and provision of suitable landscaping.
b) To ensure that industrial development is adequately serviced and makes suitable arrangement for dealing with waste and stormwater.
c) To ensure that development in flood prone areas is compatible with the flood hazard.
d) To ensure that development makes appropriate provision for site access, vehicular circulation, parking, loading and servicing.
e) To ensure that development does not result in adverse impacts on the amenity of surrounding development.

2 DEVELOPMENT GUIDELINES

Note: the Acceptable Solutions in the table below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot, meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Lot size	
P1 The lot is a suitable size and dimensions to accommodate the proposed development	A1 The lot is at least 1500m2 in area and has at least 24 metres of road frontage
Site design and earthworks	
P2 Development siting and layout utilises natural grades of the land and minimises cut and fill	A2 Buildings, structures and vehicular parking and manoeuvring areas are not located on land with a gradient exceeding 10%
P3 Cut and fill structures (including retaining walls) are structurally sound and do not impact on the amenity or geotechnical stability of adjoining properties	A3.1 Non-retained cut batters are a maximum 1.5m in height and no closer than 900mm to property boundary with a maximum slope of 1:3 (vertical:horizontal) A3.2 Non-retained fill batters are a maximum of 1.5m in height and no closer than 1.5 metres to property boundary with a maximum slope of 1:3 (vertical:horizontal) A3.3 Retaining walls higher than 0.6 metres are designed and certified by an appropriately qualified engineer
Design, form and scale of buildings and structures	
P4 Bulk and scale of buildings is appropriate for intended use	No Acceptable Solution is prescribed: demonstrate how the proposal achieves the Performance Criteria
P5 Buildings are designed to a high standard appropriate for the intended use and respond appropriately to the site characteristics and location	No Acceptable Solution is prescribed: demonstrate how the proposal achieves the Performance Criteria
P6 Site coverage of buildings and structures does not result in overdevelopment and must allow for landscaping, parking and servicing on site	A6 Site coverage of buildings and structures (excluding parking, loading and storage hardstand areas) does not exceed 50%

Performance criteria	Acceptable solution
P7 Building materials are attractive and non-reflective	A7.1 Wall materials do not include unpainted galvanized iron, zincalume or other metal sheeting
Boundary setbacks	
P8 The setback of buildings and structures to the primary road frontage is consistent with that of adjoining buildings and does not compromise the function of the road	**Where no parking is proposed in front of building:** A8.1 Buildings and structures are set back from the primary road frontage a minimum 6 metres OR **Where parking is proposed in front of building:** A8.2 Buildings and structures are set back from the primary road frontage a minimum 12 metres OR **Where primary road frontage is a classified road:** A8.3 Buildings and structures are set back from the primary road frontage a minimum of 20 metres
P9 The setback of buildings and structures to side boundaries allows for provision of landscaping, meets the requirements of the Building Code of Australia and does not impact on the amenity of adjoining non-industrial development	A9.1 Buildings and structures are set back from side boundaries a minimum of 3 metres OR **Where development site has a side boundary adjoining a residential or rural area:** A9.2 Buildings and structures are set back a minimum of 5 metres from that side boundary
P10 The setback of buildings and structures to rear boundaries allows for provision of landscaping, and does not impact on the amenity of adjoining non-industrial development	A10.1 Buildings and structures are set back a minimum of 6 metres from rear boundary and hardstand areas (including uncovered parking, storage and operational areas) are set back a minimum of 2 metres OR **Where development site has a rear boundary adjoining a residential or rural area:** A10.2 Buildings and structures are set back a minimum of 10 metres from rear boundary and hardstand areas (including uncovered parking, storage and operational areas) are set back a minimum of 4 metres
Corner allotments	
P11 Development on corner lots reflects the existing building line and does not dominate the	A11.1 Building setback to the primary road frontage* is as per A8.1, A8.2 or A8.3

Performance criteria	Acceptable solution
streetscape or create unacceptable impacts on visibility for pedestrians or traffic	A11.2 Setback of buildings and structures from the secondary frontage (where secondary road is not a classified road) is a minimum of 6 metres or at least the setback of existing adjoining buildings, whichever is the greater A11.3 Setback of buildings and structures from side boundaries** is as per A9.1,or A9.2 A11.4 Vehicular access points are not closer than 6 metres from the intersection * *The narrow street frontage is the primary street frontage* ** *Corner allotments are not considered to have a rear boundary*
Where development site adjoins a rail corridor	
P12 Site and building design and boundary setbacks do not create unsafe conditions or undermine the structural integrity of the rail corridor and rail infrastructure	A12.1 Buildings are set back at least 20 metres from the centreline of the rail corridor A12.2 Site and building design is consistent with the provisions of *Development near Rail Corridors and Busy Roads- Interim Guideline 2008*
Protection of amenity	
P13 Hours of operation of the development do not create unacceptable impacts on the amenity of surrounding properties	A13 Hours of operation are in accordance with Table C7.1

Performance criteria	Acceptable solution
P14 Developments does not result in adverse impacts on the amenity of the locality by reason of emission of noise, odour, fumes, light, dust, soot, ash or vibration	A14.1 Operation of the development complies with the NSW Industrial Noise Policy A14.2 Development does not create odour A14.3 Development does not utilise external lighting outside of operational/opening hours A14.4 External lighting is shielded to prevent light spill over surrounding development A14.5 Where development is on a site adjoining a residential area, external noise generating activities are not located between building and that property boundary A14.6 Air compressors and other stationary noise generating plant are located in an enclosed building or suitable acoustic enclosure
Landscaping and streetscape	
P15 Development addresses the street and makes a positive contribution to public realm	A15.1 The building entrance, retail area or customer service area faces the street A15.2 Security fencing is located behind the front building line
P16 Development minimises opportunities for crime	A16 Development incorporates 'Crime Prevention Through Environmental Design' (CPTED) principles
P17 Landscaping creates a positive appearance of the development and the streetscape	A17.1 Landscaping is provided along all road frontages to a minimum depth of 3 metres and along side and rear boundaries to a minimum width of 2 metres A17.2 A landscape concept plan is submitted that shows proposed planting areas, species and planting densities and details planting area preparation and planting techniques A17.3 Landscape plantings include a mixture of low maintenance trees, shrubs and groundcovers A16.4 Tree and shrub species are of suitable scale to complement the height and bulk of the development

Performance criteria	Acceptable solution
P18 Landscaping is used to screen or buffer surrounding non-industrial properties from impacts of the development	A18 Where a site boundary adjoins public land or a rural or residential area a minimum 4 metre deep landscape buffer is provided along that boundary
P19 Development does not detract from the amenity or character of the site or neighbourhood through impacts on existing mature vegetation of significance	A19 Existing mature vegetation of significance is retained
Hazard and risk	
P20 Buildings, structures and persons on the development site are not exposed to unacceptable risk from flooding and development does not exacerbate flooding on surrounding properties	A20.1 The development site is not prone to flooding from inundation or overland flow OR **Where development is proposed on flood prone land:** A20.2 A report is submitted by a suitably qualified person that demonstrates the floor level of the development achieves a height of at least the level of a 100 year ARI flood OR **Where development is proposed on a lot within the Flood Planning Area shown on the LEP Flood Planning Map:** A20.3 The development complies with the provisions of the Development Control Plan in the Kyogle Council Floodplain Risk Management Plan 2009
P21 Buildings, structures and persons on the development site should not be exposed to unacceptable risk from landslip or bushfire	A21 Development is not within a mapped bushfire or landslip hazard area
Servicing and Infrastructure	
P22 Development makes suitable provision for collection, treatment and disposal of effluent	**Where development site is in a serviced area or where connection is available at reasonable cost:** A22.1 Development is connected to the reticulated sewer system OR **Where development is not located in a serviced area:** A22.2 Development utilises an individual or package on site-sewage management system

Performance criteria	Acceptable solution
P23 Development makes suitable provisions for management and disposal of liquid trade waste	A23 Where development generates liquid trade waste that waste is disposed of in accordance with Kyogle Council Liquid Trade Waste Policy
P24 The development is adequately serviced by power and telecommunications without impacting on surrounding properties by way of emissions of noise, odour, fumes or light through on-site generation of power	A24 The development is serviced by reticulated power and telecommunications
P25 The development has adequate water supply	**Where development site is in a serviced area or where connection is available at reasonable cost:** A25.1 Development is connected to the reticulated water supply network OR **Where connection to reticulated water supply is not available:** A25.2 Development is self-sufficient for water
P26 Appropriate provisions are made for the collection and management of stormwater	**Where development site is in a serviced area:** A26.1 Stormwater is discharged to the stormwater drainage network OR **Where development site is not in a serviced area:** A26.2 Stormwater is effectively managed on site and does not contribute to flooding or nuisance on adjoining properties
P27 Solid waste collection and disposal is appropriate to manage the waste generated by the development	A27.1 Development is serviced by a commercial waste collection service A27.2 Development provides an area for storage and collection of bulk waste containers A27.3 Waste storage areas are located behind the front building line or screened from view A27.4 Waste storage and disposal complies with the requirements of the Kyogle Council Construction Site Waste Minimisation and Management Policy

Performance criteria	Acceptable solution
P28 Suitable provisions are made for fire protection and fire fighting and development complies with provisions of BCA	A28 Development has fire hydrants and/or booster systems at the required proximity to the site and allows on site access for fire fighting vehicles
P29 Development makes adequate provision for needs of employees	A29 Development includes a covered outdoor area for use by employees during breaks
Water Sensitive Urban Design	
P30 Development minimises stormwater discharge from the site and does not create impacts on water quality of receiving waters	A30.1 Runoff from hardstand areas is directed to areas that allow stormwater infiltration, such as permeable paving and garden beds **Where development includes more than 1500m2 of hard surfaces (roofs, hardstand, driveways, etc.):** A30.2 Development is designed and operated in accordance with a Stormwater Quality Management Plan prepared by a suitably qualified person
P31 Development minimises demand for reticulated potable water	A31 Rainwater tanks are utilised to collect runoff from roofs for use on site
P32 Stormwater discharged from the site is free from pollutants and contaminants	A32.1 Stormwater from areas which may contain solid, liquid or gaseous pollutants is passed through a stormwater treatment device to remove hydrocarbons, suspended solids and pollutants prior to discharge A32.2 Areas where potentially contaminating substances are stored or used are roofed A32.3 Provision is made for spills to be bunded and retained on site for removal and disposal by an approved means A32.4 Areas where spillages can occur are sealed with concrete, asphalt or similar impervious material A32.5 Roof water is piped away from areas of potential contamination
Access and Parking	
P33 The development makes suitable provisions for vehicular access that is safe and does not create traffic impacts	A33.1 Vehicles are able to enter and leave the site in a forward direction A33.2 Vehicular access and parking areas are designed and constructed in accordance with the Northern Rivers

Performance criteria	Acceptable solution
	Local Government Development Design and Construction Manual A33.3 Car parking and light vehicle traffic are separated from heavy vehicle access and traffic areas
P34 The development does not create unreasonable demand for on-street parking	A34 Car parking for employees, customers and contractors is provided in accordance with requirements of Chapter 8- Off-Street Car Parking
External loading and storage	
P35 Truck parking, delivery and loading areas are suitable for the proposed use and do not dominate the streetscape	A35.1 Truck parking, loading and delivery areas are not located in front of the building line A35.2 A loading bay of no less than 7 metres x 4 metres is provided to permit access and accommodation of a small rigid truck A35.3 No loading or unloading of vehicles occurs within the road reserve
P36 External storage areas do not detract from the visual appearance of the development of streetscape	A36.1 Any open storage areas are located behind the building line setback and preferably behind any proposed or existing buildings A36.2 Open storage areas are screened from view from the road frontage and adjoining properties
Signage and Advertising	
P37 Signage and advertising is not visually obtrusive and does not detract from the character of the surrounding area	A37.1 Signage and advertising is in accordance with Chapter 4 Signage A37.2 Signs do not project above the roof/gutter line A37.3 Signs are affixed to the building and do not protrude AND **Where lot has frontage to the Summerland Way:** A37.4 Signs are not located so as to capitalise on visibility from Summerland Way

Performance criteria	Acceptable solution
Additional guidelines for non-industrial uses (including bulky goods retail, other retail, industrial retail outlets, industrial training facilities, freight transport facilities, etc.)	
P38 Non-industrial uses in the IN1 and IN2 zones are compatible with surrounding industrial activities	A38 Non-industrial uses are not impacted adversely by surrounding industrial development
P39 The retail component of an industrial retail outlet is subsidiary to its industrial use	A39 The retail floor area is in accordance with the provisions of Clause 5.4(4) of the KLEP 2012
Additional guidelines for ancillary office uses	
P40 The office use of the site is subsidiary and ancillary to its principal use	A40 The gross floor area of ancillary offices in a premises does not exceed 20% of the gross floor area of the building

APPENDIX C7

Table C7.1 Preferred operational or opening hours

Development use or activity	Monday to Friday	Saturday	Sunday and Public Holidays
Retail or Office premises	5am-10pm	5am-10pm	7am-8pm
Light industries, Agricultural produce industries, Depots, Warehouse and distribution centres	7am-7pm	7am-7pm	Not permitted
General industries, Freight transport facilities, Liquid fuel depots	7am-6pm	7am-2pm	Not permitted
Industrial training facility	7am-7pm	7am-2pm	Not permitted
Service station	5am-10pm	5am-10pm	6am-9pm

CHAPTER 8 OFF-STREET CAR PARKING

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1 INTRODUCTION

1.1 Application

This chapter applies to new development in all Zones, excluding non-residential development in Zone RU5 Village.

1.2 Aims of Chapter 8

a) To provide guidelines to determine site access and off-street car parking requirements for new development.

b) To provide guidelines to assist the design of carparking, the preparation of development applications and the assessment of those applications.

1.3 Objectives of Chapter 8

a) To ensure that adequate provision is made for off-street parking of passenger and service vehicles commensurate with the volume and turnover of all traffic likely to be generated by a development.

b) To reduce dependency on kerb-side parking, particularly within the Kyogle Business District and industrial areas and to assist in safe pedestrian and vehicle movement.

c) To ensure that parking areas are safely and attractively constructed, designed and landscaped, to encourage their use by both vehicles and pedestrians.

d) To apply parking standards so as to recognise historic deficiencies in the provision of off-street parking on individual sites.

e) To encourage the provision of facilities for parking of vehicles used by people with disabilities within appropriate developments.

f) To provide applicants with convenient, clear and precise information of Council's requirements for off-street car parking.

1.4 Definitions

The Kyogle LEP 2012 contains definitions for the various forms of development within the council area. This chapter uses the adopted definitions as well as the following:

Aisle means a roadway or an area used by vehicles to gain access to and manoeuvre out of a parking space.

AS/NZS 2890.1 refers to Australian/New Zealand Standard 2890.1 Off-Street Car Parking.

AS2890.2 refers to Australian Standard 2890.2 "Commercial Vehicle Facilities".

AS2890.3 refers to Australian Standard 2890.3 "Bicycle Parking Facilities".

Change of Use means development being a change in the use of a building, land or premises from one defined purpose to another.

Council means Kyogle Council.

Customer Service Area means, in respect of a refreshment room, hotel, club or the like, the area of that establishment including any outdoor area, which is available for the service of patrons, excluding kitchens or other areas for staff only.

Development has the same meaning as in Section 4 of the *Environmental Planning and Assessment Act 1979*.

Display Area means any outdoor area of a site principally used for the display of goods for sale.

Driveway means the roadway by which vehicles move between the road carriageway and the car parking spaces and vice versa, including the crossing over the public footpath.

Employee means any person, principle or staff engaged in the undertaking relating to the application and shall be included in the calculations for the determination of the number of car parking spaces required.

Gross Floor Area (GFA) means the sum of the areas of each floor of a building where the area of each floor is taken to be the area within the outer face of the external enclosing walls as measured at a height of 1,400 millimetres above each floor level excluding:

(i) Columns, fin walls, sun control devices and any elements, projections or works outside the general line of the outer face of the external wall;

(ii) Lift towers, cooling towers, machinery and plant rooms and ancillary storage space and vertical air-conditioning ducts;

(iii) Car parking needed to meet any requirements of the Council and any internal access thereto;

(iv) Space for the loading and unloading of vehicles.

Market Area means that area of a retail market equivalent to twice the site area physically occupied by the market stalls at that market.

Parking Space means an area in which a vehicle is to be parked so that adequate clearance is available for access to and from that space, appropriate to the class of vehicle. It includes any garage or court available for parking vehicles.

Pick Up/Set Down Area means a parking space (or spaces) set aside for the picking up or setting down of vehicle passengers, preferably physically separate from any adjacent vehicle carriageway.

Site Area means the area of the legal allotment(s) of land to which an application for consent to carry out development relates.

Work Bay means that area of a car repair station, service station or similar establishment which is normally used for the servicing or repair of single vehicles, including any car washing bay.

2 DEVELOPMENT GUIDELINES

Note: the Acceptable Solutions in the table below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Car parking numbers	
P1 Sufficient car parking spaces are provided on site to service the development and the development will not create an unreasonable demand for on-street parking	A1.1 Car parking spaces are provided within the development site in accordance with Table C8.1 in Appendix C8 OR A1.2 For change of use or redevelopment of existing sites and buildings or structures, the maximum number of car parking spaces that can be reasonably accommodated within the site are provided A1.3 Stack parking may be utilised to achieve required parking for residential units provided the stack parking does not interfere with any other unit or visitor parking
Safety and Access	
P2 Car parking areas are safe, readily accessible and do not create impacts on safe and efficient movement of vehicles and pedestrians	A2.1 Car park access and manoeuvring areas are designed in accordance with the relevant Australian Standards, and the Austroads Guide to Traffic Engineering Practice- Part 11 Parking. A2.2 Vehicular access and car parking areas are designed and constructed in accordance with the Northern Rivers Local Government Development Design and Construction Manual.

Performance criteria	Acceptable solution
	A2.3 Vehicles are able to enter and leave the site in a forward direction A2.4 Access and dedicated car parking spaces are provided for people with disabilities in accordance with the relevant Australian Standards A2.5 Car parking and light vehicle traffic are separated from heavy vehicle access and traffic areas A2.6 Adequate signage is provided in accordance with Chapter 4 Signage to advise of the availability of off-street parking areas
Visual Amenity	
P3 Car parking does not detract from the streetscape or alter the existing building line	A3 Car parking is provided at the rear of the premises
P4 Landscaping creates a positive appearance of the development and the streetscape	A16.1 A landscape concept plan is submitted that shows proposed planting areas, species and planting densities and details planting area preparation and planting techniques A16.2 Landscape plantings include a mixture of low maintenance trees, shrubs and groundcovers and avoids plants that attract large numbers of birds or dropping fruits and leaves A16.3 Tree and shrub species are of suitable scale to avoid creating visibility issues in car parking areas
Water Sensitive Urban Design	
P5 Car park design minimises stormwater discharge from the site and does not create impacts on water quality of receiving waters	A5 Runoff from hardstand areas is directed to areas that allow stormwater infiltration, such as permeable paving and garden beds
Loading and Delivery Areas	
P6 Loading areas do not create conflicts with pedestrian or road traffic	A6.1 Car parking and light vehicle traffic are separated from heavy vehicle access and traffic areas A6.2 No loading or unloading occurs within the road reserve, including parking of vehicles associated with the loading and unloading of goods

Performance criteria	Acceptable solution
	A6.3 Loading bays and manoeuvring areas have sufficient dimensions to suit the vehicle servicing the development and allow all manoeuvring to occur wholly within the development site

APPENDIX C8

Table C8.1 Car Parking Requirements for various land use and development types

Land use or development type	Number of car parks required
Agricultural produce industry	1 per 2 employees
Amusement centre	4 per 100m GFA plus 1 per 2 employees
Animal boarding or training establishment	1 per 2 employees
Backpackers acommodation	1 per 5 beds plus 1 per 2 employees
Bed and breakfast accommodation, Farmstay accommodation, Eco-tourist facility	1 per bedroom/cabin/unit etc plus 1 per 2 employees
Boarding house	1 per 3 rooms plus 1 per 5 rooms for visitor spaces
Bulky goods premises	3 per 100m^2 GFA
Business premises	1 per 40 m^2 GFA
Caravan park Manufactured home estate	1 per caravan site plus 1 per 10 sites (visitor carparking) 1 per Dwelling plus 1 per 2 Dwellings for visitors
Child care centre	1 per 4 children in attendence
Commercial premises (other than retail or office premises)	1 per 40m^2 GFA
Dual occupancy	1 per unit plus 1 visitor carspace
Dwelling house, Attached or semi detached dwelling	2 per dwelling
Educational establishments: Tertiary Secondary Primary Special (incl. handicapped) Other (art school, drama, dance school)	 1 per 2 employees plus 1 per 10 students 1 per 2 employees plus 1 per 10 year 11 and 12 students 1 per 2 employees plus 1 per 100 students (visitor carspace) 1 per 2 employees plus adequate set down area 1 per 2 employees plus 1 per 10 students
Entertainment facility	1 per 10 seats or 1 per 10m^2 of public floor space whichever is the greater
Exhibition home	2 per dwelling
Extractive industry	1 per employee
Freight transport facility	Assessed on merits
Function centre	1 per 10 seats or 1 per 10m^2 of public floor space whichever is the greater
Funeral home	Assessed on merits

Land use or development type	Number of car parks required
Hospital	1 per 5 beds plus 1 per 3 employees and resident doctors
Industry (heavy, general and light)	1 per 100m^2 GFA
Intensive livestock agriculture	1 per 2 employees
Landscape material supplies	1 per 100m^2 display area
Livestock processing industry	1 per 2 employees
Liquid fuel depot	1 per 2 employees
Market	Assessed on merits
Medical Centre	4 spaces for first health care professional then 3 for each additional health care professional
Mortuary	1 space per 3 seats
Multi dwelling housing	1 per 1 bedroom dwelling; 1.5 per 2 bedroom dwelling; 2 per 3 bedroom dwelling plus 1 per 5 dwellings for visitor parking
Neighbourhood shop	3 per 100m^2 GFA
Office premises	1 per 40m^2 GFA
Place of public worship	1 per 10 seats or 1 per 10m^2 of seating area
Plant Nursery: Wholesale Retail	 1 per 2 employees 1 per 100m^2 plant display area (indoor and outdoor) plus 1 per 2 employees
Pub	1 per 3.5m^2 of licensed floor area plus 1 per 2 employees plus 1 per 5 seats (function room/restaurant/dining room) plus 1 per room where accommodation is provided
Public administration building	1 per 40m^2 GFA
Recreation area	Assessed on merits
Recreation facility indoor: Squash/Tennis Courts Gymnasium/Fitness Centre Indoor Cricket Centre Bowling alley Other	 3 per court plus 1 per 2 employees 1 per 40m^2 GFA 10 per pitch 3 per lane 1 per 40m^2 GFA
Recreation facility outdoor	Assessed on merits
Registered club	1 per 3 employees 1 per 25m^2 function/auditorium area 1 per 10m^2 dining area 1 per 5m^2 bar area and gaming area
Residential flat building	1 per 1 bedroom dwelling; 1.5 per 2 bedroom dwelling; 2 per 3 bedroom dwelling plus 1 per 5 dwellings for visitor parking
Restaurant or cafe	1 per 5 seats plus 1 per 2 employees
Restricted premises	1 per 30m^2 GFA
Retail premises; where not seperately listed	1 per 40m2 GFA
Rural industry	1 per 100m^2 GFA or 1 per 2 employees, whichever is the greater
Rural workers dwelling	2

Land use or development type	Number of car parks required
Self storage units	1 per 20 sheds plus 1 per 2 employees
Seniors housing: Self contained Hostel	 0.5 per bedroom or 1 per 5 dwellings which ever is the greater plus 1 per 2 employees and 1 Ambulance space 1 per 10 beds plus 1 per 2 employees and 1 Ambulance space
Service sation Vehicle repair station	4 per work bay plus 1 per 40m^2 GFA of convenience shop plus 1 per 5 seats for a restaurant
Retail premises: Shopping complex (incorporating a department store) Shop	 1 per 40m^2 GFA 1 per 40m^2 GFA
Stock and sale yard	Assessed on merits
Timber yard	Assessed on merits
Tourist and visitor accommodation: Hotel or motel accommodation Serviced apartments Other	 1 per room/unit plus 1 per 2 employees plus 1 per 5 seats of a restaurant or convention room whichever is the greater 1 per 2 rooms plus 1 per 2 employees 1 per accommodation unit plus 1 per 2 employees
Vehicle sales or hire premises	0.75 per 100m^2 of display area plus 4 per work bay (for vehicle servicing facilities)
Veterinary hospital	3 spaces per surgery plus 1 per 2 employees
Warehouse or distribution centre	1 per 300m^2
Waste or resource management facility	Assessed on merits
All other	Assessed on merits

CHAPTER 9 BED AND BREAKFAST ACCOMMODATION AND FARM STAY ACCOMMODATION

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1 INTRODUCTION

1.1 Application

This Chapter applies in preparing and assessing applications for development of **Bed and breakfast accommodation** and **Farm stay accommodation** in any Zone where the development is permitted with consent under the Kyogle Local Environmental Plan 2012 (Kyogle LEP 2012).

1.2 Aims of Chapter 9

a) To provide development guidelines to assist the design of development proposals and preparation of development applications and the assessment of those applications.
b) To facilitate small scale development opportunities to grow and diversify the local economy.
c) To increase the variety and availability of accommodation options for visitors and tourists to the Kyogle Council area.

2 BED AND BREAKFAST ACCOMMODATION

2.1 Application

This section applies to development for the purposes of **bed and breakfast accommodation**. Clause 5.4(1) of the Kyogle LEP 2012 also contains provisions regarding the maximum number of rooms permitted to be provided to guests.

The Dictionary of the Kyogle LEP 2012 states that '***bed and breakfast accommodation*** *means an existing dwelling in which temporary or short-term accommodation is provided on a commercial basis by the permanent residents of the dwelling and where:*

a) Meals are provided for guests only, and
b) Cooking facilities for the preparation of meals are not provided within guests' rooms and
c) Dormitory style accommodation is not provided.'

Temporary or short term accommodation is generally considered to comprise accommodation that;

1. Is advertised to the general public; and
2. Involves the making of a booking for guests and involves a payment for bed and breakfast accommodation services and facilities; and
3. Is only short term and temporary for any guest – i.e. the duration is irregular or intermittent and is generally less than a 1 month period

2.2 Complying Development

Certain bed and breakfast development is permitted as Complying Development (minor development which does not require development consent, but can be certified by Council or a private certifier). Reference should be made to any relevant State Environmental Planning Policy.

2.3 Objectives

a) To facilitate the development of Bed and breakfast accommodation and Farm stay accommodation that is consistent with the applicable zone objectives.
b) To ensure that bed and breakfast accommodation does not impact adversely on the amenity of surrounding properties.
c) To ensure that guests of bed and breakfast accommodation are not exposed to unacceptable risk from natural hazards.
d) To ensure that bed and breakfast accommodation meets building, health and fire safety standards.
e) To ensure that bed and breakfast accommodation has appropriate vehicular access and is adequately serviced.
f) To ensure bed and breakfast accommodation in rural locations is not likely to create land use conflict.

2.4 Development Guidelines

Note: the Acceptable Solutions in the table below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot, meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Scale and operation of the development	
P1 Development is operated as part of the household	A1 Bed and breakfast accommodation is operated by a permanent resident of the dwelling house
P2 The principal function of the building is a dwelling house for use by a single household group	A2.1 Accommodation for guests is located within an existing dwelling house – this can include attached or separated rooms provided that such rooms are attached to a central common dwelling area with weatherproof access A2.2 Development provides a maximum 5 bedrooms accommodation of guests A2.3 Bedrooms may include spas and ensuite facilities but do not include facilities for the cooking of any meals – all meals on the premises are to be solely provided within common eating areas A2.4 Development provides for no more than 12 guests
P3 Operation of the bed and breakfast does not impact on the amenity of surrounding properties	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Effluent management	
P4 The development makes suitable provision for treatment and disposal of effluent that does not create public health impacts or adversely impact quality of surface and ground waters	A4.1 The development is serviced by an approved on-site sewage management system A4.2 The on-site sewage management system has capacity to cope with additional effluent load OR A4.3 The development is connected to a reticulated sewerage system

Performance criteria	Acceptable solution
Solid waste management	
P5 The development must make satisfactory arrangements for the storage and disposal of solid waste	A5 Solid waste is removed from site and disposed at an approved facility
Transport and Access	
P6 Development must make satisfactory arrangements for vehicular access and parking	A6.1 Internal access roads and parking areas are all weather design and construction A6.2 Vehicles are able to enter and leave the site in a forward direction A6.3 Bed and breakfast accommodation and the associated dwelling utilise the same driveway and vehicular access A6.4 Car parking is provided in accordance with Chapter 8 Off-street car parking A6.5 Vehicular access, parking and manoeuvring areas are in accordance with standards in the Northern Rivers Local Government Development & Design and Construction Manuals and Council's Property Access and Addressing Management Plan
P7 Public roads servicing the site are a suitable standard to cater for traffic generated by the development	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Land use conflict avoidance	
P8 Bed and breakfast accommodation will not create risk of land use conflict* * *Achievement of P8 will generally require submission of a land use conflict risk assessment (LUCRA) prepared in accordance with the Department of Primary Industries 'Living and Working in Rural Areas' guidelines (2007)*	A8.1 Development achieves buffers specified in Table C9.1 in Appendix C9
Natural hazards	
P9 Buildings, structures and persons on the development site are not exposed to unacceptable risk from bushfire	A9.1 Development is not on a lot that is mapped as bushfire prone land

Performance criteria	Acceptable solution
	OR A9.2 A report prepared by a Certified Bushfire Practitioner is provided that demonstrates the dwelling can achieve the requirements of the Rural Fire Service publication 'Planning for Bushfire Protection' 2006 or any superseding guideline
P10 Buildings, structures and persons on the development site are not exposed to unacceptable risk from flooding	A10.1 The development site is not prone to flooding from inundation or overland flow OR **Where the development is on land that is mapped as or known to be prone to flooding:** A10.2 A report is submitted by a suitably qualified person that demonstrates the floor level of the development achieves a height of at least the level of a 100 year ARI flood event plus 0.5 metres freeboard OR **Where development is proposed on a lot within the Flood Planning Area shown on the Flood Planning Map in the LEP:** A10.3 The development complies with the provisions of the Development Control Plan in the Kyogle Council Floodplain Risk Management Plan 2009
P11 Buildings, structures and persons on the development site are not exposed to unacceptable risk from landslip or mass movement	A11.1 The development site does not display evidence of landslip or mass movement OR A11.2 A report is submitted by suitably qualified geotechnical engineer that demonstrates the site is stable and suitable to accommodate the development
Disabled access	
P12 The development is accessible by disabled persons where practical	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Fire safety	
P13 The development makes suitable provisions for fire prevention, management and evacuation	A13 A Fire Prevention and Management Plan for the development is prepared

Performance criteria	Acceptable solution
Signage	
P14 Signage is suitable to signify the location of the accommodation and does not create adverse impacts on the amenity or character of the area	A14 Signage identifying the business comprises no more than two signs each sign with a maximum area of 1.5 m^2 and complies with Chapter 4 Signage
Additional guidelines for development where accommodation is in a detached building	
P15 The design and siting, servicing and infrastructure arrangements, visual impact and environmental impact of the building is in accordance with guidelines for detached additions or extensions to dwellings in Chapter 3	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Water Supply	
P16 The development must provide safe drinking water to its guests	A16.1 The development is connected to reticulated water supply OR A16.2 The development has a self-sufficient water supply that meets the requirements of the Public Health Act

2.5 Mandatory Provisions

The following development standards are mandatory and relate to standards in the Building Code of Australia, Australian Standards and food safety legislation. The application must demonstrate how the proposal meets the following standards:

Building Design and Accommodation Standards
MP1 Development meets the requirements of the Building Code of Australia for: 1. Minimum height of ceilings; Part 3.8.2 2. Sound transmission; Part 3.8.6 3. Light and ventilation; Part 3.8.4 and 3.8.5
Fire Safety
MP2 Development meets fire safety provisions of the Building Code of Australia for; 4. Provision for escape and egress; Part 3.9 5. Smoke detectors; Part 3.7.9
Food preparation
MP3 Food storage, preparation and service is in accordance with the following: 6. Kitchen facilities meet standards of the NSW *Food Act 2003* and *Food Regulation 2010* 7. Food preparation is carried out by persons who have a current food safety supervisor certificate issued by the NSW Food Authority

3 Farm Stay Accommodation

3.1 Application

This section applies to development for the purposes of **farm stay accommodation**. Clause 5.4(5) of the Kyogle LEP 2012 also contains provisions regarding the maximum number of rooms permitted to be provided to guests.

The Dictionary of the Kyogle LEP 2012 states that '***farm stay accommodation*** *means a building or place that provides temporary or short term accommodation to paying guests on a working farm as a secondary business to primary production*'.

Temporary or short term accommodation is generally considered to comprise accommodation that;

1. Is advertised to the general public; and
2. Involves the making of a booking for guests and involves a payment for bed and breakfast accommodation services and facilities; and
3. Is only short term and temporary for any guest – i.e. the duration is irregular or intermittent and is generally less than a 1 month period

3.2 Objectives

a) To facilitate the development of a variety of farm stay accommodation options in order to provide additional accommodation for tourists and visitors in the Kyogle local government area.
b) To facilitate the development of farm stay accommodation in order to provide additional income generating potential for farms and to encourage an appreciation of the value of agriculture and the role of farming.
c) To ensure that farm stay accommodation does not impact adversely on the amenity of surrounding properties.
d) To ensure that guests of farm stay accommodation are not exposed to unacceptable risk from natural hazards.
e) To ensure that farm stay accommodation meets minimum building, health and fire safety standards.
f) To ensure that farm stay accommodation has appropriate vehicular access and is adequately serviced.
g) To ensure that farm stay accommodation is not likely to create land use conflict.

3.3 Development Guidelines

Note: the Acceptable Solutions in the table below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot, meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Scale and operation of the development	
P1The farm stay accommodation business is, at all times, to be operated in conjunction with an agricultural enterprise on the property that forms the intended dominant use of the land	A1.1 Guest accommodation consists of: a) No more than 5 bedrooms where forming part of the principal farm dwelling house; or b) No more than 1 separate cabin or chalet-style unit for each 10 hectares of the total land area of the allotment on which the development is to be located, with no more than 12 bedrooms in total; and c) An overall total of no more than Subject to compliance with all other relevant requirements of the LEP" A1.2 Guest accommodation within the principal dwelling consists of: a) No more than 5 bedrooms – this can include attached or separated rooms provided that such rooms are attached to a central common dwelling area with weatherproof access; and A1.3 No more than 1 separate cabin or chalet-style unit for each 10 hectares of the total land area of the allotment on which the development is to be located, and A1.4 The overall development for guest accommodation, including that which is part of the principal dwelling or separate cabins or chalets, has no more than 12 bedrooms in total; and A1.5 Bedrooms may include spas and ensuites facilities but do not include facilities for the cooking of any meals – all meals on the premises are to be solely provided within common eating areas
Land use conflict avoidance	
P2 Farm stay accommodation will not create risk of land use conflict* * *Achievement of P2 will generally require submission of a land use conflict risk assessment (LUCRA) prepared in accordance with the*	A2.1 Development achieves buffers specified in Table C9.1 in Appendix C9

Performance criteria	Acceptable solution
Department of Primary Industries 'Living and Working in Rural Areas' guidelines (2007)	
Design and siting of buildings	
P3 Site layout and building design seeks to utilise natural grades of the land and minimises cut and fill	A3.1 Buildings and structures are not located on land with a gradient that exceeds 15% A3.2 Cut or fill does not exceed 1 metre in height and a total height of 2 metres
P4 The setback of buildings and structures from the primary road frontage is consistent with the surrounding area	A4.1 Buildings and structures are set back a minimum of 20 metres from the front boundary OR **Where site has frontage to a classified road:** A4.2 Buildings and structures are set back from front boundary a minimum of: • Where in Zones RU1 or RU2:- 50 metres • Where in Zone RU4:- 30 metres
P5 The setback of buildings and structures from side and rear property boundaries does not impact on the amenity of adjoining properties	A5.1 Buildings and structures are set back a minimum of 10 metres from side boundary A5.2 Buildings and structures are set back at least 10 metres from rear boundary OR **Where side or rear boundary has frontage to a public road:** A5.3 Buildings and structures are set back at least 20 metres from property boundary
Environmental impact	
P6 The siting of buildings and structures does not impact on ecological or hydrological values of watercourses, water bodies and wetlands	A6.1 Buildings and structures are set back a minimum of 100 metres from the top of bank of permanent watercourses (Order 3 Stream or greater) or water bodies and 40 metres from the top of bank of an Order 1 or 2 Stream A6.2 Buildings, structures and operational areas are set back a minimum of 100 metres from the edge of wetland

Performance criteria	Acceptable solution
P7 Development does not create unacceptable impact on ecological functions or biodiversity values	A7.1 Siting of buildings, structures and driveways does not require the clearing of native vegetation A7.2 Buildings and structures are not located within a mapped ecological corridor
Visual impact	
P8 Buildings and structures do not impact adversely on significant views or rural and/or natural landscape character and do not reflect light on surrounding properties	A8.1 Buildings and structures are not located on prominent ridgelines or hilltops or in prominent locations when viewed from significant public vantage points OR A8.2 Landscaping is used to screen views of the development from significant vantage points AND A8.3 External walls and roofs are clad in non-reflective materials and colours are muted
Effluent management	
P9 The development makes suitable provision for treatment and disposal of effluent that does not create public health impacts or adversely impact quality of surface and ground waters	A9.1 Accommodation units for guests are serviced by an on-site sewage management system that is additional to the system servicing the dwelling OR A9.2 The development is serviced by an existing approved on-site sewage management system and the system has capacity to cope with additional effluent load
Solid waste management	
P10 The development must make satisfactory arrangements for the storage and disposal of solid waste	A10 Solid waste is disposed at an approved facility
Water Supply	
P11 The development must provide safe drinking water to its guests	A11.1 The development is connected to reticulated water supply OR A11.2 The development has a self-sufficient water supply that meets the requirements of the Public Health Act

Performance criteria	Acceptable solution
Transport and Access	
P12 Development must make satisfactory arrangements for vehicular access and parking	A12.1 Internal access roads and parking areas are all weather design and construction A12.2 Vehicles are able to enter and leave the site in a forward direction A12.3 Farm stay accommodation and the main dwelling utilise the same vehicular access A12.4 Car parking is provided in accordance with Chapter 8 Off-street car parking A12.5 Vehicular access, parking and manoeuvring areas are in accordance with standards in the Northern Rivers Local Government Development & Design and Construction Manuals and Council's Property Access and Addressing Management Plan
P13 Public roads servicing the site are a suitable standard to cater for traffic generated by the development	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Protection of amenity of surrounding properties	
P14 Development is not likely to impact on amenity of adjoining properties	A14.1 Accommodation buildings and vehicular access, parking and manoeuvring areas are not located within 100 metres of a dwelling on an adjoining property
Natural hazards	
P15 Buildings, structures and persons on the development site are not exposed to unacceptable risk from bushfire	A15.1 Development is proposed on land that is mapped as bushfire prone land OR A15.2 A report prepared by a Certified Bushfire Practitioner is provided that demonstrates the dwelling can achieve the requirements of the Rural Fire Service publication 'Planning for Bushfire Protection' 2006 or any superseding guideline
P16 Buildings, structures and persons on the development site are not exposed to unacceptable risk from flooding	A16.1 The development site is not prone to flooding from inundation or overland flow

Performance criteria	Acceptable solution
	OR **Where the development is on land that is mapped as or known to be prone to flooding:** A16.2 A report is submitted by a suitably qualified person that demonstrates the floor level of the development achieves a height of at least the level of a 100 year ARI flood event plus 0.5 metres freeboard
P17 Buildings, structures and persons on the development site are not exposed to unacceptable risk from landslip or mass movement	A17.1 The development site does not display evidence of landslip or mass movement OR A17.2 A report is submitted by suitably qualified geotechnical engineer that demonstrates the site is stable and suitable to accommodate the development
Contaminated land	
P18 Guests are not exposed to unacceptable risk from contamination	A18.1 Development is not on a site that is listed as contaminated A18.2 Accommodation buildings are not located within 200 metres of a cattle dip OR A18.3 A report prepared by a suitably qualified person is submitted that demonstrates the site is suitable to accommodate the proposed use
Disabled access	
P19 The development is accessible by disabled persons where practical	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Signage	
P20 Signage is suitable to signify the location of the accommodation and does not create adverse impacts on the amenity or character of the area	A20.1 Signage identifying the business comprises no more than two signs each sign with a maximum area of 1.5 m^2 and in accordance with Chapter 4 Signage
Retailing of farm produce and convenience goods	
P21 Retail is limited to sale of convenience goods and products produced on the farm to guests only	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

APPENDIX C9

Table C9.1 Recommended minimum buffer distances between accommodation buildings and other land uses on adjoining or surrounding land not associated with proposal

Existing land use	Minimum distance to accommodation buildings (metres)
Piggeries- Housing and waste storage	500
Piggeries- Waste utilisation area	250
Feedlots- Yards and waste storage	500
Feedlots- Waste utilisation area	250
Poultry Farms- Sheds and waste storage	500
Poultry Farms- Waste utilisation area	250
Dairies- Sheds and waste storage	250
Dairies- Waste utilisation area	250
Other Intensive Livestock Operations	300
Extensive Horticulture	200
Greenhouse & Controlled Environment Horticulture	200
Macadamia De-husking	300
Bananas	150
Turf Farms	200
Animal boarding and training establishments	500
Rural Industries	500
Abattoirs	1000
Extractive Industries that does not involve blasting	500
Extractive Industry that involves blasting	1000
Waste disposal facility (dump)	1000
Grazing of stock	50
Stock yards including cattle yards	200

Source: Department of Primary Industries; Living and Working in Rural Areas (2007)

CHAPTER 10 DUAL OCCUPANCIES

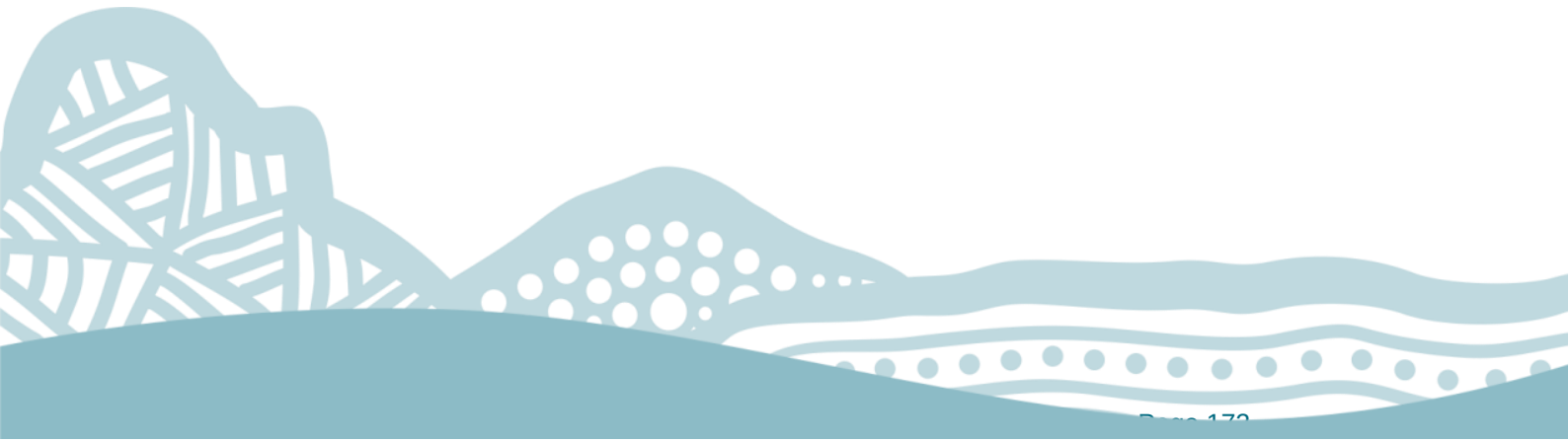


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1 INTRODUCTION

1.1 Application

This Chapter applies in preparing and assessing applications for development of **dual occupancy (attached or detached)** and ancillary development (driveways, garages, carports, sheds, outbuildings, pools, landscaping, stand-alone power systems of domestic scale, tennis courts, etc.) in any Zone where the development is permitted with consent.

This Chapter does not apply to applications for Attached dwellings, Dwelling houses, Secondary dwellings or Semi-detached dwellings.

1.2 Aims of Chapter 10

a) To provide development guidelines to assist the design of development proposals and preparation of development applications and the assessment of those applications.
b) To facilitate the development of dual occupancies that is consistent with the applicable zone objectives.

2 DUAL OCCUPANCIES IN ZONES RU1, RU2 AND RU4

2.1 Application

This section applies to development for the purposes of **dual occupancy (attached or detached)** in Zones RU1 Primary Production, RU2 Rural Landscape and RU4 Primary Production Small Lots. This section also applies to extensions and additions to dual occupancies and ancillary buildings and structures.

2.2 Exempt Development

Certain development ancillary to dwellings (including driveways, garages, carports and garden sheds) is permitted as Exempt Development (development that does not require development consent, subject to certain requirements). Reference should be made to any relevant State Environmental Planning Policy.

2.3 Objectives

a) To ensure that dual occupancies are appropriately buffered from surrounding land uses and do not increase the likelihood of land use conflict.
b) To ensure that dual occupancies do not impact on potential or viability of Regionally Significant Farmland[1] or Class 1, 2 or 3 agricultural land[2].
c) To ensure that dual occupancies are designed and constructed to avoid impact on the character of the rural landscape and significant views or settings.
d) To ensure that dual occupancies are designed and sited to minimise earthworks.
e) To ensure that dual occupancies are designed and sited to minimise impacts on ecological functions and biodiversity values.
f) To ensure that dual occupancies are sited to avoid unacceptable risk from natural hazards and contaminated land.
g) To ensure that dual occupancies do not adversely impact on the ecological or hydrological functions of watercourses, water bodies and wetlands.
h) To ensure that dual occupancies have appropriate vehicular access and are appropriately serviced.
i) To encourage the development of well-designed dwellings that are adaptable, comfortable and maximise water and energy efficiency.

[1] *As defined by the Northern Rivers Farmland Protection Project (Department of Infrastructure, Planning and Natural Resources and Department of Primary Industries), 2005*

[2] *As mapped on Rural Land Capability maps produced by the NSW Department of Land and Water Conservation*

2.4 Development Guidelines

Note: the Acceptable Solutions in the table below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot meet, an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Minimum lot size	
P1 The lot is of appropriate size and dimensions to accommodate two dwellings including effluent disposal areas	A1 The lot is at least the minimum lot size specified for that lot by the LEP
Design and siting of buildings and structures	
P2 Site layout and building design seeks to utilise natural grades of the land and minimises cut and fill	A2.1 Buildings and structures are not located on land with a gradient that exceeds 20% A2.2 Cut or fill does not exceed 1 metre in height and a total height of 2 metres
P3 The setback of buildings and structures from the primary road frontage is consistent with the surrounding area	A3.1 Buildings and structures are set back a minimum of 20 metres from the front boundary OR **Where site has frontage to a classified road:** A3.2 Buildings and structures are set back from front boundary a minimum of: • Where in Zones RU1 or RU2:- 50 metres • Where in Zone RU4:- 30 metres
P4 The setback of buildings and structures from side and rear property boundaries does not impact on the amenity of adjoining properties	A4.1 Buildings and structures are set back a minimum of 10 metres from side boundary A4.2 Buildings and structures are set back at least 10 metres from rear boundary OR **Where side or rear boundary is a secondary road:** A4.3 Buildings and structures are set back at least 20 metres from property boundary
P5 The dwellings are in reasonable proximity to each other and will not:	A5 The two dwellings are located within 100 metres of each other

• adversely impact on the agricultural potential or viability of the subject land • increase the potential for land use conflict • impact adversely on environmental values or watercourses	
Protection of valuable agricultural land	
P6 The dwellings will not adversely impact the agricultural potential or viability of Regionally Significant Farmland or Class 1, 2 or 3 agricultural land	A6 The dwellings are not sited on land mapped as Regionally Significant Farmland or Class 1, 2 or 3 agricultural land
Land use conflict avoidance	
P7 Dwellings are not located where they are likely to be impacted by surrounding land uses	A7 Dwellings achieve buffers specified in Table C10.1 in Appendix C10
Visual impact	
P8 Buildings and structures do not impact adversely on significant views or rural and/or natural landscape character and do not reflect light on surrounding properties	A8.1 Buildings and structures are not located on prominent ridgelines or hilltops or in prominent locations when viewed from significant public vantage points OR A8.2 Landscaping is used to screen views of the development from significant vantage points AND A8.3 External walls and roofs are clad in non-reflective materials and colours are muted
Environmental impact	
P9 The siting of buildings and structures does not impact on ecological or hydrological values of watercourses, water bodies and wetlands	A9.1 Buildings and structures are set back a minimum of 100 metres from the top of bank of permanent watercourses (Order 3 Stream or greater) or water bodies and 40 metres from the top of bank of an ephemeral watercourse (Order 1 or 2 Stream) A9.2 Buildings and structures are set back a minimum of 100 metres from the edge of wetland

P10 Development does not create unacceptable impact on ecological functions or biodiversity values	A10.1 Siting of buildings, structures and driveways does not require the clearing of native vegetation A10.2 Buildings and structures are not located within a mapped ecological corridor
Effluent management	
P11 The development makes suitable provision for management of effluent that does not create public health impacts or adversely impact quality of surface and ground waters	A11.1 Effluent disposal fields are located on land with a gradient of <20% A11.2 The soil type is suitable for on-site treatment and disposal of effluent A11.3 Each dwelling is serviced by an on-site sewage management system that meets the requirements of the Kyogle Council On-site Sewage Management Strategy
Water supply	
P12 The development must make suitable provision for supply of potable water without drawing unreasonably from natural watercourses, water bodies or groundwater	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Stormwater management	
P13 Stormwater does not create a nuisance for adjoining properties	A13 Stormwater is managed on the development site and does not contribute to flooding on adjoining properties
Electricity supply	
P14 The development must make adequate provision for electrical power without impacting on the amenity of surrounding properties through emission of noise, fumes, light or glare through on-site power generation	A14 Dwellings are connected to the reticulated electricity network
Telecommunications	
P15 The development must make suitable arrangements for the supply of constant, reliable telecommunications	A15 Dwellings are connected to the fixed line telecommunications network

Solid waste disposal	
P16 The development must make satisfactory arrangements for the storage and removal of solid waste	A16 Solid waste is disposed of at an approved facility and is not buried or burnt on site
Transport and Access	
P17 The development must have suitable vehicular access	A17.1 Vehicles are able to enter and leave the site in a forward direction A17.2 The development site has access to a constructed public road A17.3 Site access, internal driveways, manoeuvring and parking areas are designed and constructed in accordance with the Northern Rivers Local Government Development & Design and Construction Manual and Council's Property Access and Addressing Management Plan A17.4 Both dwellings are accessed by the same vehicular access point to a public road
Natural hazards	
P18 Dwellings, visitors and firefighters are not exposed to unacceptable risk from bushfire	A18.1 Development is not on land that is mapped as bushfire prone land OR A18.2 Dwellings are assessed as having a Bushfire Attack Level (BAL) no greater than BAL 29 and complies with the requirements of the Rural Fire Service publication 'Planning for Bushfire Protection' 2006 or any superseding guideline and Australian Standard AS3959 OR A18.3 A report prepared by a Certified Bushfire Practitioner is provided that demonstrates the dwellings can achieve the requirements of the Rural Fire Service publication 'Planning for Bushfire Protection' 2006 or any superseding guideline
P19 Buildings, structures and persons on the development site should not be exposed to unacceptable risk from flooding	A19.1 The location of the dwellings is not prone to flooding from inundation or overland flow

	OR **Where a dwelling is proposed on land that is mapped as or known to be prone to flooding:** A19.2 A report is submitted by a suitably qualified person that demonstrates the floor level of the development achieves a height of at least the level of a 100 year ARI flood event plus 0.5 metres freeboard
P20 Buildings, structures and persons on the development site should not be exposed to unacceptable risk from landslip or mass movement	A20.1 The development site does not display evidence of landslip or mass movement OR A20.2 A report prepared by a suitably qualified engineer is submitted that demonstrates the site is geotechnically stable and suitable to accommodate a dwelling
Contaminated land	
P21 Residents and visitors are not exposed to unacceptable risk from contamination	A21.1 Development is not on a site that is listed as contaminated AND A21.2 Dwellings are not located within 200 metres of a cattle dip OR A21.3 A report prepared by a suitably qualified person is submitted that demonstrates the site is suitable to accommodate a residential use
Building orientation and energy efficiency	
P22 Building design and orientation facilitates passive lighting, heating and cooling	A22.1 Living areas* are orientated to the north or east A22.2 Window and door placement allows internal solar access between April and August and limits internal solar access between September and March A22.3 Eaves are minimum of 450 mm deep A22.4 Internal building layout and location of windows facilitate internal passage of cooling easterly and southerly breezes

	**Living areas are considered to be kitchen, lounge room, living room or dining room*
Additional guidelines for dual occupancy (attached)	
P23 Development is compliant with Building Code of Australia provisions concerning noise attenuation and fire separation	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

3 DUAL OCCUPANCIES IN ZONES R1, R3, R5 AND RU5

3.1 Application

This section applies to preparation and assessment of applications for development for the purposes of **dual occupancy (attached or detached)** in Zones R1, R3, R5 and RU5. This section also applies to extensions and additions to dual occupancies and ancillary buildings and structures.

3.2 Exempt Development

Certain development ancillary to dual occupancies (eg. driveways, carports, garden sheds) may be permitted as Exempt Development (development that does not require development consent, subject to certain requirements). Reference should be made to any relevant State Environmental Planning Policy.

3.3 Objectives

a) To ensure dual occupancies and ancillary development complement the character of their surroundings.
b) To ensure that buildings and structures are designed and sited to minimise earthworks.
c) To ensure that development does not impact the amenity of surrounding residential development.
d) To ensure that buildings and structures are designed and sited to minimise impacts on ecological functions and biodiversity values.
e) To ensure that dual occupancies and ancillary development are sited to avoid exposure to unacceptable risk from natural hazards and contaminated land.
f) To ensure that development does not adversely impact on the ecological or hydrological functions of watercourses and water bodies.
g) To ensure that dual occupancies have suitable vehicular access and parking and are appropriately serviced.
h) To encourage the development of well-designed dwellings that are comfortable and adaptable and maximise water and energy efficiency.
i) To ensure the preservation of cultural heritage.

3.4 Development Guidelines

Note: the Acceptable Solutions in the table below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot, meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Minimum lot size and dimensions	
P1 The allotment is sufficient size and dimensions to accommodate two dwellings (including car parking and manoeuvring areas, private open space and effluent disposal where required) and will not result in impacts on the privacy or amenity of neighbouring properties	**Where development site is in an area serviced by reticulated sewerage:** A1.1 The development site has an area of at least 600m^2 and an average width of at least 15 metres OR **Where development site is not in an area serviced by reticulated sewerage:** A1.2 The development site has an area of at least 1 ha and an average width of at least 40 metres
Height and form of buildings	
P2 The height of buildings and structures is consistent with houses in the surrounding area and does not create overshadowing or a loss of privacy for adjoining residential properties	A2 Building height does not exceed maximum height shown on the Height of Buildings Map
P3 Detached dwellings have sufficient separation to achieve required fire separation and allow access for maintenance	A3 Minimum separation distance between dwellings is 2 metres
P4 Attached dwellings appear as two distinct dwellings	A4.1 Walls at point of connection are articulated A4.2 Distinct roof profiles are used for each dwelling or the point of connection is articulated A4.3 Dwellings do not appear as a mirror image of each other
Development footprint	
P5 The total development footprint allows for sufficient private open space and does not impact on amenity of adjoining properties	A5 The total site coverage of all dwellings, structures and outbuildings does not exceed: • Where lot size <900m2= 40% • Where lot size 901-1500m2= 30% • Where lot size >1500m2= 25%

Front boundary setback	
P6 Dwelling houses and ancillary structures have sufficient setback from the front boundary to maintain the character and building line of the street and to allow sufficient area for private open space, car parking and landscaping	A6.1 The front boundary setback is in accordance with the requirements in Table C10.2 OR **Where site fronts a classified road:** A6.2 Front boundary setback is at least: • Where in Zone R1, R3 or RU5:- 9 metres • Where in RE2 or R5 (and lot has an area of at least 4000m2):- 15 metres •
P7 Side boundary setback is sufficient to maintain privacy, residential amenity and solar access of adjoining properties, permit access for maintenance and meet Building Code of Australia requirements	**In Zones R1, R3 and RU5 and where outer wall or structure adjacent side boundary is <4.5m high:** P7.1 Side boundary setback is a minimum 0.9 metres to wall and 0.45 metres to outer edge of eave or gutter OR **In Zones R1, R3 and RU5 and where outer wall or structure adjacent side boundary is >4.5m high:** P7.2 Side boundary setback is a minimum 1.5 metres to wall plus 0.5 metres for every additional 2 metres in wall height OR **Where in Zone R5:** A7.3 Side boundary setback is a minimum 5 metres
Rear boundary setback	
P8 Rear boundary setback is sufficient to allow for the maintenance of privacy, residential amenity and solar access of adjoining properties	**In Zones R1, R3 and RU5:** A8.1 Rear boundary setback is a minimum of 6 metres OR **In Zones R1, R3 or RU5 where rear boundary of development site has road frontage:** A8.2 Rear boundary setback is a minimum of 6 metres or where adjoining development fronts that street; at least the setback of adjoining development, whichever is the lesser OR

	In Zones RE2 and R5: A8.3 Buildings and ancillary structures are set back from the rear boundary a minimum of 15 metres
Corner allotments	
P9 Building setbacks on corner allotments are suitable to ensure safety for pedestrians and vehicles, to maintain the character and building line of the streets and allow for the maintenance of privacy, residential amenity and solar access of adjoining properties	A9.1 Front boundary setback is as per Table C10.2 OR **Where site fronts a classified road:** A9.2 Front boundary setback is at least: • Where in Zone R1, R3 or RU5:- 9 metres • Where in RE2 or R5 (and lot has an area of at least 4000m2):- 15 metres A9.3 Setback of buildings and ancillary structures to the secondary road frontage is at least 4 metres in Zones R1, R3 and RU5 and at least 10 metres in Zones RE2 and R5 A9.4 Setback of buildings and ancillary structures to side boundaries* is 2 metres in Zones R1, R3 and RU5 and 5 metres in Zones RE2 and R5 A9.5 Vehicular access points are not closer than 6 metres from the intersection **Corner allotments are not considered to have a rear boundary*
Open space	
P10 Residents have access to sufficient private open space	A10.1 Each dwelling has access to a minimum 24m^2 of private open space with a minimum dimension of 4 metres A10.2 50% of the private open space receives at least 2 hours of sunlight between 9am and 3pm at the winter solstice (21 June)
P11 Each dwelling makes suitable provision for outdoor clothes drying	A11 Each dwelling has access to private outdoor space for clothes drying

Building orientation and energy efficiency	
P12 Building design and orientation facilitates passive lighting, heating and cooling	A12.1 Living areas* are orientated to the north or east A12.2 Window and door placement allows internal solar access between May and September and limits internal solar access between October and April A12.3 Eaves are minimum of 450 mm deep A12.4 Internal building layout and location of windows facilitate internal passage of cooling easterly and southerly breezes **Living areas are considered to be kitchen, lounge room, living room or dining room*
Streetscape	
P13 Dwellings address the street and allow for passive surveillance	A13.1 The front door of each dwelling is visible from the street A13.2 At least one living area* of each dwelling has a window that faces the street A13.3 Solid front fencing higher than 1.2 metres is not used (except where required for noise attenuation where development site fronts a classified road) **Living areas are considered to be kitchen, lounge room, living room or dining room*
P14 Front façades are not dominated by car accommodation	A14.1 Vehicular accommodation is recessed a minimum of 0.5 metres behind the front façade A14.2 Vehicular accommodation does not exceed 50% of the width of each dwelling
Where located on the site of a heritage item	
P15 Development does not adversely impact form, fabric, appearance, views or the setting of the heritage item	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

Where adjoining a site of a heritage item	
P16 Development does not adversely impact views or the setting of the heritage item	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Where located in a heritage conservation area	
P17 Development complements the scale, form and character of existing development in the conservation area	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Site slope and earthworks	
P18 Development siting, design and layout utilises natural grades of the land and minimises cut and fill	A18.1 Buildings, structures and vehicular parking and manoeuvring areas are not located on land with a gradient exceeding 20% A18.2 On sloping sites dwellings are stepped down the slope to minimise earthworks
P19 Cut and fill structures (including retaining walls) are structurally sound and do not impact on the amenity or geotechnical stability of adjoining properties	A19.1 Cut batters are a maximum 1 metre in height and no closer than 0.9 metres to property boundary A19.2 Fill batters are a maximum of 0.6 metres in height and no closer than 0.4 metres to property boundary A19.3 Retaining walls higher than 0.6 metres are designed and certified by an appropriately qualified engineer
Natural hazards	
P20 Dwellings, residents, visitors and firefighters are not exposed to unacceptable risk from bushfire	A20.1 The dwellings are not on land that is mapped as bushfire prone land OR A20.2 The dwellings are assessed as having a Bushfire Attack Level (BAL) no greater than 29 and complies with the requirements of PBP 2006 or any superseding guideline and Australian Standard AS3959 OR A20.3 A report prepared by a Certified Bushfire Practitioner is provided that demonstrates the dwelling can achieve the requirements of PBP 2006 or any superseding guideline

P21 Buildings, structures and persons on the development site are not exposed to unacceptable risk from flooding	A21.1 The development site is not prone to flooding from inundation or overland flow OR **Where development is proposed on flood prone land:** A21.2 a report is submitted by a suitably qualified person that demonstrates the floor level of the development achieves a height of at least the level of a 100 year ARI flood plus 0.5 metres OR **Where development is proposed on a lot within the Flood Planning Area shown on the Flood Planning Map in the LEP:** A21.3 The development complies with the provisions of the Development Control Plan in the Kyogle Council Floodplain Risk Management Plan 2009
P22 Buildings, structures and persons on the development site should not be exposed to unacceptable risk from landslip or mass movement	A22.1 The development site is not prone to landslip or mass movement OR A22.2 A report is submitted by suitably qualified person that demonstrates the site is geotechnically stable and suitable to accommodate dwellings
Environmental protection	
P23 Development does not create unacceptable impact on ecological functions or biodiversity values	A23.1 Siting of buildings and structures does not require the clearing of native vegetation A23.2 Buildings and structures are not located within a mapped ecological corridor
Protection of watercourses	
P24 The siting of buildings and structures does not impact on ecological or hydrological values of watercourses and water bodies	A24 Buildings and structures are set back a minimum of 100 metres from the top of bank of permanent watercourses (Order 3 Stream or greater) or water bodies and 40 metres from the top of bank of an ephemeral watercourse (Order 1 or 2 Stream)

Vehicular access and parking	
P25 The development has suitable vehicular access	A25 The development is accessed via a single vehicular access point
P26 Vehicular access for dwellings must allow vehicles to enter and leave the site in a forward gear and allow all weather access by two wheel drive vehicle	A26.1 The development site has frontage to a constructed public road A26.2 Vehicles are able to enter and leave the site in a forward direction A26.3 Access, manoeuvring and parking areas are in accordance with the Northern Rivers Local Government Design and Construction Manual, Chapter 8 of the DCP- Site Access and Off- street parking and Council's Property Access and Addressing Management Plan
P27 Vehicles can be accommodated on site and the development will not create unreasonable demand for on-street parking	A27 Each dwelling is provided with at least two car parking spaces
Servicing and infrastructure	
P28 The development makes suitable provision for management of effluent that does not create public health impacts or adversely impact the quality of surface and ground waters	**Where development site is in a serviced area:** A28.1 Each dwelling has an independent connection to the reticulated sewer system OR **Where connection to reticulated sewer is not available:** A28.2 An effluent management system is provided for each dwelling that meets the requirements of Kyogle On-site Sewerage Management Strategy
P29 The development must make suitable provision for supply of potable water	**Where development site is in a serviced area:** A29.1 Dwellings are connected to the reticulated water system OR **Where connection to reticulated water supply is not available:** A29.2 Dwellings are self- sufficient for water
P30 Stormwater generated by the development does not cause nuisance to or flooding of adjoining properties	**Where development site is in a serviced area:** A30.1 Stormwater is discharged to the stormwater drainage network

	OR **Where development site is not in a serviced area:** A30.2 Stormwater is effectively managed on site and does not contribute to flooding or nuisance on adjoining properties
P31 The development must make adequate provision for electrical power without impacting on the amenity of surrounding properties through emissions of noise, fumes or glare through generation of on-site power	A31 Dwellings are connected to the reticulated electricity network
P32 The dwelling must make suitable arrangements for the supply of constant, reliable telecommunications	A32 Dwellings are connected to the fixed line telecommunications network
P33 The development makes satisfactory arrangements for the storage and removal of rubbish	A33 Dwellings are serviced by a domestic waste collection service
Additional guidelines for dual occupancy (attached)	
P34 Development is compliant with the provisions of the Building Code of Australia concerning noise attenuation and fire separation	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

APPENDIX C10

TABLE C10.1 Recommended minimum buffer distances between dwellings and other land uses on adjoining or surrounding land not associated with the proposal

Existing land use	**Distance to dwellings (metres)**
Piggeries- Housing and waste storage	500
Piggeries- Waste utilisation area	250
Feedlots- Yards and waste storage	500
Feedlots- Waste utilisation area	250
Poultry Farms- Sheds and waste storage	500
Poultry Farms- Waste utilisation area	250
Dairies- Sheds and waste storage	250
Dairies- Waste utilisation area	250
Other Intensive Livestock Operations	300
Cropping and Horticulture	200
Greenhouse & Controlled Environment Horticulture	200
Macadamia De-husking	300
Bananas	150
Turf Farms	200
Animal boarding and training establishments	500
Rural Industries	500
Abattoirs	1000
Extractive Industries that does not involve blasting	500
Extractive Industry that involves blasting	1000
Waste disposal facility	300
Grazing of stock, cattle yards	50

Source: Department of Primary Industries; Living and Working in Rural Areas (2007)

TABLE C10.2 Minimum front boundary setback for dwellings and ancillary structures in Zones R1, R3, R5 and RU5

Situation	**Minimum front boundary setback**
Where there are adjoining houses within 40 metres and fronting the same street	4.5 metres or the average of the setback of adjoining houses, whichever is the lesser
Where no adjoining houses within 40 metres	• 4.5 metres where lot has an area of at least 300m2 but less than 900m2 OR • 5.5m where the lot has an area of greater than 900m2
Where in Zones RE2 and R5	10 metres or the average of the setback of existing adjoining houses, whichever is the lesser
Garage, carport* or car parking space **A carport is defined as a roofed structure for the accommodation of a single vehicle with no more than two sides enclosed and no less than 1/3 of its perimeter unenclosed*	• 5.5 metres where dwelling house has a setback of less than 4.5 metres OR • 1 metre behind front building line of house where the dwelling has a setback of more than 4.5 metres

CHAPTER 11 DWELLINGS ON SMALL LOTS

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1 Introduction

1.1 APPLICATION

This Chapter applies in preparing and assessing applications for development of **dwellings (including dwelling houses, dual occupancies, attached dwellings, secondary dwellings and semi-detached dwellings)** and ancillary development (driveways, garages, carports, sheds, outbuildings, pools, landscaping, stand-alone power systems of domestic scale etc.) **on small lots** (lots that have an area of less than 500m^2) or **small rear lots** (rear lots that have an area of less than 600m^2) in any zone where the development is permitted with consent.

1.2 AIMS OF CHAPTER 11

a) To provide development guidelines to assist the design of development proposals and preparation of development applications and the assessment of those applications.
b) To facilitate the development of dwellings on small lots that is consistent with the applicable zone objectives.

2 Dwellings in Zones R1 and R3

2.1 APPLICATION

This section applies to preparation and assessment of applications for development for the purposes of **dwellings on small lots** (lots less than 500m^2 in area, or rear lots less than 600m^2 in area) in Zones R1 and R3. This section also applies to extensions and additions to existing dwellings as well as ancillary buildings and structures.

2.2 EXEMPT DEVELOPMENT

Certain development ancillary to dwellings (eg. driveways, carports, garden sheds) may be permitted as Exempt Development (development that does not require development consent, subject to certain requirements). Reference should be made to any relevant State Environmental Planning Policy.

2.3 OBJECTIVES

a) To ensure dwellings and ancillary development on small lots complement the character of their surroundings and contribute to an enhanced streetscape.
b) To ensure that development delivers a mix of dwelling forms, sizes and types that cater for a range of household types and sizes.
c) To ensure that development does not impact the amenity of surrounding residential development.
d) To ensure that dwellings have suitable vehicular access and parking and are appropriately serviced.
e) To encourage development of well-designed dwellings that deliver good residential amenity and maximise water and energy efficiency.
f) To encourage development of dwellings that are suitable for older persons, persons with disabilities and smaller household groups or that can be easily adapted to meet the needs of different residents.

2.4 DEVELOPMENT GUIDELINES

Note: the Acceptable Solutions in the table below represent one way to meet the corresponding Performance Criteria. Applicants that choose not to, or that cannot, meet an Acceptable Solution must demonstrate how they meet the corresponding Performance Criteria.

Performance criteria	Acceptable solution
Size of buildings	
P1 The height of buildings and structures is consistent with houses in the surrounding area and does not create overshadowing or a loss of privacy for adjoining properties	A1 Building height does not exceed maximum height shown on the Height of Buildings Map
P2 The size of buildings and the development footprint allows for the provision of sufficient private open space and landscaping and does not impact on amenity of adjoining properties	A2.1 Site coverage is in accordance with Table C11.1 or C11.2 A2.2 Floor space ratio is in accordance with Table C11.1 or C11.2.
Boundary setbacks of buildings	
P3 Dwellings and ancillary structures have sufficient setback from the front boundary to maintain the character and building line of the street and to allow sufficient area for private open space, car parking and landscaping	A3 The front boundary setback is in accordance with the Table C11.1
P4 Side and rear boundary setbacks are sufficient to maintain privacy, residential amenity and solar access of adjoining properties, permit access for maintenance and meet Building Code of Australia requirements	A4 The side boundary setback is in accordance with Table C11.1 or C11.2
Built to boundary walls (not applicable to development of a single dwelling)	
P5 Built to boundary walls: • do not adversely impact privacy; residential amenity and solar access of adjoining properties; • have appropriate easements for maintenance access and; • meet Building Code of Australia requirements.	A5.1 Built to boundary walls are only established on internal side boundaries of the development site A5.2 Built to boundary walls are in accordance with Table C11.1 or C11.2. A6.3 Each lot benefits from an appropriate easement for maintenance access

Corner allotments	
P6 Building setbacks on corner allotments are suitable to ensure safety for pedestrians and vehicles, to maintain the character and building line of the streets and allow for the maintenance of privacy, residential amenity and solar access of adjoining properties	A6.1 Front boundary setback to the principal road frontage is in accordance with Table C11.1 A6.2 Setback of buildings and ancillary structures to the secondary road frontage is 3 metres A6.3 Setback of buildings and ancillary structures to side boundaries[1] is 1.5 metres *[1]Corner allotments are not considered to have a rear boundary* A6.4 Vehicular access points are not closer than 6 metres from the intersection
Dwelling diversity (not applicable to development of a single dwelling)	
P7 The development provides a mixture of dwelling sizes and formats that will meet the needs of a variety of household types and people of various ages and physical abilities	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Private open space	
P8 Residents have access to sufficient private open space	A8.1 Each dwelling has private open space* at the rear or side of the building in accordance with Table C11.1 or 11.2 A8.2 Private open space is located adjacent the living room, dining room or kitchen **Private open space means an outdoor area that is generally not visible from public areas*
P9 Private open space is comfortable for use during winter and summer	A9.1 At least 50% of the private open space of each dwelling receives a minimum of 3 hours of direct solar access between 9am and 3pm at the winter solstice (21 June) A9.2 At least 50% of the private open space of each dwelling is shaded between 9am and 3pm at the summer solstice (21 December)
P10 Private open space has good physical and visual connection to the dwelling	A10.1 Private open space is accessed from within the dwelling via a step free path of travel A10.2 Private open space is visible from within the dwelling

P11 Each dwelling makes suitable provision for outdoor clothes drying	A11 Each dwelling has access to private outdoor space* for clothes drying in accordance with Table C11.1 or C11.2 **Private outdoor space means an outdoor area that is not generally visible from public areas*
Storage	
P12 Dwellings include sufficient storage areas that are practically located	A12.1 Each dwelling includes at least 6m^3 of internal storage area A12.2 Each dwelling includes at least one external storage area of a minimum 6m^3 that is enclosed or located within a carport or garage
Landscaping	
P13 Landscaping is provided to shade private open space, to soften built form and to make a positive contribution to the streetscape	A13.1 Each dwelling is provided with landscaping in accordance with Table C11.1 or 11.2 A13.2 Landscape areas of each dwelling include at least one small to medium sized shade tree
Overlooking and overshadowing	
P14 Development does not result in unreasonable overlooking of habitable rooms and outdoor recreation area on adjoining land	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
P15 Development does not result in unreasonable overshadowing of habitable rooms and outdoor recreation areas on adjoining land	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Residential amenity and energy efficiency	
P16 Building design and orientation facilitates passive lighting, heating and cooling	A16.1 Living areas* are orientated to the north or east A16.2 Window and door placement allows internal solar access between May and September and limits internal solar access between October and April A16.3 Eaves are minimum of 450 mm deep A16.4 Internal building layout and location of external openings facilitate internal passage of cooling easterly and southerly breezes **Living areas are considered to be kitchen, lounge room, living room or dining room*

Livable or adaptable housing principles	
P17 Each dwelling includes the seven core design features* of the 'Livable Housing Design Guidelines' (Livable Housing Australia, 2012) **Listed at C11.3 in Appendix C11*	**Where development involves construction of a single dwelling:** A17.1 The dwelling meets either Platinum or Gold performance levels* as defined in the 'Livable Housing Design Guidelines' (Livable Housing Australia, 2012) **Where development involves construction of more than one dwelling:** A17.2 At least 50% of dwellings in the development meet either Platinum or Gold performance levels* as defined in the 'Livable Housing Design Guidelines' (Livable Housing Australia, 2012)
Streetscape (not applicable to dwellings on rear lots)	
P18 Development complements and enhances the character of the street or locality	A18 The form and materials of the front façade of dwellings complements the existing character of the street or locality
P19 Development of multiple dwellings does not result in a uniform streetscape	**Where development involves the construction of more than one dwelling:** A19.1 The front facades of dwellings feature a mixture of colours, materials and roof profiles A19.2 Dwellings feature a mixture of setbacks A19.3 Adjoining dwellings are not a mirror image of each other
P20 Dwellings address the street and allow for passive surveillance	A20.1 The front door of each dwelling is visible and accessible from the street A20.2 At least one living area* of each dwelling has a window that faces the street A20.3 Solid front fencing higher than 1.2 metres is not used (except where required for noise attenuation where development site fronts a classified road) **Living areas are considered to be kitchen, lounge room, living room or dining room*

P21 Front façades are not dominated by car accommodation	A21 Vehicular accommodation is recessed a minimum of 1 metre behind the front façade
Where located on the site of a heritage item	
P22 Development does not adversely impact form, fabric, appearance, views or the setting of the heritage item	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Where adjoining a site of a heritage item	
P23 Development does not adversely impact views or the setting of the heritage item	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Where located in a heritage conservation area	
P24 Development complements the scale, form and character of existing development in the conservation area	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria
Site slope and earthworks	
P25 Development siting, design and layout utilises natural grades of the land and minimises cut and fill	A25.1 Buildings, structures and vehicular parking and manoeuvring areas are not located on land with a gradient exceeding 20% A25.2 On sloping sites dwellings are stepped down the slope to minimise earthworks
P26 Cut and fill structures (including retaining walls) are structurally sound and do not impact on the amenity or geotechnical stability of adjoining properties	A26.1 Cut batters are a maximum 1 metre in height and no closer than 0.9 metres to property boundary A26.2 Fill batters are a maximum of 0.6 metres in height and no closer than 0.4 metres to property boundary A26.3 Retaining walls higher than 0.6 metres are designed and certified by an appropriately qualified engineer
Natural hazards	
P27 Dwellings, residents, visitors and firefighters are not exposed to unacceptable risk from bushfire	A27.1 The dwellings are not on land that is mapped as bushfire prone land OR A27.2 The dwellings are assessed as having a Bushfire Attack Level (BAL) no greater than 29 and complies with the requirements of PBP 2006

	or any superseding guideline and Australian Standard AS3959 OR A27.3 A report prepared by a Certified Bushfire Practitioner is provided that demonstrates the dwelling can achieve the requirements of PBP 2006 or any superseding guideline
P28 Buildings, structures and persons on the development site are not exposed to unacceptable risk from flooding	A28.1 The development site is not prone to flooding from inundation or overland flow OR **Where development is proposed on flood prone land:** A28.2 a report is submitted by a suitably qualified person that demonstrates the floor level of the development achieves a height of at least the level of a 100 year ARI flood plus 0.5 metres
P29 Buildings, structures and persons on the development site should not be exposed to unacceptable risk from landslip or mass movement	A29.1 The development site is not prone to landslip or mass movement OR A29.2 A report is submitted by suitably qualified person that demonstrates the site is geotechnically stable and suitable to accommodate dwellings
Environmental protection	
P30 Development does not create unacceptable impact on ecological functions or biodiversity values	A30.1 Siting of buildings and structures does not require the clearing of native vegetation A30.2 Buildings and structures are not located within a mapped ecological corridor
Protection of watercourses	
P31 The siting of buildings and structures does not impact on ecological or hydrological values of watercourses and water bodies	A31 Buildings and structures are set back a minimum of 100 metres from the top of bank of permanent watercourses (Order 3 Stream or greater) or water bodies and 40 metres from the top of bank of an ephemeral watercourse (Order 1 or 2 Stream)
Vehicular access and parking	
P32 Dwellings have suitable vehicular access	A32 Each dwelling is accessed via a single vehicular access point

P33 The development will not create unreasonable demand for on-street parking	A33 Each dwelling is provided with at least one car parking space on the development site
Servicing and infrastructure	
P34 The development makes suitable provision for management of effluent that does not create public health impacts or adversely impact the quality of surface and ground waters	A34 Each dwelling has an independent connection to the reticulated sewer system
P35 The development must make suitable provision for supply of potable water	A35 Dwellings are connected to the reticulated water system
P36 Stormwater generated by the development does not cause nuisance to or flooding of adjoining properties	A36 Dwellings are connected to the stormwater drainage network
P37 The development must make adequate provision for electrical power without impacting on the amenity of surrounding properties through emissions of noise, fumes or glare through generation of on-site power	A37 Dwellings are connected to the reticulated electricity network
P38 The dwelling must make suitable arrangements for the supply of constant, reliable telecommunications	A38 Dwellings are connected to the fixed line telecommunications network
P39 The development makes satisfactory arrangements for the storage and removal of rubbish	A39.1 Dwellings are serviced by a domestic waste collection service A39.2 Each dwellings has a dedicated external waste storage area that is practically accessible and does not impact on the amenity of surrounding properties
Additional guidelines for secondary dwellings	
P40 The total size of buildings and the development footprint allows for sufficient private open space and provision of landscaping and does not impact on amenity of adjoining properties	A40.1 The total site coverage of both the principal and secondary dwelling does not exceed the maximum in Tables C11.1 or C11.2 A40.2 The total floor space ratio of both the principal and secondary dwelling does not exceed the maximum in Tables C11.1 or C11.2
P41 Development is compliant with the provisions of the Building Code of Australia concerning noise attenuation and fire separation	No Acceptable Solution is provided: demonstrate how the proposal achieves the Performance Criteria

APPENDIX C11

Table C11.1 Requirements for dwellings on small lots

Lot size	**<201m²**	**201-300m²**	**301-400m²**	**401-500m²**
Minimum front boundary setback	The lesser of 3.5m or the average of adjoining dwellings	The lesser of 4m or average of adjoining	The lesser of 4.5m or the average of adjoining dwellings	The lesser of 4.5m or the average of adjoining dwellings
Minimum side boundary setback	0.9m up to 4.5m high, 0.9m + ¼ of additional height above 4.5m	0.9m up to 4.5m high, 0.9m + ¼ of additional height above 4.5m	0.9m up to 4.5m high, 0.9m + ¼ of additional height above 4.5m	0.9m up to 4.5m high, 0.9m + ¼ of additional height above 4.5m
Minimum rear boundary setback	Up to 4.5m building height=3m Above 4.5m building height= 6m or average of adjoining, whichever is the lesser	Up to 4.5m building height=3m Above 4.5m building height= 6m or average of adjoining, whichever is the lesser	Up to 4.5m building height=4m Above 4.5m building height= 6m or average of adjoining, whichever is the lesser	Up to 4.5m building height=4.5m Above 4.5m building height= 6m or average of adjoining, whichever is the lesser
Built to boundary walls	Permitted on both sides where lot width[1] <8m. Permitted on one side only where lot width[1] >8m. **Maximum height** 3.3m or match adjoining built to boundary wall **Maximum length** 50% of lot depth or to match adjoining built to boundary wall	Permitted on both sides where lot width[1] <8m. Permitted on one side only where lot width[1] >8m. **Maximum height** 3.3m or match adjoining built to boundary wall **Maximum length** 50% of lot depth or to match adjoining built to boundary wall	Permitted on one side only. **Maximum height** 3.3m or to match adjoining built to boundary wall **Maximum length** 50% of lot depth or to match adjoining built to boundary wall	Permitted on one side only. **Maximum height** 3.3m or to match adjoining built to boundary wall **Maximum length** 50% of lot depth or to match adjoining built to boundary wall

Maximum site coverage (% of lot area)	65%	60%	55%	50%
Maximum floor space ratio (total floor area: lot area)	0.9:1	0.85:1	0.8:1	0.75:1
Minimum area of private open space	16m^2 (excluding any storage space) with a minimum dimension of 3m	16m^2 (excluding any storage space) with a minimum dimension of 3m	24m^2 (excluding any storage space) with a minimum dimension of 4m	24m^2 (excluding any storage space) with a minimum dimension of 4m
Minimum area of landscaping[2] (% of lot area)	10% (minimum dimension of any landscaped area included in calculation is 1.5 metres)	15% (minimum dimension of any landscaped area included in calculation is 1.5 metres)	15% (minimum dimension of any landscaped area included in calculation is 1.5 metres)	20% (minimum dimension of any landscaped area included in calculation is 1.5 metres)

[1] Lot width is measured across the lot at the midpoint of the longest boundaries.

[2] Landscaping refers to the area of the lot that is planted with trees and shrubs.

Table C11.2 Requirements for dwellings on small rear lots (rear lots with an area less than 600m^2)

Lot size[1]	**<201m^2**	**201-300m^2**	**301-400m^2**	**401-599m^2**
Minimum front boundary setback	Rear lots have no front boundary	-	-	-
Minimum side boundary setback	0.9m up to 4.5m high, 0.9m + ¼ of additional height above 4.5m	0.9m up to 4.5m high, 0.9m + ¼ of additional height above 4.5m	0.9m up to 4.5m high, 0.9m + ¼ of additional height above 4.5m	0.9m up to 4.5m high, 0.9m + ¼ of additional height above 4.5m
Minimum setback to boundary that adjoins the rear boundary of an adjoining lot	Up to 4.5m building height=3m Above 4.5m building height= 6m or average of adjoining, whichever is the lesser	Up to 4.5m building height=3m Above 4.5m building height= 6m or average of adjoining, whichever is the lesser	Up to 4.5m building height=3m Above 4.5m building height= 6m or average of adjoining, whichever is the lesser	Up to 4.5m building height=3m Above 4.5m building height= 6m or average of adjoining, whichever is the lesser
Built to boundary walls	Not permitted except where built in conjunction with another built to boundary wall on an adjoining lot **Maximum height** 3.3m or match adjoining built to boundary wall **Maximum length** 50% of lot depth or to match adjoining built to boundary wall	Not permitted except where built in conjunction with another built to boundary wall on an adjoining lot **Maximum height** 3.3m or match adjoining built to boundary wall **Maximum length** 50% of lot depth or to match adjoining built to boundary wall	Not permitted except where built in conjunction with another built to boundary wall on an adjoining lot **Maximum height** 3.3m or to match adjoining built to boundary wall **Maximum length** 50% of lot depth or to match adjoining built to boundary wall	Not permitted except where built in conjunction with another built to boundary wall on an adjoining lot **Maximum height** 3.3m or to match adjoining built to boundary wall **Maximum length** 50% of lot depth or to match adjoining built to boundary wall
Maximum site coverage (% of lot area)	65%	60%	55%	50%

Maximum floor space ratio (total floor area: lot area)	0.8:1	0.8:1	0.75:1	0.7:1
Minimum area of private open space	16m^2 with a minimum dimension of 3m	16m^2 with a minimum dimension of 3m	24m^2 with a minimum dimension of 4m	24m^2 with a minimum dimension of 4m
Minimum area of landscaping[3] (% of lot area)	10% (minimum dimension of any landscaped area included in calculation is 1.5 metres)	15% (minimum dimension of any landscaped area included in calculation is 1.5 metres)	15% (minimum dimension of any landscaped area included in calculation is 1.5 metres)	20% (minimum dimension of any landscaped area included in calculation is 1.5 metres)

[1] Lot size of rear lots does not include the area of the access handle or right of carriageway.

[2] Lot width is measured across the lot at the midpoint of the longest boundaries.

[3] Landscaping refers to the area of the lot that is planted with trees and shrubs.

C11.3 Seven core design features of the 'Livable Housing Design Guidelines' (Livable Housing Australia, 2012)

1. A safe continuous and step free path of travel from the street entrance and / or parking area to a dwelling entrance that is level.
2. At least one level (step-free) entrance into the dwelling.
3. Internal doors and corridors that facilitate comfortable and unimpeded movement between spaces.
4. A toilet on the ground (or entry) level that provides easy access.
5. A bathroom that contains a hobless (step-free) shower recess.
6. Reinforced walls around the toilet, shower and bath to support the safe installation of grab rails at a later date
7. A continuous handrail on one side of any stairway where there is a rise of more than one metre.